



8555 Kalamazoo Ave. SE
Caledonia, MI 49316

www.gainestownship.org

Phone: 616-698-6640
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September 9, 2021

Gaines Township Board of Trustees
8555 Kalamazoo Ave. SE
Caledonia, MI 49316

RE: September 13, 2021 Board Meeting

Dear Members of the Gaines Township Board:

I hope this letter finds you well and that you all had a relaxing Labor Day weekend.

Please find following this letter the September 2021 board packet. Most of the items for this month's packet have memos attached to them, so I won't dive into detail on those items as most are straight forward and run of the mill.

I do want to note one item, action item number 9a. is the establishment of the investment committee. As a reminder, the Board tabled the action last month. The objective here would be to appoint 5 committee members (I think an odd number would be best) and then provide some objectives to the committee on what the Board would like to see it accomplish. We will need to have specific individuals appointed to the committee, so if you have an individual in mind, please be ready to nominate them.

If you have any questions on any of the items in the packet, please don't hesitate to reach out.

Sincerely,

A blue ink signature of Jonathan Seyferth, written in a cursive style.

Jonathan Seyferth
Township Manager

PRELIMINARY * AGENDA
GAINES CHARTER TOWNSHIP BOARD OF TRUSTEES
MEETING

September 13, 2021

Opening Prayer 7 PM ~ Laurie Lemke

Pledge of Allegiance

PLEASE FOLLOW CURRENT CDC COVID-19 GUIDELINES

[Meeting also available via ZOOM - request login information at info@gainestownship.org](mailto:info@gainestownship.org)

Items Highlighted are Action Items

Meeting called by Supervisor Rob DeWard

Usual Attendees: Supervisor Rob DeWard, Clerk Michael Brew, Treasurer Laurie Lemke, Trustees Tim Haagsma, Bob Terpstra, Dan Fryling, Kathy Vander Stel, Township Manager Jonathan Seyferth, Planner Department – Dan Wells

1. **CALL TO ORDER AND ATTENDANCE AT 7 PM –**
2. **Declaration of any Conflict of Interest**
3. **Review of Consent Agenda**
4. **Approval of Meeting Agenda**
5. CUSTOMARY ITEMS
 - 1) **Recognition of Individuals and/or Delegations** - *3-minute time limit for unscheduled speakers
UNSCHEDULED SPEAKERS – PLEASE INDICATE NAME/ADDRESS/PHONE #/TOPIC OF DISCUSSION ON PAD PROVIDED ON PODIUM
6. Public Hearing – Proposed Special Assessment District for Public Safety

Consent agenda items are listed under item II, including payment of the bills. All items are considered to be routine by the Board. *There will not be separate discussion of these items.* If discussion is desired, that item will be removed from the Consent Agenda upon request of any Board Member. If you would like any item removed from the consent agenda so that it may be considered separately; please contact Kim by 10:00 a.m., the day of the meeting.

7. CONSENT AGENDA

1) Board Meeting Minutes

A. Meeting Minutes from August 9, 2021

2) Building Department

A. Building Department August 2021 Revenue Reports– Summary for Mechanical & Plumbing Permits, Electrical Revenue Report - *(In an effort to condense the size of meeting packets, we will be providing a Summary Report each month. A copy of the full report is on file and can be obtained by contacting Kim Triplett at kim.triplett@gainestownship.org.*

3) Clerk's Office

A. Check Register for 7_28_2021 thru 8_27_2021

B. Payments of the bills the amount of \$248,713.55

Motion to Approve Consent Agenda - ACTION ITEM

8. DEPARTMENT/OFFICE REPORTS

a) Clerk's Office –

b) Planning –

1. 7884, 7788 and 7920 Eastern Ave, Rezone from R14 to PUD
2. Final Site Approval - Hideaway
3. Code Enforcement

c) Treasurer's Department

d) Assessing Department

1. Professional Development Request – Assessor
2. Professional Development Request – Assessing Technician

e) Water & Sewer Department – NONE

f) Building Department -NONE

9. **Recognition of Individuals and/or Delegations** Limit 3 Minutes

10. SUPERVISOR/TOWNSHIP MANAGER OFFICES

Action Items:

- a) **Establish Investment Committee**
- b) **Set date for second SAD Public Hearing – after Jonathan offers preliminary data**
- c) **Cutlerville Fire Fighter Union Agreement**

NON-ACTION

- a) **Cutlerville Fire Committee Meeting Minutes**
- b) **Cutlerville Fire August 2021 Run Report**
- c) **Dutton Fire August 2021 Run Report**

- d) *Assessing Dept. Audit Acknowledgement*
- e) *Rebate from REGIS*
- f) *FUND BALANCE DISCUSSION*
- g) *Website stats for August 2021 – 10,653 visitors*

11. COMMENTS & DISCUSSION

- 1) Township Board
- 2) Township Manager
- 2) Supervisor
- 3) Miscellaneous

12. ADJOURNMENT

- 1) *There is a 2nd September meeting scheduled for September 27th*
- 2) *The October meetings will be October 11th and October 26th*

Any interested persons are invited to attend and participate. Persons with disabilities needing any special accommodations should contact the Township offices one week prior to the meeting to request mobility, visual or any other assistance.

Preliminary Agenda – Subject to Change

**MINUTES OF GAINES CHARTER TOWNSHIP BOARD
FOR THE REGULAR MEETING
August 09, 2021**

Present: DeWard, Brew, Lemke, Fryling, Haagsma, Terpstra, VanderStel

Absent with notice: None

Township Manager Jonathan Seyferth and Township Engineer Jeff Gritter were also present

Opening prayer was given by Supervisor DeWard and the Pledge of Allegiance was recited

1. The meeting was called to order at 7:04 p.m. by Supervisor DeWard

2. Question of Conflict of Interest

None.

3. Review of the Consent Agenda

Lemke noted a phrase in the July 12, 2021 minutes that she requested be re-worded for clarity.

4. Meeting Agenda

Public hearing for Special Assessment and item 10 a. will be moved to the beginning of the meeting from Supervisor / Township Manager Offices due to the size of the crowd.

Motioned by Haagsma and supported by Terpstra to approve the proposed agenda with the public hearing for Special Assessment district and item 10 a being moved to the beginning of the meeting.

VOICE VOTE: All Ayes. Motion Carried.

5. Recognition of Individuals and/or Delegations.

Garbage in Prairie Wolf park was brought to the Board's attention.

6. Public hearing for Special Assessment district.

Motioned by VanderStel and supported by Haagsma to open the public hearing for the Proposed Special Assessment District for Public Safety.

VOICE VOTE: All Ayes. Motion Carried.

27 citizens expressed their opinion on the process and validity of a Special Assessment for Public Safety.

Motioned by Haagsma and supported by VanderStel to close the public hearing for the Proposed Special Assessment District for Public Safety.

VOICE VOTE: All Ayes. Motion Carried.

Motioned by VanderStel and supported by Haagsma to adopt a resolution to determine to proceed with the establishment of a special assessment district to defray the cost of fire and public safety services; approval of plans and estimate of costs; final determination of a special assessment and its proposed district; to defray the cost by special assessment; and directive to the township supervisor to prepare the special assessment roll. This action was taken to gain specific detail of costs to township residents.

ROLL CALL VOTE: Fryling - no, DeWard – yes, Brew – yes, VanderStel - yes, Terpstra - yes, Lemke - yes, Haagsma - yes . Motion carried.

7. Consent Agenda

Motioned by Haagsma and supported by VanderStel to approve the consent agenda including payment of bills for 07/03/2021 through 07/27/2021 in the amount of \$338,770.97.

ROLL CALL VOTE: Haagsma – yes, Fryling – yes, DeWard – yes, Brew – yes, VanderStel - yes, Terpstra – yes, Lemke – yes . Motion carried.

Motioned by Haagsma and supported by VanderStel to approve the consent agenda including payment of bills for 07/03/2021 through 07/27/2021 in the amount of \$338,770.97 and include the phrase change noted by Lemke to be made to the July 12, 2021 Township Board minutes.

ROLL CALL VOTE: Lemke – yes, Haagsma – yes, Fryling – yes, DeWard – yes, Brew – yes, VanderStel - yes, Terpstra – yes. Motion carried.

8. Department/Office Reports

A. Planning

1) Platted lot combination – 62 and 102 Coleman SE

Motion by Haagsma and seconded by Fryling to approve the resolution to combine 62 and 102 Coleman.

ROLL CALL VOTE: Terpstra – yes, Lemke – yes, Haagsma – yes, Fryling – yes, DeWard – yes, Brew – yes, VanderStel - yes. Motion carried.

2) 7884, 7788, and 7920 Eastern Avenue – Rezone from R14 to Planned Unit Development

Motion by Lemke and seconded by Fryling to approve the resolution to rezone 7884, 7788, and 7920 Eastern Avenue from R14 to a Planned Unit Development.

ROLL CALL VOTE: VanderStel – yes, Terpstra – yes, Lemke – yes, Haagsma – yes, Fryling – yes, DeWard – yes, Brew – yes. Motion carried.

Motion by Haagsma and seconded by VanderStel to approve the ordinance to rezone 7884, 7788, and 7920 Eastern Avenue from R14 to a Planned Unit Development.

ROLL CALL VOTE: Brew – yes, VanderStel – yes, Terpstra – yes, Lemke – yes, Haagsma – yes, Fryling – yes, DeWard – yes. Motion carried.

3) 2451, 2571, and 2701 76th – Tentative Preliminary Plat for Phase 1 – Alexander Trails

Motion by Haagsma and seconded by Terpstra to approve the resolution establishing Tentative Preliminary Plat for Phase 1 Alexander Trails with conditions outlined in the staff report and the addition of a sidewalk on private road J which is not noted on the map.

ROLL CALL VOTE: DeWard – yes, Brew – yes, VanderStel – yes, Terpstra – yes, Lemke – yes, Haagsma – yes, Fryling – yes. Motion carried.

4) Final Plat Approval – Preservation Lakes Phase IV

Motion by Haagsma and seconded by Lemke to approve the resolution of Final Plat Approval for Preservation Lakes Phase IV.

ROLL CALL VOTE: Fryling - no, DeWard – yes, Brew – yes, VanderStel - yes, Terpstra - yes, Lemke - yes, Haagsma - yes . Motion carried.

B. Treasurer's Office

1) File 2nd Quarter 2021 Financial Report

Motioned by VanderStel and supported by Fryling to approve and file the 2nd Quarter 2021 Financial Report as presented by the Treasurer subject to audit.

ROLL CALL VOTE: Haagsma – yes, Fryling – yes, DeWard – yes, Brew – yes, VanderStel - yes, Terpstra – yes, Lemke – yes . Motion carried.

C. Water & Sewer Department

1) Payment Plan – 561 68th Street Sewer Connection

Motioned by Haagsma and supported by Lemke to approve the proposed payment plan for 561 68th Street sewer connection.

ROLL CALL VOTE: Lemke – yes, Haagsma – yes, Fryling – yes, DeWard – yes, Brew – yes, VanderStel - yes, Terpstra – yes. Motion carried.

D. Building Department

1) Professional Development Request

Motioned by Haagsma and supported by VanderStel to approve the professional development request for John Stuyfzand for the Code Officials Conference of Michigan.

ROLL CALL VOTE: Terpstra – yes, Lemke – yes, Haagsma – yes, Fryling – yes, DeWard – yes, Brew – yes, VanderStel - yes. Motion carried.

9. Recognition of individuals and/or delegations

None.

9. Supervisor / Township Manager Office

A. Troy with Mosher and Farnham Drain Project Assessment at large

Motioned by Haagsma and supported by VanderStel to enter a payment plan of \$36,015.47 at an interest rate of 2.92% over 15 years for payment of the Troy with Mosher and Farnham Drain Project Assessment.

ROLL CALL VOTE: VanderStel - no, Terpstra – no, Lemke – no, Haagsma – no, Fryling - yes DeWard – yes, Brew – yes Motion failed.

Motioned by Haagsma and supported by Fryling to pay the entire \$36,015.47 for payment of the Troy with Mosher and Farnham Drain Project Assessment not on a payment plan.

ROLL CALL VOTE: Brew – no, VanderStel – yes, Terpstra – yes, Lemke – yes, Haagsma – yes, Fryling – yes, DeWard – no. Motion carried

B. Maintenance Assessment for Township Drains

Motioned by Haagsma and supported by Fryling to pay \$22,149.11 for Township drains.

ROLL CALL VOTE: DeWard – yes, Brew – yes, VanderStel – yes, Terpstra – yes, Lemke – yes, Haagsma – yes, Fryling – yes. Motion carried.

C. Establish Investment Committee.

Motioned by Haagsma and supported by Terpstra to table this item to allow the board to reach out to the community to be involved in the committee.

VOICE VOTE: All Ayes. Motion Carried.

10. Comments & Discussion

Attention brought to the watercolor drawing hanging in the board chambers of the original homestead and barns for the property that contains the Township Hall and Prairie Wolf Park. The drawing was created by artist Noel Skiba and donated to the township by Janet Schoen Wiseman.

11. Adjournment

Motion by Haagsma and supported by DeWard to adjourn the meeting at 10:40 p.m.

VOICE VOTE: All Ayes. Meeting adjourned.

Michael Brew, Clerk

Robert DeWard, Supervisor



Revenue Breakdown Report

Page:

09/01/2021

Filter: All Records, Transaction.DateToPostOn Between 8/1/2021 12:00:00 AM AND 8/31/2021 11:59:59 PM

Unit Totals

Unit Name	Records	Revenue
	183	38,999.65
TOTAL	183	38,999.65

Record Type Totals

Unit:	Records	Revenue
Name	4	90.00
Permit	179	38,909.65
UNIT TOTAL:	183	38,999.65

Record Type Breakdowns

Unit:	Records	Revenue
Record Type: Name	4	90.00
TOTAL:	4	90.00

Record Type: Permit	Records	Revenue
Building	30	10,430.00
Deck	2	260.00
Electrical	33	7,554.00
Mechanical	71	15,542.65
Plumbing	25	3,408.00
Residential Roofing	14	1,260.00
Swimming Pool	2	260.00
Water Heater Replacement	2	195.00
TOTAL:	179	38,909.65

09/06/2021 01:14 PM
User: MBREW
DB: Gaines Township

CHECK REGISTER FOR GAINES CHARTER TOWNSHIP
CHECK DATE FROM 08/01/2021 - 08/31/2021

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Check Date	Bank	Check	Vendor	Vendor Name	Description	Amount
Bank GEN 2 MACATAWA BANK						
08/06/2021	GEN 2	30041	123	123.NET	AUGUST 2021 TWP	251.50
08/06/2021	GEN 2	30042	5 ALARM	5 ALARM FIRE AND SAFETY EQPT L	DFD COAT AND PANT	2,256.95
08/06/2021	GEN 2	30043	ADVANCED I	ADVANCED IMAGING SOLUTIONS INC	STANDARD PAYMENT	729.45
08/06/2021	GEN 2	30044	APOLLO	APOLLO FIRE EQUIPMENT CO.	DFD PRO-TECH 8 FUSION GLOVES	1,473.76
08/06/2021	GEN 2	30045	ARROW	ARROWASTE INC	LIBRARY TRASH REMOVAL	61.72
					TWP OFFICE TRASH REMOVAL	66.43
					DFD TRASH REMOVAL	44.48
					CFD TRASH REMOVAL	105.91
					BLAIN TRASH REMOVAL	52.36
						330.90
08/06/2021	GEN 2	30046	BOUND TREE	BOUND TREE MEDICAL LLC	G3 PERFUSION, PULSE OXIMETER, G3 TIDAL V	683.98
					CURAPLEX GLOVES	154.25
						838.23
08/06/2021	GEN 2	30047	CHARTER CO	CHARTER COMMUNICATIONS	TWP OFFICE COMMUNICATIONS	154.97
08/06/2021	GEN 2	30048	TWP-CONSUM	CONSUMERS ENERGY	STREETLIGHTS	13,649.35
					DIVISION STREET LIGHTS	83.83
					DIVISION STREET LIGHTS	84.39
					DIVISION STREET LIGHTS	81.77
					LIBRARY	1,072.25
					TWP OFFICE	4,998.42
					DFD	1,115.81
					DUTTON CEMETERY	29.28
					DIVISION STREET LIGHTS	76.83
					CFD	1,247.49
					BLAIN CEMETERY	38.71
					BLAIN CEMETERY	29.73
						22,507.86
08/06/2021	GEN 2	30049	EPS	E.P.S.INC.	CFD SECURITY	378.00
08/06/2021	GEN 2	30050	EVERETT'S	EVERETT'S LANDSCAPE MANAGEMENT INC	WILLOW BUSH WORK	663.00
					CUT UP DOWNED TREE, LAWN CUTS	634.00
						1,297.00
08/06/2021	GEN 2	30051	FIRST BANK	FIRST BANKCARD CENTER	ENGINE SIDE WARNING LIGHTS, COLLECTION C	721.63
08/06/2021	GEN 2	30052	FIRST BANK	FIRST BANKCARD CENTER	ACROBAT SUBSCRIPTION	15.89
08/06/2021	GEN 2	30053	FIRST BANK	FIRST BANKCARD CENTER	IPHONE CASE AND CABLE, MAMC SEMINARS	240.48
08/06/2021	GEN 2	30054	FIRST BANK	FIRST BANKCARD CENTER	DIVISION AVENUE, TOWNSHIP PEST SPRAY	90.44
08/06/2021	GEN 2	30055	FIRST BANK	FIRST BANKCARD CENTER	FUEL AND OIL, BATTERY,	397.92
08/06/2021	GEN 2	30056	FIRST BANK	FIRST BANKCARD CENTER	MUNICIPAL LEAGUE REGISTRATION, ACROBAT	213.01
08/06/2021	GEN 2	30057	HORIZON	HORIZON COMMUNITY PLANNING LLC	GENERAL ASSISTANCE, EVERETTS, 60TH STREE	2,070.00
08/06/2021	GEN 2	30058	INTEGRITY	INTEGRITY OFFICE	ADHESIVE, PLATE	19.16
					LABELS	32.99
					STAMP	33.30
					HANGING FILE FOLDERS, FILE FOLDERS	30.87
						116.32
08/06/2021	GEN 2	30059	IPM	IPM SERVICES	DFD PEST CONTROL	25.00
					TWP OFFICE PEST CONTROL	42.00

Check Date	Bank	Check	Vendor	Vendor Name	Description	Amount
					CFD PEST CONTROL	25.00
						92.00
08/06/2021	GEN 2	30060	J&B	J&B MEDICAL SUPPLY	GAUZE DRESSINGS	21.30
					WRIST SPLINTS, LATEX FREE AIRWAY	54.08
						75.38
08/06/2021	GEN 2	30061	SEYFERTH J	JONATHAN SEYFERTH	MILEAGE AND FLIGHTS	1,389.12
08/06/2021	GEN 2	30062	KLEYN	KLEYN MOBILE REPAIR LLC	LEAKS IN SEVERAL PLACES, INSPECTION	342.93
					PUMP HAS FUEL IN THE OIL,	727.63
						1,070.56
08/06/2021	GEN 2	30063	MCDONALD	MCDONALD PLUMBING INC	TWP OFFICE	74.00
				Void Reason: DOUBLE BILLING		
08/06/2021	GEN 2	30064	MEDMUTUAL	MEDMUTUAL LIFE	LIFE INSURANCE SEPTEMBER 2021	297.79
08/06/2021	GEN 2	30065	MEDMUTUALE	MEDMUTUAL LIFE	\$60E PER ELECTED OFFICIAL	210.00
08/06/2021	GEN 2	30066	PEOPLE	PEOPLE IT	CFD NETWORK	369.00
08/06/2021	GEN 2	30067	PHASE III	PHASE 3 GRAPHICS	BUSINESS CARDS SEYFERTH	59.08
08/06/2021	GEN 2	30068	PURITY	PURITY CYLINDER GASES INC	CFD MEDICAL OXYGEN	82.35
08/06/2021	GEN 2	30069	RESCUE RES	RESCUE RESOURCES LLC	DFD EXTRICATION CLASS	150.00
08/06/2021	GEN 2	30070	RHINO SEED	RHINO SEED AND LANDSCAPE LLC	EZ STRAW SEEDING MULCH W/ TACK	105.72
08/06/2021	GEN 2	30071	WHITE GLOV	WHITE GLOVE CLEANING & MAINTENANCE	CFD DEEP CLEANED ALL OFFICE AREA CARPET	328.00
08/20/2021	GEN 2	30072	123	123.NET	TELEPHONY	251.50
08/20/2021	GEN 2	30073	5 ALARM	5 ALARM FIRE AND SAFETY EQPT L	CAIRNS LEATHERETTE FRONT	253.97
08/20/2021	GEN 2	30074	AMAZON	AMAZON CAPITAL SERVICES	CFD LETTER SIZE FILE FOLDERS, FILE TRAY	37.86
					RECIPROCATING SAW BLADES	61.00
						98.86
08/20/2021	GEN 2	30075	APOLLO	APOLLO FIRE EQUIPMENT CO.	GLOVES FOR DFD	155.40
08/20/2021	GEN 2	30076	AUTOZONE	AUTOZONE	CFD PARTS	6.13
08/20/2021	GEN 2	30077	BLOOM	BLOOM SLUGGETT	SPECIAL ASSESSMENT DISTRICT, W2, HIDEAWA	3,075.00
08/20/2021	GEN 2	30078	BLUE CROSS	BLUE CROSS BLUE SHIELD TRADITIONAL	HEALTH INSURANCE TRADITIONAL PLAN	4,978.77
08/20/2021	GEN 2	30079	BLUE HSA	BLUE CROSS HSA	ADDED 1 FROM BUILDING, 1 FROM SUPERVISOR	12,451.02
08/20/2021	GEN 2	30080	BS&A SOFTW	BS&A SOFTWARE	ONLINE SERVICES, COMMUNITY DEVELOPMENT,	6,288.00
08/20/2021	GEN 2	30081	CASCADE	CASCADE CHARTER TOWNSHIP	2021 ANNUAL PARTNER CONTRIBUTION TO HAZM	2,000.00
08/20/2021	GEN 2	30082	CINTAS	CINTAS CORPORATION #301	MATS TWP OFFICE	76.94
08/20/2021	GEN 2	30083	COCM	CODE OFFICIALS CONFERENCE OF MI	MEMBERSHIP FEES	45.00
					2021 FALL CONFERENCE	285.00
						330.00
08/20/2021	GEN 2	30084	COMCAST	COMCAST	CFD TELOPHONY	252.42
08/20/2021	GEN 2	30085	TWP-CONSUM	CONSUMERS ENERGY	LED LIGHTS	514.61
08/20/2021	GEN 2	30086	DELTA DENT	DELTA DENTAL	SEPTEMBER 2021 DENTAL	1,761.33
08/20/2021	GEN 2	30087	D.J.S	DJ'S LANDSCAPE MANAGEMENT	CONTRACT MONTHLY INSTALLMENT	1,598.00
					LIBRARY CONTRACT MONTHLY INSTALLMENT	143.38
						1,741.38
08/20/2021	GEN 2	30088	EARLEPRESS	EARLEPRESS INC	CIVIL INFRACTION TICKET BOOKLETS	600.11
08/20/2021	GEN 2	30089	FIRST BANK	FIRST BANKCARD CENTER	ACROBAT, ASSESSOR CONFERENCE AND LODGING	1,056.92
08/20/2021	GEN 2	30090	GORDON	GORDON WATER	WATER AND COOLER RENTAL	27.85
08/20/2021	GEN 2	30091	ITP	INTERURBAN TRANSIT PARTNERSHIP	GO BUS SERVICE	767.50
					RUAL LINEHAUL SERVICE	3,776.10

Check Date	Bank	Check	Vendor	Vendor Name	Description	Amount
						4,543.60
08/20/2021	GEN 2	30092	JAMES ZENA	JAMES ZENAS	CONFERENCE EXPENSES	331.71
08/20/2021	GEN 2	30093	JOHN S	JOHN STUYFZAND	MI PERMIT LIC PLAN REV	225.00
08/20/2021	GEN 2	30094	KC DRAIN	K.C. DRAIN COMMISSION	15 YEAR DRAIN ASSESSMENT - BOARD PASSED	22,149.11
08/20/2021	GEN 2	30095	GEHRLS K	KAREN GEHRLS	BREAKFAST, LUNCH, AND MILEAGE	257.71
08/20/2021	GEN 2	30096	KCI	KENT COMMUNICATIONS INC	SAD MAILING COSTS	5,257.35
08/20/2021	GEN 2	30097	KENT COUNT	KENT COUNTY ROAD COMMISSION	GAINES TWP - CHIP SEAL	1,762.62
					84TH ST - DIVISION TO EASTERN SEWER	7,458.50
						9,221.12
08/20/2021	GEN 2	30098	KCTREASURE	KENT COUNTY TREASURER	TOWNSHIP LAW - JUNE 2021	75,972.03
08/20/2021	GEN 2	30099	TRIPLETT	KIM TRIPLETT	CELL PHONE AND FLAGS	42.02
08/20/2021	GEN 2	30100	KLEYN	KLEYN MOBILE REPAIR LLC	PIPE LEAKING TANK TO PUMP VALVE	319.77
08/20/2021	GEN 2	30101	LAMPHEAR	LAMPHEAR SERVICE COMPANY INC	REPAIR ON AC UNIT	1,306.00
08/20/2021	GEN 2	30102	MAYNARDS	MAYNARDS WATER CONDITIONING LLC	RED OUT SALT	160.80
08/20/2021	GEN 2	30103	MED-1	MED-1 BRETON	2 PHYSICALS	1,002.00
					CFD 2 PHYSICALS	1,040.00
						2,042.00
08/20/2021	GEN 2	30104	OMEGA SYST	OMEGA SYSTEMS, OCEAN INC.	SERVER UPDATES, JONATHAN VPN, DAN VPN,	281.25
08/20/2021	GEN 2	30105	PHASE III	PHASE 3 GRAPHICS	BUSINESS CARDS	59.08
					LEMKE BUSINESS CARDS	59.00
						118.08
08/20/2021	GEN 2	30106	PIT BO INC	PITNEY BOWES INC	RED INK AND E-Z SEAL	185.71
08/20/2021	GEN 2	30107	PLUMMERS	PLUMMERS DISPOSAL SERVICE	WHEELCHAIR UNITS	155.00
08/20/2021	GEN 2	30108	PROF CODE	PROFESSIONAL CODE INSPECTIONS INC	MECHANICAL AND PLUMBING INSPECTIONS	6,260.00
08/20/2021	GEN 2	30109	ROGER STER	ROGER STERK	MI PERMIT LIC PLAN REV	150.00
					JULY 2021 MILEAGE	150.08
						300.08
08/20/2021	GEN 2	30110	TWP-SIEGFR	SIEGFRIED CRANDALL VOS & LEWIS	ACCOUNTING ISSUES MEETING	420.00
08/20/2021	GEN 2	30111	BREATHING	SUB-AQUATICS INC	CFD PARTS FOR AIR SYSTEMS	1,049.25
08/20/2021	GEN 2	30112	TDS	TDS METROCOM	TWP OFFICE TELEPHONY	286.73
08/20/2021	GEN 2	30113	SUN NEWS	THE SUN AND NEWS	PUBLIC HEARINGS, ORDINANCES, SYNOPSIS	873.48
08/20/2021	GEN 2	30114	TUFF TURF	TUFF TURF MOLEBUSTERS	DIV AVENUE WORK	203.00
08/20/2021	GEN 2	30115	UNIQUE	UNIQUE TRUCK EQUIPMENT	SPANISH TRANSLATION SERVICES	100.00
08/20/2021	GEN 2	30116	VRIESMAN	VRIESMAN & KORHORN LLC	EAST PARIS YARD	465.00
					MISCELLANEOUS ENGINEERING	837.74
					SWITCH PHASE 2	537.00
					ALEXANDER TRAILS	270.16
					HIDEAWAY SITE CONDOS	660.00
					60TH STREET SIDEWA;LS	224.00
					DUTTON CHR MS ADD PHASE 2	951.00
						3,944.90
08/20/2021	GEN 2	30117	WARD	WARD DIESEL FILTER SYSTEMS	NO SMOKE DIESEL EXHAUST REMOVAL AND REIN	6,991.25
08/20/2021	GEN 2	30118	WEST SHORE	WEST SHORE FIRE INC	SURESEAL	56.00
08/20/2021	GEN 2	30119	MARATHON	WEX BANK	CFD FUEL	1,045.24
					DFD FUEL	868.13
						1,913.37

09/06/2021 01:14 PM
 User: MBREW
 DB: Gaines Township

CHECK REGISTER FOR GAINES CHARTER TOWNSHIP
 CHECK DATE FROM 08/01/2021 - 08/31/2021

Page: 4/5

Check Date	Bank	Check	Vendor	Vendor Name	Description	Amount
08/20/2021	GEN 2	30120	WOWIE.CO	WOWIE.CO	YEARLY HOSTING FOR CUTLERVILLEFIRE.COM	360.00
08/27/2021	GEN 2	30121	ACCIDENT	ACCIDENT FUND	WORKERS COMP WITH INCREASE EXTRA PAYMENT AFTER AUDIT	4,576.08 5,281.00 9,857.08
08/27/2021	GEN 2	30122	AMAZON	AMAZON CAPITAL SERVICES	LYSOL, ELECTRIC PENCIL SHARPENER, PERMAN DFD TOILET TISSUE	51.77 45.98 97.75
08/27/2021	GEN 2	30123	BOUND TREE	BOUND TREE MEDICAL LLC	OXYGEN REGULATOR STERILE WATER, CURAPLEX PATIENT TRANSPOR	3.34 60.94 64.28
08/27/2021	GEN 2	30124	COMCAST	COMCAST	DFD TELEPHONE	175.05
08/27/2021	GEN 2	30125	TWP-CONSUM	CONSUMERS ENERGY	DIVISION STREET LIGHTS LIBRARY TWP OFFICE ELECTRIC DFD ELECTRIC DUTTON CEMETERY ELECTRIC	87.23 1,187.64 5,029.67 1,131.82 29.28 7,465.64
08/27/2021	GEN 2	30126	DTE	DTE ENERGY	DFD GAS LIBRARY GAS TWP HALL GAS CFD GAS	56.65 37.73 263.19 50.71 408.28
08/27/2021	GEN 2	30127	ED WIERENG	ED WIERENGA	CFD REPLACEMENT BEDS	3,200.00
08/27/2021	GEN 2	30128	FIRE SALES	FIRE FIGHTER SALES & SERVICE	SERVICE CALL AND RECHARGE	138.90
08/27/2021	GEN 2	30129	GORDON	GORDON WATER	WATER, BOTTLE DEPOSIT, COOLER RENTAL	42.25
08/27/2021	GEN 2	30130	IPM	IPM SERVICES	DFD PEST CONTROL TWP OFFICE PEST CONTROL LIBRARY PEST CONTROL	25.00 42.00 25.00 92.00
08/27/2021	GEN 2	30131	LAMPHEAR	LAMPHEAR SERVICE COMPANY INC	TWP OFFICE AIR CONDITIONER LEAK	893.75
08/27/2021	GEN 2	30132	MARKS BODY	MARK'S BODY SHOP	CUSTOM LEATHER HELMET FRONT	52.95
08/27/2021	GEN 2	30133	MEGAN VAN	MEGAN VANHOOSE	VOYA REFUND OVERPAYMENT	279.05
08/27/2021	GEN 2	30134	MENARDS	MENARDS- WYOMING	DOOR STOP, FILM AND APPLICATION KIT, DRA	61.93
08/27/2021	GEN 2	30135	MIKA	MIKA, MEYERS, BECKETT & JONES	TODD SZAKACS MATTER	158.00
08/27/2021	GEN 2	30136	O'NEIL TRE	O'NEIL TREE SERVICE	TREE REMOVAL IN GAINES CEMETERY	1,400.00
08/27/2021	GEN 2	30137	PRINTING S	PRINTING SYSTEMS	TAX FUND CHECKS TRUST AND AGENCY CHECKS	140.16 140.16 280.32
08/27/2021	GEN 2	30138	NEXTEL	SPRINT	JULY - AUGUST 2021	324.18
08/27/2021	GEN 2	30139	STAPLES 3	STAPLES	ASSESSING BINDERS	34.98
08/27/2021	GEN 2	30140	STAR	STAR 2 STAR COMMUNICATIONS	DFD TELEPHONES TWP OFFICE TELEPHONES	358.41 810.34 1,168.75

CHECK DATE FROM 08/01/2021 - 08/31/2021

Check Date	Bank	Check	Vendor	Vendor Name	Description	Amount
08/27/2021	GEN 2	30141	VANDERTUIN	VANDERTUIN PLUMBING	CFD FIRE BOARD APPROVED REPLACE WATER HE	1,830.00
08/27/2021	GEN 2	30142	WAYNE B	WAYNE BOURDO	TRASH SERVICE DOG WALK	135.00
					LANDSCAPE MAINT TOWNSHIP OFFICE LIBRARY	919.57
						<u>1,054.57</u>
GEN 2 TOTALS:						
Total of 102 Checks:						248,713.55
Less 1 Void Checks:						74.00
Total of 101 Disbursements:						<u>248,639.55</u>

Gaines Charter Township

Board of Trustees Memo

Meeting Date: September 13th, 2021

PROPOSED REQUEST: Final PUD Plan/Rezone

FILE NUMBER: 210419BD

ADDRESS: 7884, 7788, 7920 Eastern Avenue

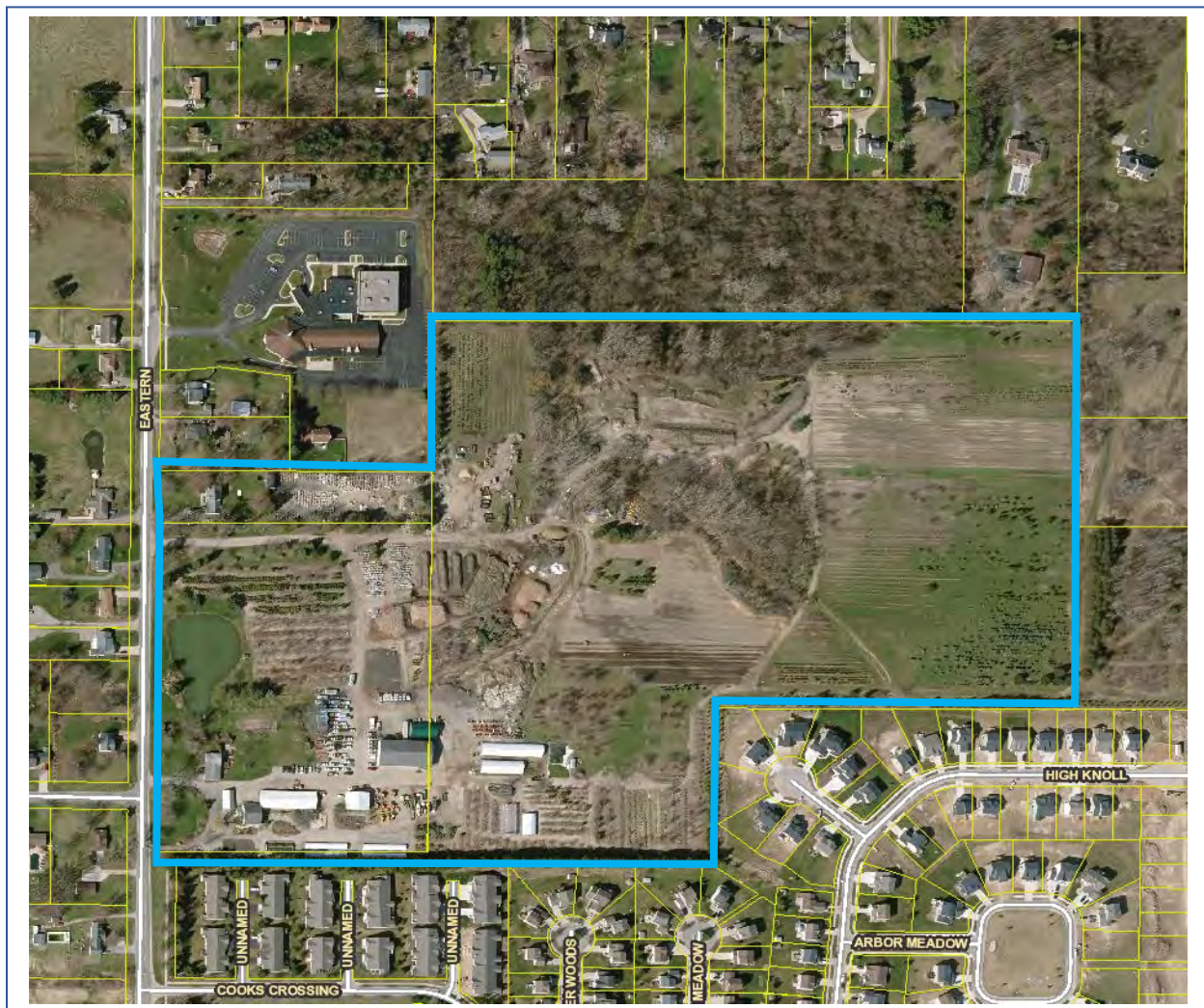
PROPERTY ZONING DISTRICT: RL-14

PARCEL NUMBERS: 41-22-17-100-015; 41-22-17-100-014; 41-22-17-100-026

PROPERTY SIZE: 56 Acres

APPLICANT: Brent Diemer

REPORT BY: Dan Wells, Community Development Director; David Jirousek, AICP, Planning Consultant



OVERVIEW

On August 9th, the Board of Trustees approved a resolution to rezone the property and approve the site plan. That meeting was intended to be the first read of the proposed project, and that resolution will need to be rescinded as the rezoning has not been properly noticed for a public hearing. Once the prior resolution is rescinded, a resolution may be considered to hold a public hearing at the next Board meeting.

The applicant requests approval of a final PUD plan and rezoning for Everett's Landscaping facility and nursery site on Eastern Avenue. The existing business has been in operation for 65 years, and the current RL-14 zoning designation and nonconforming use status limits the ability to expand operations and further improve the site. The property currently includes two homes, accessory buildings, storage buildings, and an office building. The site also includes outdoor material storage, and the majority of the acreage consists of outdoor planted nursery stock and wooded area.

Proposed improvements as part of the PUD project include:

1. Public utility service connections
2. Improved driveway access from Eastern Avenue
3. 49-space parking lot
4. Four new buildings:
 - a. Office and maintenance building: 18,125 square feet with future additions
 - b. Equipment storage building: 16,000 square feet
 - c. Other future buildings (details not provided).
5. Stormwater management improvements

Surrounding zoning:

	NORTH: RL-14	
WEST: RL-10	SUBJECT PARCEL	EAST: RL-14
	SOUTH: Cook's Crossing PUD	

PROCESS

Review of the PUD application is subject to the following process:

1. Preliminary PUD plan review and Planning Commission approval based on Section 11.1 (held May 27th).
2. Final PUD plan review based on Section 25.3 and a public hearing held by the Planning Commission (held June 24th).
3. Recommendation concerning the final PUD plan and rezoning by the Planning Commission through a resolution and draft ordinance (held July 22nd).
4. Review by the Township Board at first reading (September 13th, 2021).
5. Review, public hearing, and approval of the final PUD plan and rezoning by the Township Board at second reading.

PLANNING COMMISSION RECOMMENDATION

The Planning Commission approved a recommendation to approve the site plan and rezoning for the project on July 22nd, 2021. As directed by the Planning Commission, a resolution was prepared that outlines the findings related to the PUD along with recommended conditions of approval.

The board has two options at this stage of the process per Section 10.4 of the zoning ordinance.

1. Set a public hearing for consideration of the final PUD site plan dated 04/14/2021 and rezoning.
2. If the Board has questions about the plans or desires the planning commission to review a concern the Board has, they may send the site plans back to the Planning Commission for re-consideration. The Planning Commission would then provide the Board with another recommendation for consideration.

ATTACHED ITEMS

- Proposed PUD Resolution
- Proposed PUD Ordinance
- Proposed Site Plan

CHARTER TOWNSHIP OF GAINES COUNTY OF KENT, MICHIGAN

RESOLUTION NO. 21-07-22-02 PC

The following Resolution was offered and adopted by the Gaines Charter Township Planning Commission at a regular meeting held on July 22nd, 2021.

Members Present: Burns, Giarmo, Rober, Waayenberg, Billips, Thomas

Member Absent: Haagsma

The following Resolution was offered for adoption by Planning Commissioner Waayenberg and supported by Planning Commissioner Rober to document the findings and the recommendation of approval by the Gaines Charter Township Planning Commission regarding a request made by Brent Diemer on behalf of Everett's Landscaping to approve a Final PUD Site Plan and PUD rezoning.

RECOMMENDATION REGARDING A FINAL PUD SITE PLAN AND PUD REZONING FOR EVERETT'S LANDSCAPING AT 7884, 7788, AND 7920 EASTERN AVENUE

Section I General Background:

1. The Planning Commission is authorized to review Final PUD Plans and PUD rezonings and provides recommendations the Township Board.
2. The applicant requests approval of a final PUD plan and rezoning for Everett's Landscaping facility and nursery site on Eastern Avenue. Proposed improvements as part of the PUD project include:
 - a. Public utility service connections.
 - b. Improved driveway access from Eastern Avenue.
 - c. 49-space parking lot.
 - d. Four new buildings:
 - i. Office and maintenance building: 18,125 square feet with future additions.
 - ii. Equipment storage building: 16,000 square feet.
 - iii. Other buildings indicated as "future" on site plan (details not provided and are not approved).

- e. Stormwater management improvements.
- 3. The subject plans are titled “Everett’s Landscape” and were prepared by The Architectural Group, Inc., revised April 14, 2021.
- 4. The property subject to the PUD is located at 7884, 7788, and 7920 Eastern Avenue and includes parcel numbers 41-22-17-100-015; 41-22-17-100-014; 41-22-17-100-026.
- 5. The Planning Commission held a public hearing on the PUD on June 24, 2021.

Section II PUD Standards of Review- Findings:

Based on the material and plans submitted, a review of the relevant portions of the Gaines Charter Township Zoning Ordinance (“the Zoning Ordinance”), the applicant’s presentation at the public hearing, and Township Staff’s recommendation, and other factors, the Planning Commission hereby adopts the following findings per Section 11.1 Planned Unit Development General Review Standards.

- A. *Consistency with Master Plan and Zoning Ordinance: The Planned Unit Development must further the goals and objectives of the Township Master Plan and must be consistent with it. It must also be consistent with the intent and purpose of this Zoning Ordinance.*

Meets standard. Preserving the site as a nursery and landscaping business will assist the Township’s efforts to maintain rural character and to protect open spaces. The open space preserved as part of the plan provides wildlife habitat and naturally infiltrates stormwater. Although it operates as a commercial business, supporting the business will ensure that the land remains a working nursery and lessens the likelihood of conversion to a residential neighborhood.

- B. *Aesthetics: The Planned Unit Development must be aesthetically pleasing and be an integrated development with respect to building facades, building materials, landscape and berming, noise and visual screening mechanisms, and signs. It should contribute to creating a distinctive attractive community with a strong sense of place.*

Meets standard. The site is generously landscaped and buffered, and additional landscaping will ensure it remains an aesthetically pleasing property. The size of the property allows for business operations and activities to be dispersed and separated from nearby residential dwellings. The proposed office building will block future utilitarian storage buildings from sight, and will add attractive architectural elements fronting Eastern Avenue.

- C. *Compatibility with Adjacent Uses: The Planned Unit Development must be compatible with surrounding uses. Efforts must be made to reduce any adverse effects on surrounding uses.*

Meets standard. The amount of open space, existing landscaping, and separation from existing residential areas will ensure that the expanded business operations are compatible with nearby single-family residential land uses.

- D. *Density: The density requirements of the proposed Planned Unit Development shall be based on the underlying land use district in the Master Plan. The Township Board, upon recommendation of the Planning Commission, may vary the density requirements if doing so would result in a development that better achieves the intent of the Master Plan.*

Meets standard. Two existing dwellings will be retained on the site, resulting in a very low residential density over 56 acres.

- E. *Traffic: The Planned Unit Development shall be designed to minimize the effect of traffic generated by the proposed development on surrounding uses. Consideration should be given to: 1. The amount and type of traffic generated by the proposed project and capacity of existing and proposed streets to safely absorb that additional traffic. Whether the streets and pedestrian walkways within each project are designed to facilitate safe pedestrian and vehicular traffic flow patterns. 3. All points of ingress and egress to the project shall be located and designed to maximize safety.*

Meets standard. Access is limited to existing driveways. However, one driveway will be improved to provide primary access to the new office and maintenance building. The increase in traffic is not anticipated to be significant based on existing versus proposed operations.

- F. *Protection of Natural Environment: Each project shall be designed to minimize adverse effects on the environment. Special emphasis shall be placed on maintaining the quality of air, soils, groundwater, streams, wetlands, and rivers.*

Meets standard. The majority of the site will remain wooded and as an active outdoor nursery stock growing area. The areas planned for buildings and parking are already cleared and used for material storage. No significant expansion into natural areas is anticipated.

- G. *Schools: Whether a project can be served by existing schools and school related facilities and the impact upon schools if the property is developed in accordance with the Planned Unit Development plans or in accordance with the conventional zoning district requirements shall both be considered. In addition, streets and pedestrian walkways shall be designed and located in any project to facilitate the ability of students to make the best and safest use of existing schools and school related facilities.*

Meets standard. The scope of the proposed PUD will have no impact on local school districts.

- H. *Public Facilities: The Planning Commission shall consider the impact a project will have on: 1. Public safety and protection services. 2. Water and sewer facilities. 3. The costs for such services. Each project shall be designed and located so as to facilitate use of, access to, or the logical expansion or extension of existing facilities in order to minimize any adverse financial or other impact upon the Township and to promote public health and safety.*

Meets standard, condition recommended. The plans were reviewed by the Township Engineer and Fire Department. Review comments should be satisfied as a condition of approval.

- I. *Water, Sewer, and Drainage Systems: A Planned Unit Development shall be served by a public or private water and sanitary sewer systems. The Kent County Health Department and/or the Township Engineer must approve the systems. A PUD shall also have a drainage system for surface water run-off which the Kent County Drain Commission and / or the Township Engineer must approve.*

Meets standard, condition recommended. The applicant should be required to comply with all of the requirements of the Township Engineer during the final PUD review. Review comments should be satisfied as a condition of approval.

- J. *Open Space: The Planning Commission and Township Board should consider whether the PUD permanently preserves significant amounts of open space or significant natural features. The Township Board may require, upon recommendation of the Planning Commission, that natural amenities such as, but not limited to, ravines, rock outcrops, wooded areas, tree or shrub specimens, unique wildlife habitat, ponds, streams, and wetlands be preserved as part of the open space system.*

Meets standard. The majority of the site will remain wooded and as an active outdoor nursery stock growing area. The areas planned for buildings and parking are already cleared and used for material storage. No significant expansion into existing open space is anticipated.

- K. *Non-Motorized Transportation Network: Projects within an identified trail network corridor may be required to construct a portion of the trail.*

Meets standard, condition recommended. The Planning Commission recommends a sidewalk along the Eastern Avenue frontage to continue the expansion of Township pedestrian facilities.

Section III Final PUD Plan Standards- Findings:

The Planning Commission hereby adopts the following findings per Section 25.6, Site Plan Review Standards.

- A. *Adequacy of Information: Whether the required information has been furnished in sufficiently complete and understandable form so as to allow an accurate description of the proposed use(s) and structure(s) in terms of density, location, area, height, bulk, placement, setbacks, performance characteristics, parking, and traffic circulation.*

Does not meet standard, conditions recommended. This standard will be met as long as conditions of approval are satisfied. The proposed office building will block future utilitarian storage buildings from sight, and will add attractive architectural elements fronting Eastern Avenue. All setbacks and dimensional standards are met, and excess parking is acceptable. Additional landscaping details are required, and may change over time.

- B. *Compliance with Township Master Plan: The site plan must comply with the Township Master Plan and its goals and objectives and any secondary plans that may have been adopted by the Township for the area containing the site.*

Meets standard. As stated in the preliminary PUD review, preserving the site as a nursery and landscaping business will assist the Township's efforts to maintain rural character and to protect open spaces.

- C. *Compliance with all Township Ordinances and Other Laws: The site plan must comply with the standards of this Ordinance and all other applicable Township ordinances, as well as all county, state, and federal regulations and laws.*

Condition recommended. The applicant is required to secure all applicable Township and outside agency approvals prior to site development, including Township Engineering/BGUA, Fire Department, Kent County Road Commission, and Kent County Drain Commission, as applicable.

- D. *Configuration of Uses: Whether there are ways in which the configuration of uses and structures could be changed that would improve the effect of the development on adjoining and nearby properties, persons, activities, and on the community, while allowing reasonable use of the property within the scope of district regulations and other regulations of this Ordinance that are applicable to the property and the proposed use and structures.*

Meets standard. The proposed final PUD plan will ensure that the existing business remains compatible with nearby residential development. The proposed building footprints are internal to the site and are significantly separated from nearby homes.

- E. *Preservation of Natural Features: The landscape, natural features, and topography shall be preserved in its natural state, insofar as practical, by minimizing tree and soil removal and alteration of natural features, and any grade changes shall be in keeping with the general appearance of neighboring developed areas.*

Meets standard. The majority of the site will remain wooded and as an active outdoor nursery stock growing area. The areas planned for buildings and parking are already cleared and used for material storage. No significant expansion into natural areas is anticipated.

- F. *Privacy: The site design must provide reasonable visual and sound screening and privacy for dwelling units on the site and on adjacent properties using fences, buffers, berms, and other measures, as appropriate.*

Meets standard. The new building will screen the outdoor storage area and outdoor activities from the public right-of-way. Existing buffers will continue to provide screening and visual relief for neighboring residents.

- G. *Safety: Buildings and uses shall be arranged and designed to provide emergency vehicle access. Site plans shall conform to all applicable fire codes.*

Condition recommended. All site plans, along with measures for fire protection and access, are subject to review and approval by the Fire Inspector.

- H. *Vehicular Circulation: The site design shall provide safe, convenient, and well defined vehicular and pedestrian circulation within and to/from the site. Access to/from the site shall be designed to minimize conflicts with traffic on adjacent streets. Shared curb cuts and service drives shall be utilized as necessary to reduce traffic conflicts and improve the functionality of the site.*

Meets standard, condition recommended. Access is limited to existing driveways. However, as stated earlier, one driveway will be improved to provide primary access to the new office and maintenance building. All work within the public right-of-way must be approved by the Kent County Road Commission.

- I. *Pedestrian Circulation: The site plan shall provide a pedestrian circulation system that is insulated as completely as is reasonably possible from the vehicular circulation system for safety and convenience.*

Meets standard, condition recommended. Concrete sidewalks will connect the parking area to the proposed office building. The Planning Commission recommends a sidewalk along the Eastern Avenue frontage to continue the expansion of Township pedestrian facilities.

- J. *Drainage: Site plans shall conform with the Kent County Drain Commission's surface water drainage standards and to the Township Stormwater Ordinance (and other applicable Township ordinances) with special attention given to proper site drainage so that removal of storm water will not adversely affect neighboring property owners. Stormwater management system and facilities shall preserve the natural drainage characteristics and enhance the aesthetics of the site to the maximum extent possible.*

Meets standard, condition recommended. The existing stormwater pond is proposed to be expanded to the north to accommodate the increase of impervious surfaces. Stormwater and utility plans are subject to review and approval by the Township Engineer.

- K. *Traffic Impact: Measures must be taken to reduce any adverse effects on existing roads, circulation patterns on the roads, or access to the site from the expected volume of traffic to be generated by the proposed use.*

Meets standard. The increase in traffic is not anticipated to be significant based on existing versus proposed operations.

- L. *Hazardous Materials: Sites which include storage of hazardous materials or waste, fuels, salt, or chemicals shall be designed to prevent spills and discharges of polluting materials to the surface of the ground, groundwater or nearby surface water bodies. Each site shall be designed to meet all applicable state and federal regulations.*

Condition recommended. All site plans, along with measures for fire protection, are subject to review and approval by the Fire Inspector.

M. *Public Health, Safety, or Welfare: The site plan must be adequate to provide for the health, safety, and general welfare of the persons and property on this site and in the neighboring community. The site plan and proposed buildings and uses must be reasonable and promote the goals and intent of this Ordinance. All elements of the site plan shall be designed to take into account the site's topography, the size and type of lot involved, the character of the adjoining properties, and the type and size of buildings. The site shall be developed so as not to impede the normal and orderly development or improvement of surrounding properties for uses permitted in this Ordinance. The site plan must be harmonious with and not injurious to existing and projected uses in the immediate area.*

Meets standard. The site is generously landscaped and buffered, and additional landscaping will ensure it remains an aesthetically pleasing property. The size of the property allows for business operations and activities to be dispersed and separated from nearby residential dwellings. The amount of open space, existing landscaping, and separation from existing residential areas will ensure that the expanded business operations are compatible with nearby development. The proposed site development is not anticipated to negatively impact adjacent properties and natural resources.

PLANNING COMMISSION RECOMMENDATION AND DECISION

The Planning Commission has determined that the preceding findings support the approval of the Final PUD Plan and PUD rezoning for Everett's Landscaping. The Planning Commission hereby recommends that the Township Board approves the final PUD plan and the PUD rezoning with the following conditions:

1. Provide a sidewalk along Eastern Avenue.
2. Excess parking is approved, and wheel stops/bumpers or curbing shall be shown on the site plan and installed.
3. Landscaping plan with front yard and parking lot landscaping points shall be calculated minimally under administrative review, and shall be reviewed administratively when changes are desired.
4. Site signage must follow the C-1 Neighborhood Commercial regulations with the exception that freestanding pole or pylon signs are not permitted.
5. Secure all Township department and outside agency approvals:
 - a. Township Engineer/BGUA.
 - b. Fire Department.
 - c. Kent County Road Commission.
 - d. Kent County Drain Commission.

The vote on the motion to adopt this Resolution was as follows:

YES: Burns, Giarmo, Rober, Waayenberg, Billips, Thomas

NO: None

ABSTAIN:

RESOLUTION DECLARED ADOPTED

CERTIFICATION

I hereby certify that the above is a true copy of a resolution adopted by the Gaines Charter Township Planning Commission at a meeting held on July 22, 2021.

Respectfully submitted,

A handwritten signature in cursive script that reads "Lani Thomas". The signature is written in black ink and is positioned above the printed name and title.

Lani Thomas, Secretary
Gaines Charter Township
Planning Commission

Dated: July 22, 2021

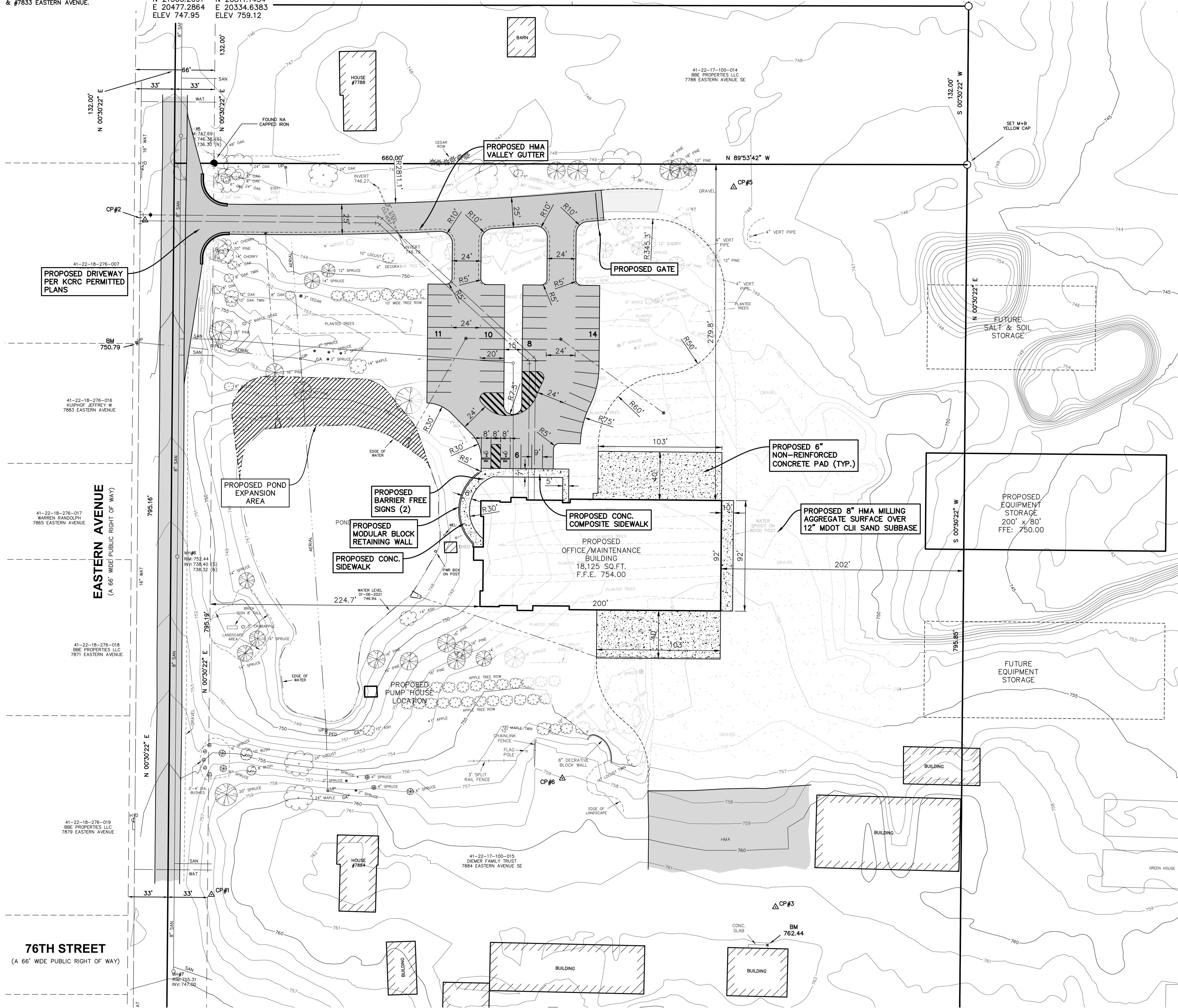
BENCHMARKS

ELEVATION = 752.44
NORTHEAST CORNER OF 3.7'x16' CONCRETE
SLAB, LOCATED ON THE NORTH SIDE OF
POLE BUILDING. JUST SOUTH OF CP#3.

ELEVATION = 750.79
RAILROAD SPIKE IN EAST SIDE OF UTILITY
POLE, LOCATED ON WEST SIDE OF
EASTERN AVENUE, BETWEEN HOUSE #7815
& #7833 EASTERN AVENUE.

CONTROL POINTS

CP#1 M+B RED CAP N 20714.3495 E 20042.5987 ELEV 758.80
CP#2 M+B RED CAP N 21275.7380 E 19987.2670 ELEV 749.58
CP#3 MAG NAIL N 20704.0315 E 20512.1232 ELEV 761.20
CP#4 M+B RED CAP N 21303.2091 E 20477.2864 ELEV 747.95
CP#5 M+B RED CAP N 20811.1434 E 20334.6383 ELEV 759.12



SITE PLAN GENERAL NOTES:

1. THE CONTRACTOR SHALL OBTAIN ALL PERMITS AND SURETY AS PART OF THIS WORK.
2. THE CONTRACTOR SHALL CALL MISS DIG 3 WORKING DAYS PRIOR TO THE START OF CONSTRUCTION.
3. THE CONTRACTOR SHALL FURNISH AND PLACE THE DRIVE APPROACH WITHIN THE PUBLIC RIGHT OF WAY IN ACCORDANCE WITH KENT COUNTY ROAD COMMISSION STANDARD CONSTRUCTION SPECIFICATIONS.
4. ALL STORM SEWER PIPE SHALL BE ADS N-12 PLASTIC PIPE UNLESS OTHERWISE SPECIFIED.
5. ALL CATCH BASINS AND MANHOLES SHALL BE MINIMUM 4' DIAMETER PRECAST CONCRETE, UNLESS NOTED OTHERWISE.
6. ALL OTHER PAVED AREAS SHALL BE CONSTRUCTED WITH:
12" MDOT CL-2 SAND SUBBASE (C.I.P.)
6" 21AA GRAVEL BASE (C.I.P.)
1 1/2" 3C HMA LEVELING COURSE
1 1/2" 4C HMA WEARING COURSE
7. THE CONTRACTOR SHALL BED AND BACKFILL ALL UNDERGROUND PIPING WITH MDOT CL-2 SAND TO A MINIMUM OF 95% MAXIMUM DRY DENSITY PER ASTM- 1557.
8. THIS SITE PLAN SHALL NOT BE USED TO STAKE THE LOCATION OF PROPOSED BUILDING COLUMN LINES. THE SURVEYORS ARE TO USE THE BUILDING FOUNDATION PLANS.
9. THE CONTRACTOR SHALL PLACE AND COMPACT FILL UNDER THE PROPOSED BUILDING AREA TO A MINIMUM OF 95% MAXIMUM DRY DENSITY PER ASTM-1557. ALL OTHER AREAS SHALL BE COMPACTED TO A MINIMUM OF 90% MAXIMUM DRY DENSITY.
10. THE CONTRACTOR SHALL PIPE ALL BUILDING ROOF WATER TO THE STORM WATER DETENTION POND AS SHOWN AND SPECIFIED.
11. THE CONTRACTOR SHALL REQUEST CONSTRUCTION STAKING BY EMAIL USING THE MOORE & BRUGGINK, INC. CONTRACTORS CONSTRUCTION STAKING REQUEST FORM. ONLY COMPLETED REQUESTS WILL BE SCHEDULED. NOTE THE PROJECT OWNER WILL PAY THE SURVEYOR TO PLACE STAKES ONLY ONCE. ALL LOST AND DAMAGED STAKES ARE THE CONTRACTORS RESPONSIBILITY.

PARKING REQUIREMENTS:

OFFICE: 3 SPACES/1,000 SQ.FT. x 8,500 SQ.FT. = 26 SPACES REQUIRED
49 SPACES PROVIDED

RL 14 ZONING DISTRICT

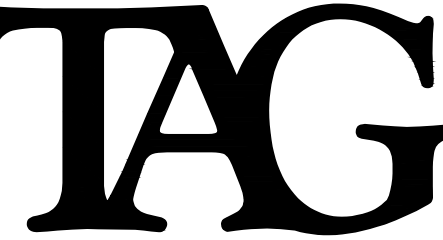
SET BACKS:

FRONT: 35'
SIDE: 8'
REAR: 35'



Moore+Bruggink
Consulting Engineers
2020 Monroe Ave.
Grand Rapids, MI 49505
(616) 363-9801 mailbox@mbce.com

SITE PLAN



The
Architectural
Group, Inc.

Architects
Planners

3100 Prairie S.W.
Grandville, MI 49418

Phone: 616.531.7040

Fax: 616.531.0221

www.TheArchitecturalGroup.com

Proposed:
Everett's Landscape

7884 Eastern Ave., Grand Rapids, Michigan

Dr. _____
Ap. EVZ

Date 4.14.2021 Issued For _____

File No. 2020-39

Drawing

C1.5

BENCHMARKS

ELEVATION - 762.44
NORTHEAST CORNER OF 3.7'x16' CONCRETE
SLAB, LOCATED ON THE NORTH SIDE OF
POLE BUILDING, JUST SOUTH OF CP#3.

ELEVATION - 750.79
RAILROAD SPIKE IN EAST SIDE OF UTILITY
POLE, LOCATED ON WEST SIDE OF
EASTERN AVENUE, BETWEEN HOUSE #7815
& #7833 EASTERN AVENUE.

CONTROL POINTS

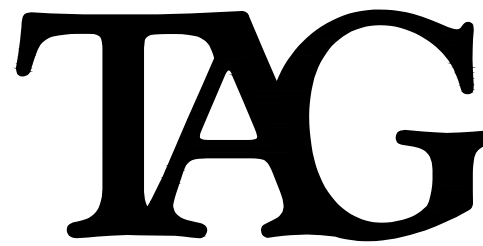
CP#1
M+B RED CAP
N 20714.3495
E 20042.5987
ELEV 758.80

CP#2
M+B RED CAP
N 21275.7380
E 19987.2670
ELEV 749.58

CP#3
MAG NAIL
N 20704.0315
E 20512.1232
ELEV 761.20

CP#5
M+B RED CAP
N 21303.2091
E 20477.2864
ELEV 747.95

CP#6
M+B RED CAP
N 20811.1434
E 20334.6383
ELEV 759.12



The
Architectural
Group, Inc.

Architects
Planners

3100 Prairie S.W.
Grandville, MI 49418

Phone: 616.531.7040
Fax: 616.531.0221

www.TheArchitecturalGroup.com

Proposed:
Everett's Landscape
7884 Eastern Ave., Grand Rapids, Michigan

Dr. _____
Ap. EVZ

Date 4.14.2021
Issued For _____

File No. 2020-39

Drawing

C1.8

Moore+Bruggink
Consulting Engineers
2020 Monroe Ave.
Grand Rapids, MI 49505
(616) 363-9801 mailbox@mbce.com

OVERALL SURVEY PLAN



**CHARTER TOWNSHIP OF GAINES
COUNTY OF KENT, MICHIGAN**

ORDINANCE NO. 2021-_____

The following Ordinance was offered and adopted by the Gaines Charter Township Board of Trustees at a regular meeting held on _____, 2021, at the Gaines Charter Township Offices, 8555 Kalamazoo Avenue, Caledonia, Michigan.

Members Present:

Member Absent:

The following ordinance was offered for adoption by Member _____ and supported by Member _____ to document the findings and approval of the Gaines Charter Township Board of Trustees regarding a request made by Brent Diemer on behalf of Everett's Landscaping to approve a Final PUD Plan and PUD rezoning.

**AN ORDINANCE TO APPROVE A FINAL PUD PLAN AND PUD REZONING
FOR EVERETT'S LANDSCAPING AT 7884, 7788, AND 7920 EASTERN
AVENUE**

THE CHARTER TOWNSHIP OF GAINES (the "Township") ORDAINS:

Section 1. Final PUD Plan and PUD Rezoning. The Gaines Charter Township Board of Trustees approves the Final PUD Plan and PUD rezoning for Everett's Landscaping. Proposed improvements as part of the PUD project include:

1. Public utility service connections.
2. Improved driveway access from Eastern Avenue.
3. 49-space parking lot.
4. Four new buildings:
 - a. Office and maintenance building: 18,125 square feet with future additions.
 - b. Equipment storage building: 16,000 square feet.
 - c. Other future buildings (details not provided and are not approved).
5. Stormwater management improvements.

Township Board Resolution No. 21-_____
Everett's Landscaping PUD

The property subject to the PUD is located at 7884, 7788, and 7920 Eastern Avenue and includes parcel numbers 41-22-17-100-015; 41-22-17-100-014; 41-22-17-100-026. The subject plans are titled "Everett's Landscape" and were prepared by The Architectural Group, Inc., revised April 14, 2021.

Section 2. Findings. For the relevant findings of fact, details, and conditions of approval, please see Resolution No. 2021-____.

Section 3. Effective Date. This Ordinance shall become effective seven (7) days after a summary is published in a newspaper of general circulation within the Township.

The vote in favor of this Ordinance was as follows:

YEAS: _____

NAYS: _____
ABSENT/ABSTAIN: _____

ORDINANCE DECLARED ADOPTED

CERTIFICATION

I hereby certify that the above is a true copy of an Ordinance adopted by the Township Board for Gaines Charter Township at the time, date, and place specified above pursuant to the required statutory procedures.

Respectfully submitted,

By _____

Michael Brew

Gaines Charter Township Clerk

CHARTER TOWNSHIP OF GAINES COUNTY OF KENT, MICHIGAN

RESOLUTION NO. 2021-_____

The following Resolution was offered and adopted by the Gaines Charter Township Board of Trustees at a regular meeting held on _____, 2021, at the Gaines Charter Township Offices, 8555 Kalamazoo Avenue, Caledonia, Michigan.

Members Present:

Member Absent:

The following Resolution was offered for adoption by Member _____ and supported by Member _____ to document the findings and decision by the Gaines Charter Township Board of Trustees regarding a request made by Brent Diemer on behalf of Everett's Landscaping to approve a Final PUD Plan and PUD rezoning.

APPROVAL OF A FINAL PUD PLAN AND PUD REZONING FOR EVERETT'S LANDSCAPING AT 7884, 7788, AND 7920 EASTERN AVENUE

Section I General Background:

1. The applicant requests approval of a final PUD plan and rezoning for Everett's Landscaping facility and nursery site on Eastern Avenue. Proposed improvements as part of the PUD project include:
 - a. Public utility service connections.
 - b. Improved driveway access from Eastern Avenue.
 - c. 49-space parking lot.
 - d. Four new buildings:
 - i. Office and maintenance building: 18,125 square feet with future additions.
 - ii. Equipment storage building: 16,000 square feet.
 - iii. Other future buildings (details not provided and are not approved).
 - e. Stormwater management improvements.
2. The subject plans are titled "Everett's Landscape" and were prepared by The Architectural Group, Inc., revised April 14, 2021.

3. The property subject to the PUD is located at 7884, 7788, and 7920 Eastern Avenue and includes parcel numbers 41-22-17-100-015; 41-22-17-100-014; 41-22-17-100-026.
4. The Planning Commission held a public hearing on the PUD on June 24, 2021, and recommended approval of the final PUD plan and PUD rezoning.

Section II PUD Standards of Review- Findings:

Based on the material and plans submitted, a review of the relevant portions of the Gaines Charter Township Zoning Ordinance (“the Zoning Ordinance”), the applicant’s presentation at the public hearings, Township Staff recommendation, Planning Commission recommendation, and other factors, the Gaines Charter Township Board of Trustees hereby adopts the following findings per Section 11.1 Planned Unit Development General Review Standards.

- A. *Consistency with Master Plan and Zoning Ordinance: The Planned Unit Development must further the goals and objectives of the Township Master Plan and must be consistent with it. It must also be consistent with the intent and purpose of this Zoning Ordinance.*

Meets standard. Preserving the site as a nursery and landscaping business will assist the Township’s efforts to maintain rural character and to protect open spaces. The open space preserved as part of the plan provides wildlife habitat and naturally infiltrates stormwater. Although it operates as a commercial business, supporting the business will ensure that the land remains a working nursery and lessens the likelihood of conversion to a residential neighborhood.

- B. *Aesthetics: The Planned Unit Development must be aesthetically pleasing and be an integrated development with respect to building facades, building materials, landscape and berming, noise and visual screening mechanisms, and signs. It should contribute to creating a distinctive attractive community with a strong sense of place.*

Meets standard. The site is generously landscaped and buffered, and additional landscaping will ensure it remains an aesthetically pleasing property. The size of the property allows for business operations and activities to be dispersed and separated from nearby residential dwellings. The proposed office building will block future storage buildings from sight and will include added architectural details on the Eastern Avenue fronting elevation, forward of the metal building component.

- C. *Compatibility with Adjacent Uses: The Planned Unit Development must be compatible with surrounding uses. Efforts must be made to reduce any adverse effects on surrounding uses.*

Meets standard. The amount of open space, existing landscaping, and separation from existing residential areas will ensure that the expanded business operations are compatible with nearby single-family residential land uses.

- D. *Density: The density requirements of the proposed Planned Unit Development shall be based on the underlying land use district in the Master Plan. The Township Board, upon recommendation of the*

Planning Commission, may vary the density requirements if doing so would result in a development that better achieves the intent of the Master Plan.

Meets standard. Two existing dwellings will be retained on the site, resulting in a very low residential density over 56 acres.

- E. *Traffic: The Planned Unit Development shall be designed to minimize the effect of traffic generated by the proposed development on surrounding uses. Consideration should be given to: 1. The amount and type of traffic generated by the proposed project and capacity of existing and proposed streets to safely absorb that additional traffic. Whether the streets and pedestrian walkways within each project are designed to facilitate safe pedestrian and vehicular traffic flow patterns. 3. All points of ingress and egress to the project shall be located and designed to maximize safety.*

Meets standard. Access is limited to existing driveways. However, one driveway will be improved to provide primary access to the new office and maintenance building. The increase in traffic is not anticipated to be significant based on existing versus proposed operations.

- F. *Protection of Natural Environment: Each project shall be designed to minimize adverse effects on the environment. Special emphasis shall be placed on maintaining the quality of air, soils, groundwater, streams, wetlands, and rivers.*

Meets standard. The majority of the site will remain wooded and as an active outdoor nursery stock growing area. The areas planned for buildings and parking are already cleared and used for material storage. No significant expansion into natural areas is anticipated.

- G. *Schools: Whether a project can be served by existing schools and school related facilities and the impact upon schools if the property is developed in accordance with the Planned Unit Development plans or in accordance with the conventional zoning district requirements shall both be considered. In addition, streets and pedestrian walkways shall be designed and located in any project to facilitate the ability of students to make the best and safest use of existing schools and school related facilities.*

Meets standard. The scope of the proposed PUD will have no impact on local school districts.

- H. *Public Facilities: The Planning Commission shall consider the impact a project will have on: 1. Public safety and protection services. 2. Water and sewer facilities. 3. The costs for such services. Each project shall be designed and located so as to facilitate use of, access to, or the logical expansion or extension of existing facilities in order to minimize any adverse financial or other impact upon the Township and to promote public health and safety.*

Meets standard, condition included. The plans were reviewed by the Township Engineer and Fire Department. Review comments shall be satisfied as a condition of approval.

- I. *Water, Sewer, and Drainage Systems: A Planned Unit Development shall be served by a public or private water and sanitary sewer systems. The Kent County Health Department and/or the Township*

Engineer must approve the systems. A PUD shall also have a drainage system for surface water run-off which the Kent County Drain Commission and / or the Township Engineer must approve.

Meets standard, condition included. The applicant shall be required to comply with all of the requirements of the Township Engineer during the final PUD review. Review comments shall be satisfied as a condition of approval.

- J. *Open Space: The Planning Commission and Township Board should consider whether the PUD permanently preserves significant amounts of open space or significant natural features. The Township Board may require, upon recommendation of the Planning Commission, that natural amenities such as, but not limited to, ravines, rock outcrops, wooded areas, tree or shrub specimens, unique wildlife habitat, ponds, streams, and wetlands be preserved as part of the open space system.*

Meets standard. The majority of the site will remain wooded and as an active outdoor nursery stock growing area. The areas planned for buildings and parking are already cleared and used for material storage. No significant expansion into existing open space is anticipated.

- K. *Non-Motorized Transportation Network: Projects within an identified trail network corridor may be required to construct a portion of the trail.*

Meets standard, condition included. A sidewalk along the Eastern Avenue frontage shall be constructed to continue the expansion of Township pedestrian facilities.

Section III Final PUD Plan Standards- Findings:

The Gaines Charter Township Board of Trustees hereby adopts the following findings per Section 25.6, Site Plan Review Standards.

- A. *Adequacy of Information: Whether the required information has been furnished in sufficiently complete and understandable form so as to allow an accurate description of the proposed use(s) and structure(s) in terms of density, location, area, height, bulk, placement, setbacks, performance characteristics, parking, and traffic circulation.*

Meets standard, conditions included. This standard will be met as long as conditions of approval are satisfied. The proposed office building will block future storage buildings from sight, and it will include added architectural details on the Eastern Avenue fronting elevation, forward of the metal building component. All setbacks and dimensional standards are met, and excess parking is acceptable. Additional landscaping details are required.

- B. *Compliance with Township Master Plan: The site plan must comply with the Township Master Plan and its goals and objectives and any secondary plans that may have been adopted by the Township for the area containing the site.*

Meets standard. Preserving the site as a nursery and landscaping business will assist the Township's efforts to maintain rural character and to protect open spaces.

- C. *Compliance with all Township Ordinances and Other Laws: The site plan must comply with the standards of this Ordinance and all other applicable Township ordinances, as well as all county, state, and federal regulations and laws.*

Condition included. The applicant shall secure all applicable Township and outside agency approvals prior to site development, including Township Engineering/BGUA, Fire Department, Kent County Road Commission, and Kent County Drain Commission, as applicable.

- D. *Configuration of Uses: Whether there are ways in which the configuration of uses and structures could be changed that would improve the effect of the development on adjoining and nearby properties, persons, activities, and on the community, while allowing reasonable use of the property within the scope of district regulations and other regulations of this Ordinance that are applicable to the property and the proposed use and structures.*

Meets standard. The proposed final PUD plan will ensure that the existing business remains compatible with nearby residential development. The proposed building footprints are internal to the site and are significantly separated from nearby homes.

- E. *Preservation of Natural Features: The landscape, natural features, and topography shall be preserved in its natural state, insofar as practical, by minimizing tree and soil removal and alteration of natural features, and any grade changes shall be in keeping with the general appearance of neighboring developed areas.*

Meets standard. The majority of the site will remain wooded and as an active outdoor nursery stock growing area. The areas planned for buildings and parking are already cleared and used for material storage. No significant expansion into natural areas is anticipated.

- F. *Privacy: The site design must provide reasonable visual and sound screening and privacy for dwelling units on the site and on adjacent properties using fences, buffers, berms, and other measures, as appropriate.*

Meets standard. The new building will screen the outdoor storage area and outdoor activities from the public right-of-way. Existing buffers will continue to provide screening and visual relief for neighboring residents.

- G. *Safety: Buildings and uses shall be arranged and designed to provide emergency vehicle access. Site plans shall conform to all applicable fire codes.*

Condition included. All site plans, along with measures for fire protection and access, are subject to review and approval by the Fire Inspector.

- H. *Vehicular Circulation: The site design shall provide safe, convenient, and well defined vehicular and pedestrian circulation within and to/from the site. Access to/from the site shall be designed to*

minimize conflicts with traffic on adjacent streets. Shared curb cuts and service drives shall be utilized as necessary to reduce traffic conflicts and improve the functionality of the site.

Meets standard, condition included. Access is limited to existing driveways. However, as stated earlier, one driveway will be improved to provide primary access to the new office and maintenance building. All work within the public right-of-way must be approved by the Kent County Road Commission.

- I. Pedestrian Circulation: The site plan shall provide a pedestrian circulation system that is insulated as completely as is reasonably possible from the vehicular circulation system for safety and convenience.*

Meets standard, condition included. Concrete sidewalks will connect the parking area to the proposed office building. A sidewalk along the Eastern Avenue frontage is required to continue the expansion of Township pedestrian facilities.

- J. Drainage: Site plans shall conform with the Kent County Drain Commission's surface water drainage standards and to the Township Stormwater Ordinance (and other applicable Township ordinances) with special attention given to proper site drainage so that removal of storm water will not adversely affect neighboring property owners. Stormwater management system and facilities shall preserve the natural drainage characteristics and enhance the aesthetics of the site to the maximum extent possible.*

Meets standard, condition included. The existing stormwater pond is proposed to be expanded to the north to accommodate the increase of impervious surfaces. Stormwater and utility plans are subject to review and approval by the Township Engineer.

- K. Traffic Impact: Measures must be taken to reduce any adverse effects on existing roads, circulation patterns on the roads, or access to the site from the expected volume of traffic to be generated by the proposed use.*

Meets standard. The increase in traffic is not anticipated to be significant based on existing versus proposed operations.

- L. Hazardous Materials: Sites which include storage of hazardous materials or waste, fuels, salt, or chemicals shall be designed to prevent spills and discharges of polluting materials to the surface of the ground, groundwater or nearby surface water bodies. Each site shall be designed to meet all applicable state and federal regulations.*

Condition included. All site plans, along with measures for fire protection, are subject to review and approval by the Fire Inspector.

- M. Public Health, Safety, or Welfare: The site plan must be adequate to provide for the health, safety, and general welfare of the persons and property on this site and in the neighboring community. The site plan and proposed buildings and uses must be reasonable and promote the goals and intent of*

this Ordinance. All elements of the site plan shall be designed to take into account the site's topography, the size and type of lot involved, the character of the adjoining properties, and the type and size of buildings. The site shall be developed so as not to impede the normal and orderly development or improvement of surrounding properties for uses permitted in this Ordinance. The site plan must be harmonious with and not injurious to existing and projected uses in the immediate area.

Meets standard. The site is generously landscaped and buffered, and additional landscaping will ensure it remains an aesthetically pleasing property. The size of the property allows for business operations and activities to be dispersed and separated from nearby residential dwellings. The amount of open space, existing landscaping, and separation from existing residential areas will ensure that the expanded business operations are compatible with nearby development. The proposed site development is not anticipated to negatively impact adjacent properties and natural resources.

TOWNSHIP BOARD DECISION

The Township Board of Trustees has determined that the preceding findings support the approval of the Final PUD Plan and PUD rezoning for Everett's Landscaping. The Township Board approves the final PUD plan and the PUD rezoning with the following conditions:

1. Provide a sidewalk along Eastern Avenue.
2. Excess parking is approved, and wheel stops/bumpers or curbing shall be shown on the site plan and installed.
3. Landscaping plan with front yard and parking lot landscaping points shall be calculated minimally under administrative review.
4. Site signage must follow the C-1 Neighborhood Commercial regulations with the exception that freestanding pole or pylon signs are not permitted.
5. Secure all Township department and outside agency approvals:
 - a. Township Engineer/BGUA.
 - b. Fire Department.
 - c. Kent County Road Commission.
 - d. Kent County Drain Commission.

A motion was made to adopt this resolution by Township Board Member _____ and supported by Township Board Member _____, the roll call vote being as follows:

AYES: _____
NAYS: _____
ABSENT: _____

RESOLUTION DECLARED ADOPTED

CERTIFICATION

I hereby certify that the above is a true copy of a resolution adopted by the Gaines Charter Township Board at a regular meeting held on _____, 2021.

Respectfully submitted,

Michael Brew, Clerk
Gaines Charter Township

Dated: _____, 2021

Memo

To: Gaines Charter Township Board of Trustees
From: Dan Wells, Community Development Director
Date: September 13th, 2021
Re: Final Site Plan Approval for Hideaway Site Condominium Development

Attached Items

- Site Plan for Hideaway Development dated 01/13/2021
- Recorded Master Deed

Overview

On September 9th, 2019, the Township Board approved the Preliminary Site plan for The Hideaway, a 34-lot site condominium residential development on 116 acres on the southeast corner of Hanna Lake Avenue and 100th Street. The development was approved under Chapter 22: Open Space Developments of the zoning ordinance, which has subsequently been eliminated. The development includes a privately-owned public community wastewater system.

It is required that final site plan approval be obtained within two years of approval, and must be obtained prior to the issuance of building permits.

At the time of approval of the preliminary site plan, a number of conditions were applied to the development Master Deed including:

1. The Master Deed for the development shall stipulate the following:
 - a. The Township is not participating in any maintenance/repair, nor is the Township liable for any maintenance/repair, of the proposed community septic system.
 - b. The Township has the right to create a special assessment district for the Hideaway community in the event that the State requires Township participation at some future date.
 - c. The dedicated open space shall forever remain open space, and further development, dividing, or subdivision of dedicated open space land or its use for other than recreation, or conservation purposes is prohibited, with the exception that easements for utilities are permitted.
 - d. The perimeter of the open space shall be maintained as a passive walking trail.
 - e. A copy of the deed restrictions pertaining to the development shall be submitted and approved by staff prior to final approval by the Township Board.

- f. Minimum building requirements of 1,800 square feet for a ranch and 2,400 square feet for a 2-story.

The Developer has submitted a final site plan, and a copy of the recorded Master Deed. The Township Attorney has reviewed the Master Deed and determined that it conforms to the conditions stipulated by the Board. The Township Engineer has confirmed that the community septic system has all of the permits needed from the Department of Environment Great Lakes and Energy and the Kent County Health Department for the construction of the proposed community septic system. The Kent County Drain Commissioner and Kent County Road Commission have approved the proposed connections to the county drain and county roads.

Staff Recommendation

It is recommended that the Township Board approve the final site plan (dated 01/13/2021) for the Hideaway Development subject to the following conditions:

1. Township Attorney approves Recorded Master Deed and Articles of Incorporation for the Homeowners Association.
2. Developer complies with agency requirements including Department of Environment Great Lakes and Energy, Kent County Health Department, Kent County Road Commission, and Kent County Drain Commission.
3. Township Engineer approves of private road construction and confirms compliance with the Township's private road requirements.
4. Compliance with all Planning Commission's conditions of approval.

KENT COUNTY CONDOMINIUM SUBDIVISION PLAN NO. _____
 EXHIBIT "B" TO MASTER DEED OF:

HIDEAWAY

PART OF THE NW 1/4, SECTION 35, T5N, R11W, GAMES TOWNSHIP, KENT COUNTY, MICHIGAN
 COVER SHEET

SURVEYOR:
 JONKER LAND SURVEYS, P.C.
 8373 MERTON AVE. SW
 BYRON CENTER, MI 49315
 FILE #19027

ENGINEER:
 JARED HALVERSON, P.E.
 HALVERSON ENGINEERING
 4498 ORCHARD CREEK CT. SE
 GRAND RAPIDS, MI 49546

DEVELOPER:
 4288 DIVISION LLC
 8375 RIDGESTONE DRIVE
 BYRON CENTER, MI 49315

DESCRIPTION OF PARCEL:

That part of the NW 1/4 of Section 35, Town 5 North, Range 11 West, Game Township, Kent County, Michigan, containing 118.32 acres, more or less, bounded as follows: the North line of said NW 1/4, thence S89°14'20"W 486.00 feet, thence S88°42'40"E 1053.37 feet, thence N01°4'20"E 486.00 feet, to said North line of NW 1/4, thence S88°45'40"E 485.66 feet, along said North line to the East line of the West 3/4 of said NW 1/4, thence S00°57'01"W 2855.86 feet, along said East line to the South line of said NW 1/4, thence N89°01'32"W 1984.81 feet, along said South line to the West 1/4 corner of said Section 35, thence N00°55'56"E 2666.03 feet, along the West line of said NW 1/4 to the place of beginning.

CONTAINS 118.32 ACRES
 INCLUDING ROAD R.O.W.

SHEET INDEX:

1. COVER SHEET
2. BOUNDARY PLAN
3. SURVEY AND ESMT. PLAN
4. SURVEY AND ESMT. PLAN
5. SURVEY AND ESMT. PLAN
6. SURVEY AND ESMT. PLAN
7. SITE AND UTILITY PLAN
8. SITE, UTILITY, M.B.O. PLAN



ATTENTION: COUNTY REGISTER OF DEEDS.
 THIS CONDOMINIUM SUBDIVISION PLAN NUMBER **1130**
 MUST BE ASSIGNED IN CONSECUTIVE SEQUENCE
 WHEN A NUMBER HAS BEEN ASSIGNED TO THIS
 PROJECT IT MUST BE PROPERLY SHOWN ON THIS
 SHEET AND IN THE SURVEYOR'S CERTIFICATE ON
 SHEETS 3 THROUGH 8.

THIS CONDOMINIUM SUBDIVISION PLAN IS NOT REQUIRED TO CONTAIN
 DETAILED PROJECT DESIGN PLANS PREPARED BY THE APPROPRIATE
 LICENSED DESIGN PROFESSIONAL. SUCH PROJECT DESIGN PLANS
 SHALL BE PREPARED BY THE APPROPRIATE LICENSED DESIGN PROFESSIONAL
 APPLICATION WITH THE ENGINEERING AGENCY FOR THE STATE
 CONSTRUCTION CODE IN THE RELEVANT GOVERNMENTAL SUBDIVISION.
 THE ENGINEERING AGENCY MAY BE THE LOCAL BUILDING DEPARTMENT
 (TOWNSHIP, CITY, OR COUNTY) OR THE STATE DEPARTMENT OF LICENSING
 AND REGULATION AFFAIRS.



Randall J. Jonker
 RANDALL J. JONKER P.S. NO. 49331

PROPOSED DATED: 1/13/2021

SHEET 1 OF 8



PROPOSED DATED: 1/13/2021

COORDINATE TABLE			
POINT	NORTHING	EASTING	
A	5000.000	5000.000	
B	2334.318	438.8178	
C	2269.297	760.0941	
D	4842.718	76.48751	
E	4977.275	605.3124	
F	4511.334	604.5048	
G	4501.215	604.9309	
H	4867.107	65.21014	
I	4967.038	6986.556	
J	3300.547	6942.502	
K	3445.007	4975.602	
L	3407.417	6860.882	



- = SECTION CORNER MONUMENT
- = PROPOSED IRON STAKE
- = PROPOSED CONCRETE MONUMENT
- ⓧ = COORDINATE POINT LETTER
- C/L = CENTERLINE

GRAPHIC SCALE
120' 0' 60' 120'
SCALE 1" = 120'



SHEET 2 OF 8

C/L 100TH STREET
 & NORTH LINE, NW 1/4, SEC. 35, T5N, R11W

3

HIDEAWAY

PART OF THE NW 1/4, SECTION 35, T5N, R11W, GAINES TOWNSHIP, KENT COUNTY, MICHIGAN
SURVEY & EASEMENT PLAN

NOTE: TELEPHONE, CABLE TELEVISION, GAS, AND ELECTRIC IS TO BE PLACED IN FRONT OF WAY OF STREET OR IN THE FRONT 10 FEET OF EACH UNIT.

• ALL UNIT CORNERS AND CURVE POINTS WILL BE STAKED WITH IRON STAKES 1/2" IN DIAMETER X 18" IN LENGTH.

- ALL STREETS MUST BE BUILT.
- REGULATION ON ELECTRICAL, LINE, TELEPHONE, GAS, AND CABLE TELEVISION LINE IS NOT LATER DATE ON AN AS-BUILT BASIS.
- ALL UTILITIES MUST BE BUILT.
- AVERAGE IS CALCULATED TO THE RIGHT OF WAY LINES.
- THE STREETS ARE PRIVATE STREETS AND ARE TO BE DEEDED TO THE HIDEAWAY CONDO H.O.A.
- ALL BUILDING SETBACKS WILL BE IN ACCORDANCE WITH TOWNSHIP AND OR COUNTY ZONING ORDINANCES.
- DRAINAGE EASEMENTS WITHIN UNITS WILL BE MAINTAINED BY THE "HIDEAWAY CONDO H.O.A."
- ALL UNITS TO BE SERVED BY INDIVIDUAL WELLS.
- ALL UNITS TO BE SERVED BY A COMMUNITY WASTEWATER SYSTEM CONSISTING OF A COMMUNITY SEPTIC DRAINFIELD, STEP SYSTEM ON EACH UNIT SITE, AND A FORCEMAIN SYSTEM TO DRAIN WASTEWATER TO THE COMMUNITY DRAINFIELD.
- BEARINGS BASED ON RECORDED SURVEY PER L. 289 P. 10

CURVE TABLE

CURVE NO.	LENGTH	RADIUS	BEARING	CHORD
11	287.45'	183.00'	S44°05'42"E	259.80'
12	176.78'	117.00'	S44°05'42"E	165.45'

COORDINATE TABLE

POINT	NORTHING	EASTING
A	5000.000	5000.000
B	4977.225	6053.174
C	4951.334	6043.048
D	4901.215	6510.030
E	4867.107	6551.014
F	4857.039	6566.506
G	4829.606	5943.893
H	4774.432	5949.366
I	5062.039	6043.855
J	5124.940	6045.428
K	4708.653	6401.357
L	4698.618	6753.787
M	4713.550	6753.787
N	3600.566	6347.353



- SECTION CORNER MONUMENT
- PROPOSED IRON STAKE
- PROPOSED CONCRETE MONUMENT
- COORDINATE POINT LETTER
- CURVE CENTER
- LIMITED COMMON ELEMENT (ALL UNITS, NO HATCHING)
- GENERAL COMMON ELEMENT - OPEN SPACE
- GENERAL COMMON ELEMENT - ROAD RIGHT OF WAY
- GENERAL COMMON ELEMENT - COMMUNITY WASTEWATER TREATMENT AREA

SURVEYOR'S CERTIFICATE:
I, RANDALL J. JONKER, PROFESSIONAL LAND SURVEYOR OF THE STATE OF MICHIGAN, HEREBY CERTIFY THAT THE SUBDIVISION PLAN KNOWN AS KENT COUNTY CONDOMINIUM SUBDIVISION PLAN, AS SHOWN ON THE ACCOMPANYING DRAWINGS, REPRESENTS A SURVEY FOR THE GROUND MADE UNDER MY DIRECT SUPERVISION AND IN ACCORDANCE WITH THE REQUIREMENTS OF THE MICHIGAN SURVEYING ACT, 1978, AND THAT THE BOUNDARY LINES AND CORNER MARKERS HAVE BEEN LOCATED IN THE GROUND AS REQUIRED BY RULES PROMULGATED UNDER SECTION 142 OF ACT NO. 59 OF PUBLIC ACTS OF 1978; THAT THE BEARINGS, AS SHOWN, ARE NOTED ON THE SURVEY PLAN AS REQUIRED BY THE RULES PROMULGATED UNDER SECTION 142 OF ACT NO. 59 OF THE PUBLIC ACTS OF 1978.

Randall J. Jonker

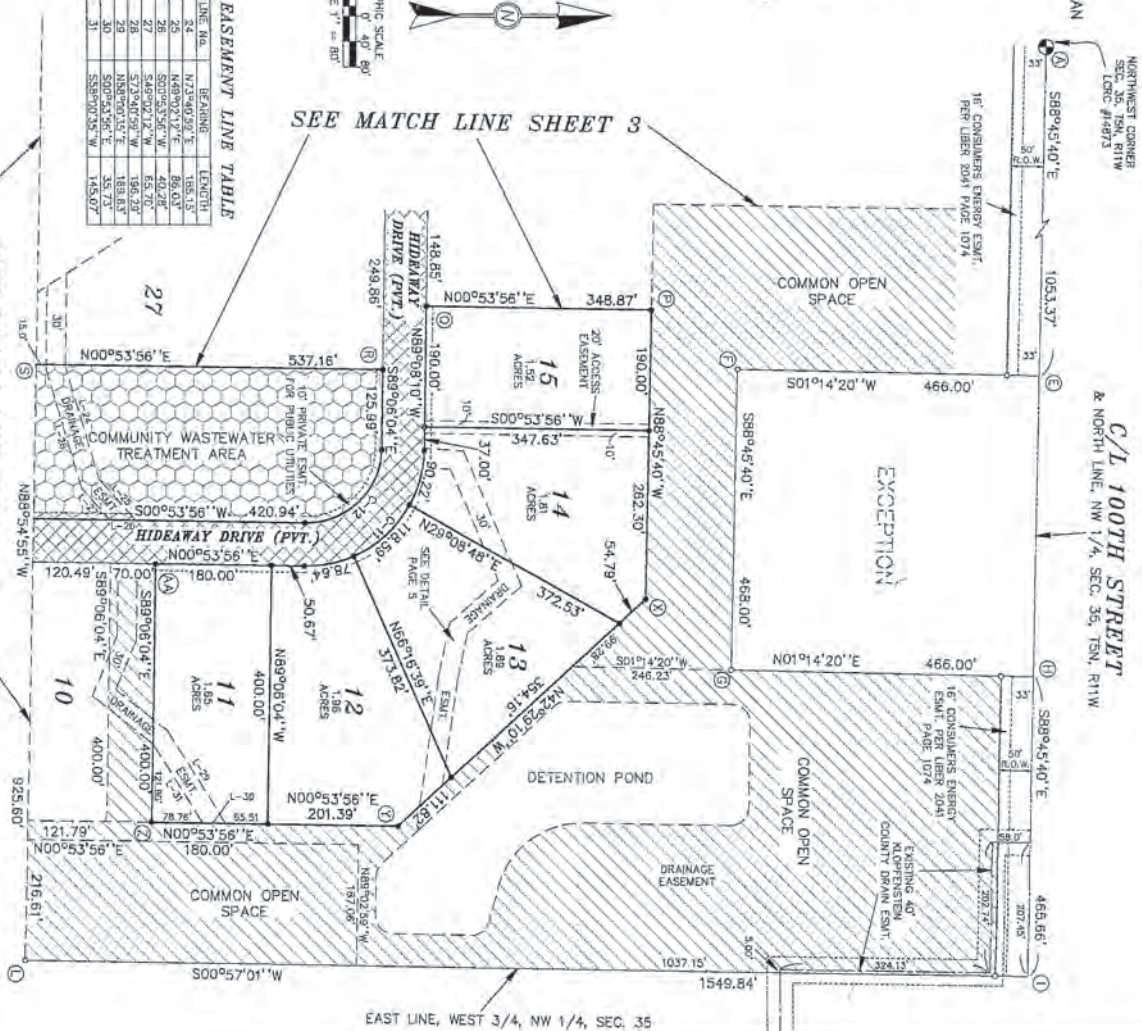
RANDALL J. JONKER P.S. NO. 49331

PROPOSED DATE:

1/13/2021

SEE MATCH LINE SHEET 5
& SOUTH LINE, N. 7/12, W. 3/4, NW 1/4, SEC. 35

SHEET 4 OF 8



EASEMENT LINE TABLE

LINE NO.	BEARING	LENGTH
24	N73°40'32"E	185.13'
25	N48°02'12"E	86.03'
26	S00°53'56"W	40.00'
27	S73°02'12"W	164.29'
28	N48°02'12"E	169.83'
29	S00°53'56"W	35.73'
30	S89°06'04"E	145.07'

SEE MATCH LINE SHEET 3

C/L 100TH STREET
& NORTH LINE, NW 1/4, SEC. 35, T5N, R11W

NORTHWEST CORNER
SEC. 35, T5N, R11W
LOCAL #4873

16" CONSUMERS ENERGY ESM.
FEET LIBER 2041 PAGE 1074

16" CONSUMERS ENERGY ESM.
FEET LIBER 2041 PAGE 1074

EXCEPTION

COMMON OPEN SPACE

COMMON OPEN SPACE

DETENTION POND

DRAINAGE EASEMENT

EAST LINE, WEST 3/4, NW 1/4, SEC. 35

NOTE: TELEPHONE, CABLE TELEVISION, GAS, AND ELECTRIC IS TO BE PLACED IN RIGHT OF WAY OF

- ELECTRIC IS TO BE PLACED IN FEET OF WAY OF STREET OR IN THE FRONT TO REAR OF EACH LOT.
 - ALL STREETS MUST BE BUILT
 - INFORMATION ON ELECTRICAL LINE, TELEPHONE LINE, CABLE, GAS, WATER, SEWER, AND RAILROADS MUST BE AVAILABLE AT THIS TIME AND MAY BE SHOWN AT A LATER DATE ON AN AS-BUILT BASIS.
 - ALL NECESSARY UTILITIES MUST BE BUILT
 - AVERAGE IS CALCULATED TO THE RIGHT OF WAY LINES
 - THE STREETS ARE PRIVATE STREETS AND ARE TO BE MAINTAINED BY THE HERBANY CONDO H.O.A.
 - ALL BUILDING SETBACKS WILL BE IN ACCORDANCE WITH
 - ZONING REGULATIONS
 - SPRAWLING EXPOSURES WITHIN LOTS WILL BE MAINTAINED BY THE HERBANY CONDO H.O.A.
 - ALL LOTS TO BE SERVED BY INDIVIDUAL WELLS
 - ALL LOTS TO BE SERVED BY A COMMUNITY WASTEWATER SYSTEM CONSISTING OF A COMMUNITY SEPTIC DRAINFIELD TO DELIVER WASTEWATER TO THE COMMUNITY DRAINFIELD.
 - BEZELMANS BASED ON RECORDED SURVEY PER L. 288 P. 10
 - WITH IRON STAKES 1/2" IN DIAMETER X 18" IN LENGTH
- 

SECTION CORNER MONUMENT

 - PROPOSED IRON STAKE
 - PROPOSED CONCRETE MONUMENT
 - COORDINATE POINT LETTER
 - C/A = CENTERLINE



LIMITED COMMON ELEMENT
(ALL LOTS, NO HATCHING)



GENERAL COMMON ELEMENT
- OPEN SPACE



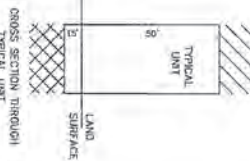
COMMON COMMON ELEMENT
- ROAD RIGHT OF WAY

CLIVE NO.	LENGTH	RAILS	BEARING	CHORD
13	289.3	167.00	N50°29'31"E	254.35
14	183.00	233.00	S77°45'48"W	128.33
15	116.53	167.00	S80°13'31"W	113.35
16	77.44	167.00	S89°23'33"W	76.75
17	15.33	167.00	S57°45'19"E	15.33
18	26.91	167.00	S86°16'58"W	26.98
19	145.60	233.00	S72°50'51"W	143.24

CURVE TABLE

UW# No.	BEARING	LENGTH
9	SS590548"W	31.44'
10	SS590546"W	31.44'
11	NB990604"W	140.98'
12	NB990604"W	140.98'

LINE TABLE



C/L HANNA LAKE AVENUE
/ & WEST LINE, NW 1/4, SEC. 35, T5N, R11W

POINT	EASTING	NORTH
1	5000.000	5989.132
2	5000.000	6277.089
3	5000.000	6278.195
4	5000.000	6278.195
5	5000.000	6278.195
6	5000.000	6278.195
7	5000.000	6278.195
8	5000.000	6278.195
9	5000.000	6278.195
10	5000.000	6278.195
11	5000.000	6278.195
12	5000.000	6278.195
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26	5000.000	6278.195
27	5000.000	6278.195
28	5000.000	6278.195
29	5000.000	6278.195
30	5000.000	6278.195
31	5000.000	6278.195
32	5000.000	6278.195
33	5000.000	6278.195
34	5000.000	6278.195
35	5000.000	6278.195
36	5000.000	6278.195
37	5000.000	6278.195
38	5000.000	6278.195
39	5000.000	6278.195
40	5000.000	6278.195
41	5000.000	6278.195
42	5000.000	6278.195
43	5000.000	6278.195
44	5000.000	6278.195
45	5000.000	6278.195
46	5000.000	6278.195
47	5000.000	6278.195
48	5000.000	6278.195
49	5000.000	6278.195
50	5000.000	6278.195
51	5000.000	6278.195
52	5000.000	6278.195
53	5000.000	6278.195
54	5000.000	6278.195
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73	5000.000	6278.195
74	5000.000	6278.195
75	5000.000	6278.195
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80	5000.000	6278.195
81	5000.000	6278.195
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85	5000.000	6278.195
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87	5000.000	6278.195
88	5000.000	6278.195
89	5000.000	6278.195
90	5000.000	6278.195
91	5000.000	6278.195
92	5000.000	6278.195
93	5000.000	6278.195
94	5000.000	6278.195
95	5000.000	6278.195
96	5000.000	6278.195
97	5000.000	6278.195
98	5000.000	6278.195
99	5000.000	6278.195
100	5000.000	6278.195

COORDINATE TABLE



SURVEYOR'S CERTIFICATE:
I, RANDALL J. LONKER, PROFESSIONAL LAND SURVEYOR OF THE STATE OF MICHIGAN, HEREBY CERTIFY THAT THE SUBSEQUENT KNOWINGLY AND TRULY CONDUCTED SURVEYING SUBDIVISION AROUND HADGE UNDER THE ACTS OF 1906, 1907, 1908, 1909, 1910, 1911, 1912, 1913, 1914, 1915, 1916, 1917, 1918, 1919, 1920, 1921, 1922, 1923, 1924, 1925, 1926, 1927, 1928, 1929, 1930, 1931, 1932, 1933, 1934, 1935, 1936, 1937, 1938, 1939, 1940, 1941, 1942, 1943, 1944, 1945, 1946, 1947, 1948, 1949, 1950, 1951, 1952, 1953, 1954, 1955, 1956, 1957, 1958, 1959, 1960, 1961, 1962, 1963, 1964, 1965, 1966, 1967, 1968, 1969, 1970, 1971, 1972, 1973, 1974, 1975, 1976, 1977, 1978, 1979, 1980, 1981, 1982, 1983, 1984, 1985, 1986, 1987, 1988, 1989, 1990, 1991, 1992, 1993, 1994, 1995, 1996, 1997, 1998, 1999, 2000, 2001, 2002, 2003, 2004, 2005, 2006, 2007, 2008, 2009, 2010, 2011, 2012, 2013, 2014, 2015, 2016, 2017, 2018, 2019, 2020, 2021, 2022, 2023, 2024, 2025, 2026, 2027, 2028, 2029, 2030, 2031, 2032, 2033, 2034, 2035, 2036, 2037, 2038, 2039, 2040, 2041, 2042, 2043, 2044, 2045, 2046, 2047, 2048, 2049, 2050, 2051, 2052, 2053, 2054, 2055, 2056, 2057, 2058, 2059, 2060, 2061, 2062, 2063, 2064, 2065, 2066, 2067, 2068, 2069, 2070, 2071, 2072, 2073, 2074, 2075, 2076, 2077, 2078, 2079, 2080, 2081, 2082, 2083, 2084, 2085, 2086, 2087, 2088, 2089, 2090, 2091, 2092, 2093, 2094, 2095, 2096, 2097, 2098, 2099, 2100, 2101, 2102, 2103, 2104, 2105, 2106, 2107, 2108, 2109, 2110, 2111, 2112, 2113, 2114, 2115, 2116, 2117, 2118, 2119, 2120, 2121, 2122, 2123, 2124, 2125, 2126, 2127, 2128, 2129, 2130, 2131, 2132, 2133, 2134, 2135, 2136, 2137, 2138, 2139, 2140, 2141, 2142, 2143, 2144, 2145, 2146, 2147, 2148, 2149, 2150, 2151, 2152, 2153, 2154, 2155, 2156, 2157, 2158, 2159, 2160, 2161, 2162, 2163, 2164, 2165, 2166, 2167, 2168, 2169, 2170, 2171, 2172, 2173, 2174, 2175, 2176, 2177, 2178, 2179, 2180, 2181, 2182, 2183, 2184, 2185, 2186, 2187, 2188, 2189, 2190, 2191, 2192, 2193, 2194, 2195, 2196, 2197, 2198, 2199, 2200, 2201, 2202, 2203, 2204, 2205, 2206, 2207, 2208, 2209, 2210, 2211, 2212, 2213, 2214, 2215, 2216, 2217, 2218, 2219, 2220, 2221, 2222, 2223, 2224, 2225, 2226, 2227, 2228, 2229, 2230, 2231, 2232, 2233, 2234, 2235, 2236, 2237, 2238, 2239, 2240, 2241, 2242, 2243, 2244, 2245, 2246, 2247, 2248, 2249, 2250, 2251, 2252, 2253, 2254, 2255, 2256, 2257, 2258, 2259, 2260, 2261, 2262, 2263, 2264, 2265, 2266, 2267, 2268, 2269, 2270, 2271, 2272, 2273, 2274, 2275, 2276, 2277, 2278, 2279, 2280, 2281, 2282, 2283, 2284, 2285, 2286, 2287, 2288, 2289, 2290, 2291, 2292, 2293, 2294, 2295, 2296, 2297, 2298, 2299, 2300, 2301, 2302, 2303, 2304, 2305, 2306, 2307, 2308, 2309, 2310, 2311, 2312, 2313, 2314, 2315, 2316, 2317, 2318, 2319, 2320, 2321, 2322, 2323, 2324, 2325, 2326, 2327, 2328, 2329, 2330, 2331, 2332, 2333, 2334, 2335, 2336, 2337, 2338, 2339, 2340, 2341, 2342, 2343, 2344, 2345, 2346, 2347, 2348, 2349, 2350, 2351, 2352, 2353, 2354, 2355, 2356, 2357, 2358, 2359, 2360, 2361, 2362, 2363, 2364, 2365, 2366, 2367, 2368, 2369, 2370, 2371, 2372, 2373, 2374, 2375, 2376, 2377, 2378, 2379, 2380, 2381, 2382, 2383, 2384, 2385, 2386, 2387, 2388, 2389, 2390, 2391, 2392, 2393, 2394, 2395, 2396, 2397, 2398, 2399, 2400, 2401, 2402, 2403, 2404, 2405, 2406, 2407, 2408, 2409, 2410, 2411, 2412, 2413, 2414, 2415, 2416, 2417, 2418, 2419, 2420, 2421, 2422, 2423, 2424, 2425, 2426, 2427, 2428, 2429, 2430, 2431, 2432, 2433, 2434, 2435, 2436, 2437, 2438, 2439, 2440, 2441, 2442, 2443, 2444, 2445, 2446, 2447, 2448, 2449, 2450, 2451, 2452, 2453, 2454, 2455, 2456, 2457, 2458, 2459, 2460, 2461, 2462, 2463, 2464, 2465, 2466, 2467, 2468, 2469, 2470, 2471, 2472, 2473, 2474, 2475, 2476, 2477, 2478, 2479, 2480, 2481, 2482, 2483, 2484, 2485, 2486, 2487, 2488, 2489, 2490, 2491, 2492, 2493, 2494, 2495, 2496, 2497, 2498, 2499, 2500, 2501, 2502, 2503, 2504, 2505, 2506, 2507, 2508, 2509, 2510, 2511, 2512, 2513, 2514, 2515, 2516, 2517, 2518, 2519, 2520, 2521, 2522, 2523, 2524, 2525, 2526, 2527, 2528, 2529, 2530, 2531, 2532, 2533, 2534, 2535, 2536, 2537, 2538, 2539, 2540, 2541, 2542, 2543, 2544, 2545, 2546, 2547, 2548, 2549, 2550, 2551, 2552, 2553, 2554, 2555, 2556, 2557, 2558, 2559, 2560, 2561, 2562, 2563, 2564, 2565, 2566, 2567, 2568, 2569, 2570, 2571, 2572, 2573, 2574, 2575

Randall G. Parker

RANDALL J. JONKER P.S. NO. 49331 PROPOSED DATED:

1/13/2021

WEST 1/4 CORNER
SEC. 35, T5N, R11W
LEWIS #15565

16' CONSUMERS ENERGY ESMY.
PER LIBER 2041 PAGE 1074

SOUTH LINE, NW 1/4, SEC. 35, T5N, R11W

SHEET 5 OF 8



HIDEAWAY

PART OF THE NW 1/4, SECTION 35, T5N, R11W, GAINES TOWNSHIP, KENT COUNTY, MICHIGAN
SURVEY & EASEMENT PLAN

NOTE: TELEPHONE CABLE TELEVISION, GAS, AND

STREET OR IN THE FRONT 10 FEET OF EACH UNIT

ALL STREETS MUST BE BUILT

ALL UTILITIES MUST BE BUILT
GAS, CABLE, AND TELEPHONE LINES ARE NOT MAINTAINED AT THIS TIME AND MAY BE SHOWN AT A LATER DATE ON AN AS-BUILT BASIS.

ALL UTILITIES MUST BE BUILT
GAS, CABLE, AND TELEPHONE LINES ARE NOT MAINTAINED AT THIS TIME AND MAY BE SHOWN AT A LATER DATE ON AN AS-BUILT BASIS.

ALL BUILDING SETBACKS WILL BE IN ACCORDANCE WITH THE ZONING ORDINANCE OF THE COUNTY OF KENT.

ALL BUILDING SETBACKS WILL BE IN ACCORDANCE WITH THE ZONING ORDINANCE OF THE COUNTY OF KENT.

ALL UTILITIES TO BE SERVED BY INDIVIDUAL WELLS

ALL UTILITIES TO BE SERVED BY A COMMUNITY WASTEWATER SYSTEM CONSISTING OF A COMMUNITY SEPTIC DRAINAGE SYSTEM, LATER SYSTEM ON EACH UNIT SITE, AND A FORCE MAIN SYSTEM TO DELIVER WASTEWATER TO THE COMMUNITY DRAINAGE.

BEARINGS BASED ON RECORDED SURVEY PER L. 289 P. 10

CURVE TABLE

CURVE NO.	LENGTH	BEARING	CHORD
20	403.40'	N50°02'31"E	354.67'

COORDINATE TABLE

POINT	NORTHING	EASTING
A	2334.298	4658.176
B	2300.517	6942.502
C	3407.417	6960.882
D	2684.456	5953.206
E	2418.034	5953.206
F	2608.049	6211.602
G	3513.289	6211.602
H	3513.289	6211.602
I	3513.289	6211.602
J	3513.289	6211.602
K	3513.289	6211.602
L	3513.289	6211.602
M	3513.289	6211.602
N	3513.289	6211.602
O	3513.289	6211.602
P	3513.289	6211.602
Q	3513.289	6211.602
R	3513.289	6211.602
S	3513.289	6211.602
T	3513.289	6211.602
U	3513.289	6211.602
V	3513.289	6211.602
W	3513.289	6211.602
X	3513.289	6211.602
Y	3513.289	6211.602
Z	3513.289	6211.602

EASEMENT LINE TABLE

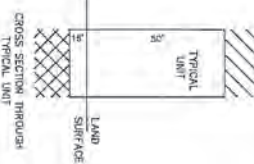
LINE NO.	BEARING	LENGTH
1	N00°00'00"E	30.00'
2	S89°06'04"E	117.67'
3	S89°06'04"E	83.00'
4	S89°06'04"E	83.00'
5	S89°06'04"E	102.25'
6	S89°06'04"E	110.75'
7	S89°06'04"E	110.75'
8	S89°06'04"E	110.75'
9	S89°06'04"E	110.75'
10	S89°06'04"E	110.75'
11	S89°06'04"E	110.75'
12	S89°06'04"E	110.75'
13	S89°06'04"E	110.75'
14	S89°06'04"E	110.75'
15	S89°06'04"E	110.75'
16	S89°06'04"E	110.75'
17	S89°06'04"E	110.75'
18	S89°06'04"E	110.75'
19	S89°06'04"E	110.75'
20	S89°06'04"E	110.75'
21	S89°06'04"E	110.75'
22	S89°06'04"E	110.75'
23	S89°06'04"E	110.75'
24	S89°06'04"E	110.75'
25	S89°06'04"E	110.75'
26	S89°06'04"E	110.75'
27	S89°06'04"E	110.75'
28	S89°06'04"E	110.75'
29	S89°06'04"E	110.75'
30	S89°06'04"E	110.75'

ALL UNIT CORNERS AND CORNER POINTS WILL BE MARKED WITH IRON STAKES 1/2" IN DIAMETER X 18" IN LENGTH

- LIMITED COMMON ELEMENT (ALL UNITS, NO HATCHING)
- GENERAL COMMON ELEMENT
- OPEN SPACE
- GENERAL COMMON ELEMENT
- ROAD RIGHT OF WAY

- SECTION CORNER MONUMENT
- PROPOSED IRON STAKE
- PROPOSED CONCRETE MONUMENT
- COORDINATE POINT LETTER
- C/L - CENTERLINE

DRAWING SCALE
1" = 60'
SCALE 1" = 60'



WEST 1/4 CORNER
SEC. 35, T5N, R11W
LIRC M5565

SOUTH LINE, NW 1/4, SEC. 35, T5N, R11W

SHEET 6 OF 8



HIDEAWAY

PART OF THE NW 1/4, SECTION 35, T5N, R11W
DANES TOWNSHIP, KENT COUNTY, MICHIGAN

SITE AND UTILITY PLAN



RANDALL J. JONKER P.S. NO. 49331
PROPOSED DATED: 1/13/2021

- LIMITED COMMON ELEMENT
ALL UNITS (NO HATCHING)
- GENERAL COMMON ELEMENT
OPEN SPACE
- GENERAL COMMON ELEMENT
ROAD RIGHT OF WAY
- GENERAL COMMON ELEMENT
TREATMENT AREA

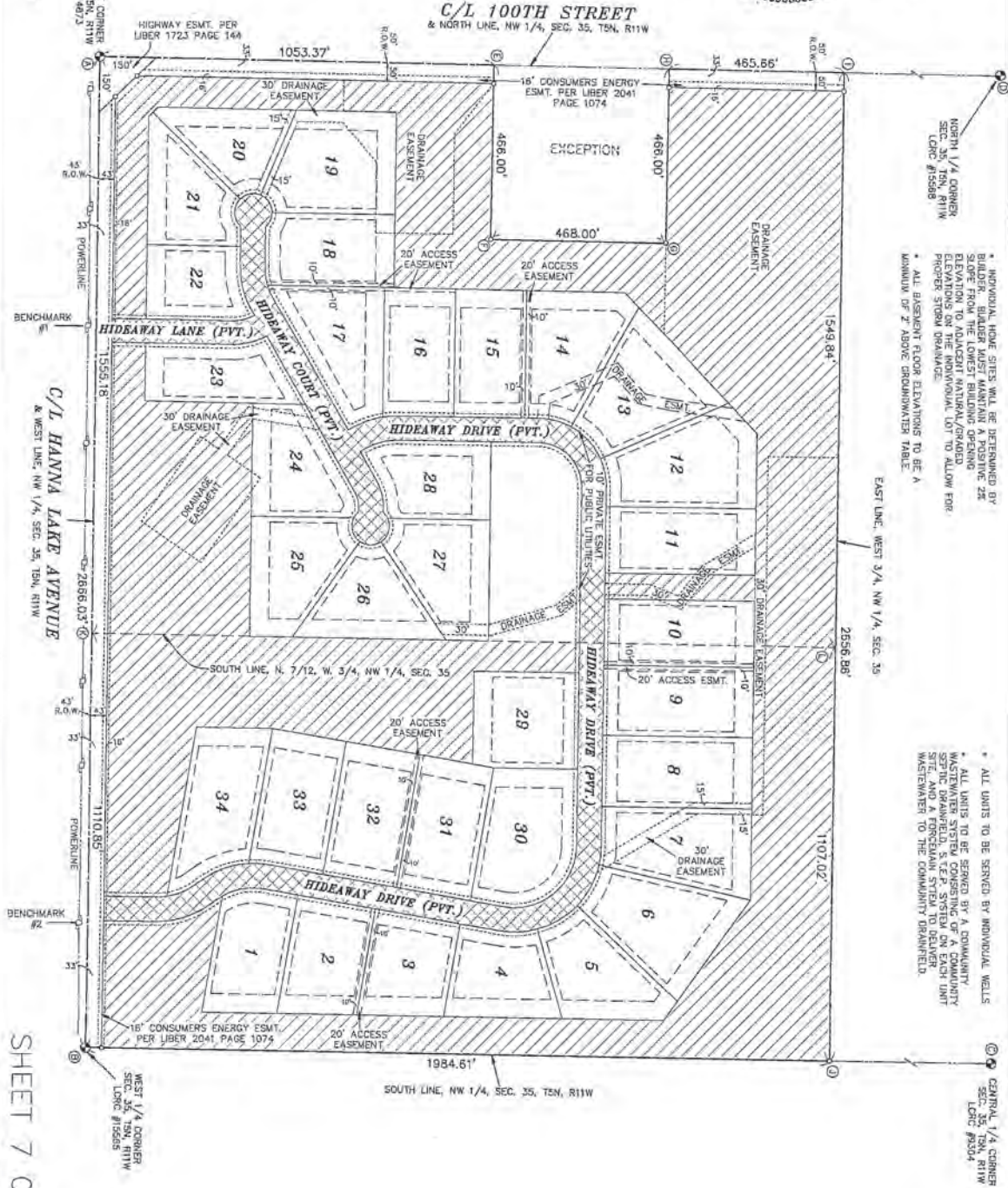
COORDINATE TABLE

POINT	NORTHING	EASTING
A	5000.000	4500.000
B	2334.286	4858.776
C	2288.797	7863.361
D	4242.718	7864.251
E	4253.321	7863.361
F	4501.332	8043.148
G	4501.215	8501.339
H	4957.107	6521.014
I	4957.038	6986.566
J	2300.547	6992.502
K	3443.007	4015.002
L	3401.417	6980.892

BUILDING SETBACK REQUIREMENTS FOR HOMES:
 - FRONT YARD = 40' MIN.
 - SIDE YARD = 15' MIN.
 - REAR YARD = 30' MIN.

GRAPHIC SCALE
 120' 0" 60' 30'
 SCALE 1" = 120'

LEGEND:
 SECTION CORNER MONUMENT
 PROPOSED IRON STAKE
 PROPOSED CONCRETE MONUMENT
 COORDINATE POINT LETTER
 C/L = CENTERLINE



HIDEAWAY

PART OF THE NW 1/4, SECTION 35, T5N, R11W
CAMES TOWNSHIP, KENT COUNTY, MICHIGAN



Randall J. Jonker
RANDALL J. JONKER P.E., NO. 4331

PROPOSED DATED: 1/13/2021

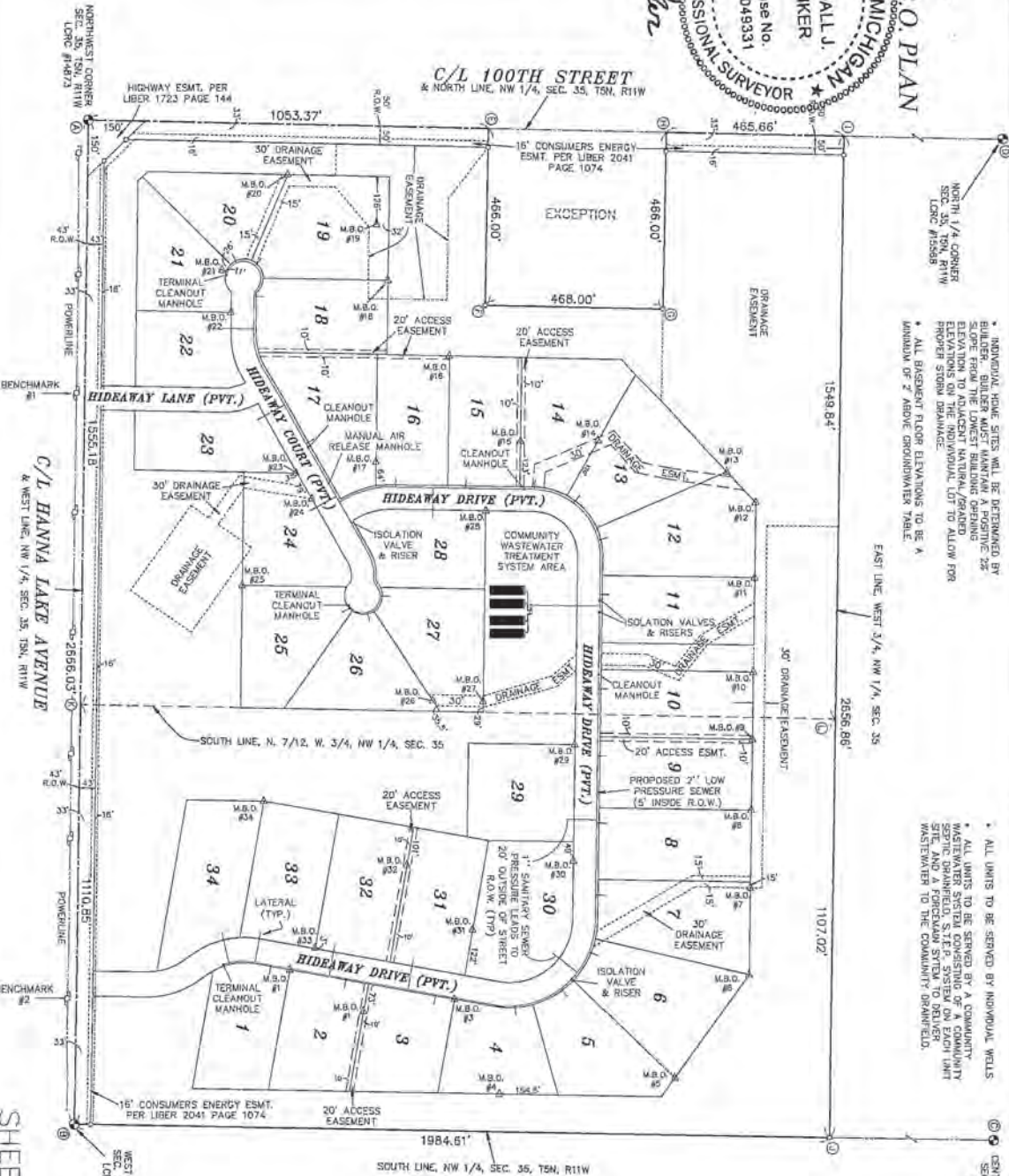
BENCHMARK #1: ELEV. 686.31'
BENCHMARK #2: ELEV. 687.48'
BENCHMARK #3: ELEV. 688.31'
BENCHMARK #4: ELEV. 689.31'
BENCHMARK #5: ELEV. 690.31'
BENCHMARK #6: ELEV. 691.31'
BENCHMARK #7: ELEV. 692.31'
BENCHMARK #8: ELEV. 693.31'
BENCHMARK #9: ELEV. 694.31'
BENCHMARK #10: ELEV. 695.31'
BENCHMARK #11: ELEV. 696.31'
BENCHMARK #12: ELEV. 697.31'
BENCHMARK #13: ELEV. 698.31'
BENCHMARK #14: ELEV. 699.31'
BENCHMARK #15: ELEV. 700.31'

BENCHMARK #1: ELEV. 686.31'
BENCHMARK #2: ELEV. 687.48'
BENCHMARK #3: ELEV. 688.31'
BENCHMARK #4: ELEV. 689.31'
BENCHMARK #5: ELEV. 690.31'
BENCHMARK #6: ELEV. 691.31'
BENCHMARK #7: ELEV. 692.31'
BENCHMARK #8: ELEV. 693.31'
BENCHMARK #9: ELEV. 694.31'
BENCHMARK #10: ELEV. 695.31'
BENCHMARK #11: ELEV. 696.31'
BENCHMARK #12: ELEV. 697.31'
BENCHMARK #13: ELEV. 698.31'
BENCHMARK #14: ELEV. 699.31'
BENCHMARK #15: ELEV. 700.31'

COORDINATE TABLE

POINT	NORTHING	EASTING
A	5000.000	5000.000
B	2283.298	4926.178
C	2283.298	7653.947
D	4926.178	7653.947
E	4926.178	6053.124
F	4926.178	6053.124
G	4926.178	6053.124
H	4926.178	6053.124
I	4926.178	6053.124
J	4926.178	6053.124
K	4926.178	6053.124
L	4926.178	6053.124

GRAPHIC SCALE
1" = 60'
1" = 120'



INDIVIDUAL HOME SITES WILL BE DETERMINED BY
BUILDER. BUILDER MUST MAINTAIN A POSITIVE 2%
GRADE FOR THE ENTIRE LOT. ELEVATIONS TO ADJACENT NATURAL/GARAGE
ELEVATIONS ON THE INDIVIDUAL LOT TO ALLOW FOR
PROPER STORM DRAINAGE.
ALL BASEMENT FLOOR ELEVATIONS TO BE A
MINIMUM OF 2' ABOVE GROUNDWATER TABLE.

ALL LIMITS TO BE SERVED BY INDIVIDUAL WELLS.
ALL LIMITS TO BE SERVED BY A COMMUNITY
WASTEWATER SYSTEM. COASTING ON EACH UNIT
SITE, AND A FORCEMAIN SYSTEM TO DELIVER
WASTEWATER TO THE COMMUNITY DRAINFIELD.

M.B.O. TABLE

UNIT NO.	ELEV.
#1	686.31
#2	687.48
#3	688.31
#4	689.31
#5	690.31
#6	691.31
#7	692.31
#8	693.31
#9	694.31
#10	695.31
#11	696.31
#12	697.31
#13	698.31
#14	699.31
#15	700.31



MEMO

Staff Communication

DATE: September 9, 2021
TO: Gaines Charter Township Board of Trustees
FROM: Dan Wells, Community Development Manager
RE: Code Enforcement Policy

SUMMARY OF TOPIC:

The Township has recently purchased new updated citation books for Zoning and Fire Code enforcement that meet court requirements, as the old citation books were not compliant.

Zoning enforcement has become more of a priority for the Township recently, and while the vast majority of residents with zoning violations on their property resolve the issue quickly when it is brought to their attention, several property owners have not responded to repeated warnings. The violations at these properties continue to affect property values, and aggravate surrounding residents. Similarly, the Fire Department needs a more robust mechanism to enforce fire code violations, which tend to be concerned with public safety, and the new citation books include spaces to detail fire code violations.

Current zoning enforcement process includes inspection after a complaint is received, issuance of a warning letter, follow up inspection, and issuance of a second warning with fine amount detailed if the issue isn't resolved. Since the old citation books were out of date, enforcement has tended to stall at this point.

The Township does have a civil citation process in place in its municipal code, and the proposed Code Enforcement Policy has been developed with Zoning, Fire and Kent County Sheriff Department input. It outlines processes for both zoning and fire enforcement and the steps necessary to document and issue citations.

The main difference between what is practice now versus what is new is that Zoning staff would like the initial citation amount to be raised from \$50 to \$100 for residential violations, and \$500 for commercial properties. Currently, warning letters issued by zoning staff indicate a \$50 citation, an amount that was probably set decades ago.

FINANCIAL IMPACT:

Goal is not to be an increased source of revenue. Goal is to better cover the actual cost of enforcement of codes, and potentially increased compliance by residents.

BUDGET ACTION REQUIRED:

None

STAFF RECOMMENDATION:

Staff recommends Board pass a resolution increasing the minimum code violation citation fine.



**CHARTER TOWNSHIP OF GAINES
COUNTY OF KENT**

RESOLUTION NO.: ____

**RESOLUTION TO ESTABLISH GAINES CHARTER TOWNSHIP INITIAL ZONING
AND FIRE CODE VIOLATION FINES**

At a regular meeting of the Board of Trustees of the Charter Township of Gaines, held in the Township Hall in said Township, 8555 Kalamazoo Avenue, SE, Caledonia, MI 49316, on September 13, 2021 there were:

PRESENT:

ABSENT:

The following resolution was offered by _____ and seconded by _____.

Whereas, the Gaines Charter Township Board of Trustees recognizes the need to enforce established zoning and fire codes, and

Whereas, the cost of enforcing such codes has increased significantly since the establishment of existing violation fines,

Therefore, be it resolved that the Gaines Charter Township Board of Trustees hereby adopts the following initial code violation fine structure, which shall become effective upon adoption of this resolution:

Initial citation fine for residential properties: \$100

Initial citation fine for commercial properties: \$500

The following votes were recorded:

AYES:

NAYS:

The Supervisor declared the resolution adopted.

STATE OF MICHIGAN)
) SS
COUNTY OF KENT)

I, Michael A. Brew, Clerk of Gaines Charter Township, Michigan, do hereby certify that the above is a true and correct copy of the resolution adopted by Gaines Charter Township at a meeting held on September 13, 2021.

Michael A. Brew
Gaines Charter Township, Clerk

Date



CLEAR FORM

Professional Development
Seminar/Accreditation/Workshop/Conference
Attendance Request Form

Employee Name: Megan VanHoose Job Title: Assessor
Supervisor: Jonathan Seyferth Date: 09/08/2021

Check One:

☐ Seminar ☒ Accreditation Course ☐ Workshop ☐ Conference ☐ Other

Title of Activity: IAAO 311: Real Property Modeling Concepts

Organization Name: Kent County Association of Assessing Officers

Location: Kent District Library - Cascade Branch Wisner Center

Dates of Attendance: October 25-29 Number of training hours: 32

Registration Cost: 350 Cost of Housing: N/A

Estimated Mileage: N/A Estimated Cost of Meals: N/A

List specific knowledge or skill will you learn: See attached

How will the acquired knowledge/skill help improve your performance and/or prepare you for more advanced responsibilities? This class gives focuses on data analysis

and application of mass appraisal techniques. This class

will help me continue to grow in the assessing field

and better serve our department and Township.

Employee Signature: Megan VanHoose Date: 9/8/21

Attach a description of the training with a completed registration form and forward to the Supervisor for approval.

Approval/Denial
(To be completed by Supervisor's office)

Approved: _____ Denied: _____ by Board of Trustees at meeting held: _____

If approved with exceptions, provide exceptions: _____

If denied, provide an explanation: _____

Supervisor's signature: _____ Date: _____

IAAO 311: Real Property Modeling Concepts

SPONSORED BY:
KENT COUNTY ASSOCIATION OF ASSESSING OFFICERS (KCAAO)



*2022 STC Approved 16 Hour Continuing Education Course *Pending*

Monday, October 25 – Thursday, October 28, 2021: 8:00 AM – 4:30 PM
&
Friday, October 29: 8:00 AM – 11:30 AM (Exam only)

Wisner Center in the Cascade Library
Cascade Charter Township
2870 Jack Smith Ave SE
Grand Rapids, MI 49546
or Live-Online Via Zoom

KCAAO Members - \$350
MAA and MMAAO Members - \$425
Non-Member - \$550

Presented by: Scott Winter, CAE

Program Summary:

This course is designed to build on the subject matter covered in Course 300 – Fundamentals of Mass Appraisal and prepares students to take advanced mass appraisal courses. In this course, students will learn how to use Excel and SPSS to analyze and apply data. Much of the emphasis in this course is on data accumulation and analysis using the cost approach. Along the way, students will learn how to use Excel graphing and analysis tools for ratio studies and cost schedules.

Recommended prerequisite: Course 300
Recommended textbook: Fundamentals of Mass Appraisal textbook (FMA)
Calculator is required – cell phones will not be allowed for the exam

Questions, contact Megan VanHoose at (616) 438-9266 or megan.vanhoose@gainestownship.org

COURSE REGISTRATION

IAAO 311: Real Property Modeling Concepts

October 25 – October 29, 2021

Please fill out portion below and mail this form with your payment.

Reservations and payment must be received by Friday, October 1, 2021.

Registration fee is non-refundable. Late registrations or registrations not accompanied with full payment will not be accepted. Association membership must be current for 2021 to receive the discounted rate.

Name _____ Email _____

Unit/Company _____ Work Phone (____) _____

In-person or live-online _____

- ☐ KCAAO Member - \$350
- ☐ MAA or MMAAO Member - \$425
- ☐ Non-Member - \$550

Make checks payable to: KCAAO

*Mail Registration and Payment to:
Kent County Bureau of Equalization
Attn: Caryn Rasch
300 Monroe Avenue NW
Grand Rapids, MI 49503*



CLEAR FORM

Professional Development

Seminar/Accreditation/Workshop/Conference
Attendance Request Form

Employee Name: Karen Gehrls Job Title: Assessing Technician
Supervisor: Megan VanHoose Date: 09/08/2021

Check One:

☐ Seminar ☒ Accreditation Course ☐ Workshop ☐ Conference ☐ Other

Title of Activity: IAAO 101: Principals of Appraising

Organization Name: Kent County Association of Assessing Officers

Location: Kent District Library - Cascade Branch Wisner Center

Dates of Attendance: October 25-29 Number of training hours: 32

Registration Cost: 350 Cost of Housing: N/A

Estimated Mileage: N/A Estimated Cost of Meals: N/A

List specific knowledge or skill will you learn: See attached

How will the acquired knowledge/skill help improve your performance and/or prepare you for more advanced responsibilities? This class gives an incredible amount of information on the basic principals of appraising/assessing which will help Karen continue to grow in the assessing field and better serve our department and Township.

Employee Signature: Karen Gehrls Date: 9/8/2021

Attach a description of the training with a completed registration form and forward to the Supervisor for approval.

Approval/Denial
(To be completed by Supervisor's office)

Approved: _____ Denied: _____ by Board of Trustees at meeting held: _____

If approved with exceptions, provide exceptions: _____

If denied, provide an explanation: _____

Supervisor's signature: _____ Date: _____

IAAO 101: Fundamentals of Real Property Appraisal

SPONSORED BY:
KENT COUNTY ASSOCIATION OF ASSESSING OFFICERS (KCAAO)



2022 STC Approved 16 Hour Continuing Education Course *Pending

Monday, October 25 – Thursday, October 28, 2021: 8:00 AM – 4:30 PM
&
Friday, October 29: 8:00 AM – 11:30 AM (Exam only)

*Wisner Center in the Cascade Library
Cascade Charter Township
2870 Jack Smith Ave SE
Grand Rapids, MI 49546*

*KCAAO Members - \$350
MAA and MMAAO Members - \$425
Non-Member - \$550*

Presented by: Debby Ring, MMAO

Program Summary:

This course is designed to provide students with an understanding and working knowledge of the procedures and techniques required to estimate the market value of vacant and improved properties. This course concentrates on the skills you need to estimate the market value of properties using two approaches to value: the cost approach and the sales comparison approach. This course is a required pre-requisite for most IAAO courses.

*Recommended textbook: Property Assessment Valuation (PAV) (3rd edition)
Calculator is required – cell phones will not be allowed for the exam*

Questions, contact Megan VanHoose at (616) 438-9266 or megan.vanhoose@gainestownship.org

COURSE REGISTRATION

IAAO 101: Fundamentals of Real Property Appraisal

October 25 – October 29, 2021

Please fill out portion below and mail this form with your payment.

Reservations and payment must be received by Friday, October 1, 2021.

Registration fee is non-refundable. Late registrations or registrations not accompanied with full payment will not be accepted. Association membership must be current for 2021 to receive the discounted rate.

Name _____ Email _____

Unit/Company _____ Work Phone (____) _____

- ☐ KCAAO Member - \$350
- ☐ MAA or MMAAO Member - \$425
- ☐ Non-Member - \$550

Make checks payable to: KCAAO

*Mail Registration and Payment to:
Kent County Bureau of Equalization
Attn: Caryn Rasch
300 Monroe Avenue NW
Grand Rapids, MI 49503*



ACTION MEMO

Staff Communication

DATE: September 9, 2021

TO: Township Board

FROM: Jonathan Seyferth, Township Manager

RE: Special Assessment District Resolution 4

SUMMARY OF TOPIC:

At the August 9, 2021 Board Meeting, the Township Board decided to proceed with the Special Assessment District process. That included the running of the Special Assessment Roll (which was done following the meeting).

Tonight, the Township Board is being asked to consider for adoption the Fire and Public Safety Services Special Assessment District Resolution 4 which will set the second public hearing for Monday, Oct. 11 to review and (potentially confirm) the Special Assessment Roll. The roll is on file here at the Township. If following the Second Public Hearing the Board chooses to confirm the roll, it will be the last step in the process to establish the assessment.

At the Aug. 9 meeting the Board asked the Staff to provide some additional communication materials for the public related to the second notice. Staff has developed some additional communication materials that will go on the website (in addition to the draft letter that was sent to you separately). On the website the public will find some additional documentation, updated FAQs about the Special Assessment and a narrated Power Point about the process and the need (this is an updated version of the presentations that were given at the Aug. 9 meeting). That information would only go up if the board chooses to move forward with the Special Assessment.

As has been noted a few times, staff is recommending that the Special Assessment District be started at 0.6 mills in year one and then stepped up to 1.1 mills in year two (this would be to cover the possibility of additional staff at the Dutton Fire Department). It also recommended that the Township continue to contribute about \$2 million per year from the

General Fund to Public Safety and that the SAD be used to supplement the remaining need.

Follow up Question from Aug. 9:

Can the Township Board establish a HARD CAP on the Special Assessment District (i.e., not exercise the 10% increase option above 1.5 mills as allowed by State law)? No, it cannot. State law spells out the circumstances in which Special Assessments can be established and the circumstances in which it can be increased. Local units are not given much (if any) latitude in changing that criterion. Additionally, state law (and case law) is clear that current Boards cannot bind the actions of future Boards.

FINANCIAL IMPACT:

If the Special Assessment District is created and levied in year one at 0.6 mills, it will generate about \$600,000 in dedicated public safety funding.

BUDGET ACTION REQUIRED:

No budget action is required at this point, however, if the Special Assessment District is established, Public Safety would become it's own budget center and revenue from the assessment would go directly into that fund. The General Fund would also do an interfund transfer of \$2 million into the newly created Public Safety Budget.

STAFF RECOMMENDATION:

Staff recommends adoption of the 4th Resolution and to continue forward with the Special Assessment process.

**GAINES CHARTER TOWNSHIP
KENT COUNTY, MICHIGAN**

(RESOLUTION NO. 21-__)

FIRE AND PUBLIC SAFETY SERVICES SPECIAL ASSESSMENT DISTRICT

**DETERMINATION TO PROCEED WITH THE ESTABLISHMENT
OF A SPECIAL ASSESSMENT DISTRICT TO DEFRAY THE
COSTS OF FIRE AND PUBLIC SAFETY SERVICES; APPROVAL
OF PLANS AND ESTIMATE OF COSTS; FINAL DETERMINATION
OF THE SPECIAL ASSESSMENT DISTRICT; ACKNOWLEDGE-
MENT OF FILING AND PRESENTATION OF THE SPECIAL
ASSESSMENT ROLL TO THE TOWNSHIP BOARD.**

Minutes of a regular meeting of the Gaines Charter Township Board, Kent County,
Michigan, held in the Township Hall, 8555 Kalamazoo Avenue SE, Caledonia, Michigan 49316,
on September 13, 2021, at 7:00 p.m., local time.

PRESENT: Members _____

ABSENT: Members _____

The following Resolution was offered by Township Board Member _____
and supported by Township Board Member _____:

WHEREAS, Section 1(3) (being MCL 41.801 *et seq*) of Act 33 of the Public Acts of
Michigan of 1951, as amended ("Act 33") and Section 20948 (being MCL 333.20948) of Act 368
of the Public Acts of 1978 ("Act 368"), provide that the Township Board may provide for the
maintenance and operation of police service, fire service and ambulance operations, and hence
may proceed to defray the cost of purchasing, operating, and / or contracting fire, first responder,
emergency rescue and police motor vehicles, apparatus, equipment, capital improvements, and
housing and providing fire protection, rescue, first responder, police, public safety and related

services and operations (collectively, the “Services”) by special assessment on the lands and premises in the township to be benefitted, except for lands and premises exempt from the collection of taxes under the General Property Tax Act, Act 206 of the Public Acts of Michigan of 1893 (however, lands and premises otherwise subject to special assessment via a contract or agreement with the Township or otherwise or subject to special assessment due to special or other legislation are not exempt and shall be subject to the special assessment); and

WHEREAS, the Township Assessor and Township Supervisor have prepared, certified and reported to the Township Board a special assessment roll for the lots and parcels of property benefitted by the Services and located in the Fire and Public Safety Services Special Assessment District. See Exhibit A as attached hereto for the certification.

NOW, THEREFORE, IT IS RESOLVED THAT:

1. The special assessment roll for the Fire and Public Safety Services Special Assessment District (the “Special Assessment Roll”), as reported to the Township Board by the Township Assessor and Township Supervisor, shall be filed in the office of the Township Clerk and shall be available for public inspection during the normal working hours of the Township office.

2. The Township Board shall hold a second public hearing on Monday, October 11, 2021 at 7:00 p.m. at the Township Hall located at 8555 Kalamazoo Avenue SE, Caledonia, Michigan 49316, to meet and review (and potentially confirm) the Special Assessment Roll, and hear and review any objections to the Special Assessment Roll.

3. The Township Clerk shall cause to be published a Notice of the Public Hearing, Exhibit B as attached, in the SUN AND NEWS, a newspaper of general circulation within the

Township, at least two (2) times prior to the public hearing, with the first publication at least ten (10) days prior to the public hearing. Proofs of publication of such notice shall be filed with the Township Board.

4. The Township Clerk, at least ten (10) days prior to the date of the public hearing, shall send a Notice of the Public Hearing, Exhibit B, by first class mail addressed to each record owner, or party in interest, of each parcel of property to be assessed, at the address shown for such owner or party in interest upon the last Township tax assessment records, as supplemented by any subsequent changes in the names or addresses of the owners or parties listed therein, except in the case of railroad companies which shall be mailed a notice of the public hearing by registered mail.

5. The form of the Notice of the Public Hearing to be mailed and published, as required herein, shall be substantially as set forth in Exhibit B hereto.

6. A person objecting to the assessment roll shall file their objection in writing with the Township Clerk before the close of the hearing.

7. All resolutions or parts of resolutions in conflict herewith shall be and the same are hereby rescinded to the extent of any conflict.

8. All actions heretofore taken by Township officials, employees, and agents with respect to the Services and proceedings regarding this matter are hereby ratified and confirmed.

YEAS: Members _____

NAYS: Members _____

ABSENT: Members _____

RESOLUTION DECLARED ADOPTED.

Michael A. Brew

Gaines Charter Township Clerk

STATE OF MICHIGAN)
) ss.
COUNTY OF KENT)

I, Michael Brew, Gaines Charter Township Clerk, hereby certify that the foregoing is a true and complete copy of a resolution adopted by the Township Board of the Charter Township of Gaines at a regular meeting held on September 13, 2021, and that public notice of said meeting was given pursuant to Act No. 267, Public Acts of Michigan, 1976, as amended, including, in the case of a special or rescheduled meeting, notice by publication or posting at least eighteen (18) hours prior to the time set for the meeting.

IN WITNESS WHEREOF, I have affixed my official signature this ____ day of _____, 2021.

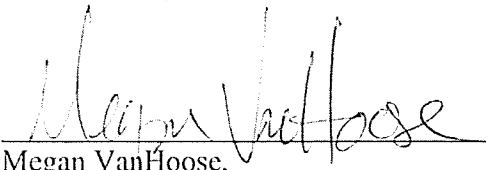
Michael A. Brew
Gaines Charter Township Clerk

EXHIBIT A

ASSESSOR'S CERTIFICATE

I, Megan VanHoose, Assessor of the Charter Township of Gaines in Kent County, Michigan, hereby state that the attached Special Assessment Roll was made pursuant to a resolution of the Township Board adopted on August 9, 2021, and in making such Special Assessment Roll, I, according to my best judgment, have conformed in all respects to the directions contained in such resolution and the statutes of the State of Michigan.

Dated: September 9, 2021


Megan VanHoose,
Gaines Charter Township Assessor

SUPERVISOR'S CERTIFICATE

I, Robert DeWard, Supervisor of the Charter Township of Gaines in Kent County, Michigan, hereby state that the attached Special Assessment Roll was made pursuant to a resolution of the Township Board adopted on August 9, 2021, and in making such Special Assessment Roll, I, according to my best judgment, have conformed in all respects to the directions contained in such resolution and the statutes of the State of Michigan.

Dated: SEPT. 9, 2021

A handwritten signature in black ink, appearing to read "Robert DeWard", written over a horizontal line.

Robert DeWard,
Gaines Charter Township Supervisor

EXHIBIT B

GAINES CHARTER TOWNSHIP

KENT COUNTY, MICHIGAN

NOTICE OF PUBLIC HEARING

FIRE AND PUBLIC SAFETY SERVICES SPECIAL ASSESSMENT DISTRICT

NOTICE IS HEREBY GIVEN that the Township Board of the Charter Township of Gaines, Kent County, Michigan, has resolved its intention to proceed pursuant to Act 33 of the Public Acts of Michigan of 1951 (“Act 33”) and Act 368 of the Public Acts of Michigan of 1978 (“Act 368”) to provide for the maintenance and operation of police services, fire service and ambulance operations within the Township and to defray the cost of purchasing, operating, and / or contracting fire, first responder, emergency rescue and police motor vehicles, apparatus, equipment, capital improvements, and housing and providing fire protection, rescue, first responder, police, public safety and related services, maintenance and operations (collectively, the “Services”) in the Township by special assessment on the lands and premises in the Township to be benefited, except for lands and premises exempt from the collection of taxes under the Michigan General Property Tax Act (however, lands and premises otherwise subject to special assessment via a contract or agreement with the Township or otherwise or subject to special assessment due to special or other legislation are not exempt and shall be subject to the proposed special assessment).

The Township has determined that the Fire and Public Safety Services Special Assessment District (the “Special Assessment District” or “District”) shall consist of all lots and parcels of property located within the boundaries of the Charter Township of Gaines, Kent County, Michigan, against which all or a portion of the cost of the Services shall be specially assessed,

except that lands and premises exempt from the collection of taxes under the Michigan General Property Tax Act are generally exempt from the special assessment (however, lands and premises otherwise subject to special assessment via a contract or agreement with the Township or otherwise or subject to special assessment due to special or other legislation are not exempt and shall be subject to the special assessment).

NOTICE IS FURTHER GIVEN that the Township Assessor and Township Supervisor of the Charter Township of Gaines have made and certified a special assessment roll for the Special Assessment District, which roll sets forth the relative portion of the cost of the Services that is to be levied in the year 2021 in the form of special assessments against each benefitted lot and parcel of land in the special assessment district. The special assessment district shall be comprised of all parcels and lots located within Gaines Charter Township, Kent County, Michigan, except that lands and premises exempt from the collection of taxes under the Michigan General Property Tax Act are generally exempt from the special assessment (however, lands and premises otherwise subject to special assessment via a contract or agreement with the Township or otherwise or subject to special assessment due to special or other legislation are not exempt and shall be subject to the special assessment).

PUBLIC HEARING

TAKE NOTICE that the Township Board of the Charter Township of Gaines will hold a public hearing on Monday, October 11, 2021, at 7:00 p.m. in the Township Hall located at 8555 Kalamazoo Avenue SE, Caledonia, Michigan 49316, to review (and potentially confirm) the special assessment roll and to hear and consider any and all objections and matters relating thereto.

TAKE NOTICE that appearance and protest at the public hearing is required in order to appeal the amount of the special assessment or other matters to the Michigan Tax Tribunal.

TAKE NOTICE that an owner or party in interest, or his or her agent, may appear in person at the hearing to protest the special assessment or District, or may file his or her appearance or protest by letter, on or before the close of the hearing.

TAKE NOTICE that an owner or any person having an interest in the real property subject to the special assessment may file a written appeal of the special assessment or District with the Michigan Tax Tribunal within thirty (30) days after the date of the confirmation of the special assessment roll, if the owner or person having an interest in the real property appears and protests the special assessment at the hearing held for the purpose of confirming the roll.

Michigan Tax Tribunal

P.O. Box 30232

Lansing, Michigan 48909

TAKE FURTHER NOTICE that the special assessment roll as prepared has been reported to the Township Board and is on file with the Township Clerk for public examination or inspection.

TAKE FURTHER NOTICE THAT AFTER THE SPECIAL ASSESSMENT ROLL IS CONFIRMED, THE TOWNSHIP BOARD WILL ANNUALLY DETERMINE THE AMOUNT TO BE ASSESSED IN THE DISTRICT FOR THE SERVICES.

This notice was authorized by the Township Board of the Charter Township of Gaines.

FOR FURTHER INFORMATION PLEASE CONTACT:

Jonathan Seyferth, Township Manager
Charter Township of Gaines
Township Hall
8555 Kalamazoo Avenue SE
Caledonia,
Michigan 49316,
Telephone (616) 698-6640

Respectfully submitted,

Dated: _____, 2021

Michael A. Brew
Gaines Charter Township Clerk

AFFIDAVIT OF MAILING
OF NOTICE OF PUBLIC HEARING

STATE OF MICHIGAN)
) ss.
COUNTY OF KENT)

I, Michael Brew, Clerk of Gaines Charter Township, being duly sworn, depose and say that, pursuant to Act 33 of the Public Acts of Michigan of 1951 and Act 368 of the Public Acts of Michigan of 1978, caused to be mailed on _____, 2021 a copy of the Notice of Public Hearing for the hearing to be held by the Gaines Charter Township Board on _____, 2021 at 7:00 p.m. at the Township Hall, to all property owners of record of all lots and parcels of property located within the boundaries of the Charter Township of Gaines.

Michael Brew, Gaines Charter Township Clerk



ACTION MEMO

Staff Communication

DATE: September 9, 2021

TO: Gaines Charter Township Board

FROM: Jonathan Seyferth, Township Manager

RE: Cutlerville Fire Department – Union Contract

INTRODUCTION:

Representatives from Byron and Gaines Townships and Cutlerville Professional Firefighters Union Local 4385 have met several times over the last two months to come up with details of an updated July 1, 2021 to June 30, 2024 Union Agreement.

This memo is intended to give an overview of the agreed to changes that were reached by the CPFU Local 4385 and representatives from Byron and Gaines Townships and finalized at their August 23, 2021 meeting. It should be noted that final approval of the Union Agreement is subject to the approval of both the Byron and Gaines Township Boards of Trustees.

UPDATED/CLARIFIED LANGUAGE:

- In addition to some formatting and grammatical updates the following language updates were done:
 - o Overtime language updated to reflect current practice (OT is based on total hours worked in a pay period, not consecutive hours) (Article 9 paragraph 9.1)
 - o Sick time language has been updated to reflect one (1) sick day is provide at the start of employment. If unused this day can be carried over to the next fiscal year (Article 16 paragraph 16.1 (b))
 - o Comp Time language updated to reflect current practice in how its credited (Article 17 paragraph 17.1)
 - o Bereavement leave updated to allow more flexibility at the discretion of the Chief (Article 18, paragraph 18.1)

- o Insurance premium language updated to reflect current practice and note the maximum amount of premiums a fire fighter would pay if employees are required to contribute to their health care costs for basic health insurance. (Article 22, paragraph 22.1 (c))

NEW ADDITION TO THE CONTRACT:

The addition of two (2) annual holidays (Patriots Day & Veterans Day). This brings the Cutlerville Fire Department into line with the total number of holidays afforded other staff. (Article 14, paragraph 14.1)

ITEMS AGREED TO BE ADDRESSED OUTSIDE OF THE CONTRACT:

- Worker's Comp – a Memorandum of Understanding (MOU) to be developed between the Union and Townships regarding the establishment of a reserve fund that can be used as a bridge payment from when an individual goes on disability until Accident Fund payments are in place.
- Call Back Pay (Article 11 paragraph 11.3) Overtime shifts. A Memorandum of Understanding (MOU) will be drafted by the Townships to allow a trial period where fulltime Cutlerville Fire Department personnel can be offered overtime shifts based on seniority. The current practice per Section 11.3 is that part-time and paid-on-call staff are offered to fill overtime first. The Chief has indicated from an operational perspective it could be helpful to have this option as there's a limited pool of folks available to fill these shifts.

WAGES:

- Effective July 1, 2021 fire fighters receive a 5% increase and EOs & officers receive a 7% increase;
- Effective July 1, 2022 fire fighters receive a 4% increase and EOs & officers receive a 5% increase; and
- Effective July 1, 2023 fire fighters receive a 3% increase and EOs & officers receive a 4% increase.

This contract does away with stipends for officers and converts their pay to a flat hourly rate (this is a more common practice in full time departments). Because of the conversion to a flat hourly rate, overtime and retirement benefits will also be impacted by this change. This will also be the first contract with a specific pay rate for Engine Operators (EO) and initial pay is based on a 7% increase from the 2020 top rates for Fire Fighters (this translates into about a 2% higher pay rate above top Fire Fighter rates in the new contract).

Additional criteria have been noted for the promotion to EO including a minimal time of experience of 2+ years as a fire fighter with appropriate equipment operation experience (does not necessarily have to be in Cutlerville), a recommendation of the Chief, and approval of the Cutlerville Fire Board.

The annual increases are larger in this contract, the driver here is to bring the fulltime Cutlerville fire fighters more in line with the pay of fulltime fire fighters in other Kent County Townships with fulltime departments and closer to (though not in parity with) neighboring departments in Wyoming and Kentwood.

(Specific pay tables are below)

STAFF RECOMMENDATION:

Staff recommends adoption of the Cutlerville Professional Firefighters Union Local 4385 contract effective July 1, 2021 through June 30, 2024.

WAGE TABLES

Wage Detail					
Effective July 1, 2021					
July 1, 2021 - Fire Fighters see a 5% increase over 2020 pay scales and officers & EO see a 7% increase over 2020 pay scales.					
Fire Fighter					
Rate	Start	6 Months	1 Year	2 Years	3 Years
Hourly	\$ 20.35	\$ 20.88	\$ 21.42	\$ 22.24	\$ 23.31
Engine Operator					
Rate	\$ 23.75				
(Engine Operator will be considered a change in rank and paygrade and requires the approval of the Cutlerville Fire Board following the recommendation of the Fire Chief.)					
OFFICERS					
Lieutenant					
Rate	\$ 24.58				
Captain					
Rate	\$ 25.70				

		Wage Detail					
		Effective July 1, 2022					
July 1, 2022 - Fire Fighters see a 4% increase over 2021 pay scales and officers & EO see a 5% increase over 2021 pay scales.							
Fire Fighter							
Rate	Start	6 Months	1 Year	2 Years	3 Years		
Hourly	\$ 21.16	\$ 21.72	\$ 22.28	\$ 23.13	\$ 24.24		
Engine Operator							
Rate	\$ 24.94						
(Engine Operator will be considered a change in rank and paygrade and requires the approval of the Cutlerville Fire Board following the recommendation of the Fire Chief.)							
OFFICERS							
Lieutenant							
Rate	\$ 25.81						
Captain							
Rate	\$ 26.99						

		Wage Detail						
		Effective July 1, 2023						
July 1, 2023 - Fire Fighters see a 3% increase over 2022 pay scales and officers & EO see a 4% increase over 2022 pay scales.								
Fire Fighter								
Rate	Start	6 Months	1 Year	2 Years	3 Years			
Hourly	\$ 21.80	\$ 22.37	\$ 22.95	\$ 23.82	\$ 24.97			
Engine Operator								
Rate	\$ 25.94							
(Engine Operator will be considered a change in rank and paygrade and requires the approval of the Cutlerville Fire Board following the recommendation of the Fire Chief.)								
OFFICERS								
Lieutenant								
Rate	\$ 26.84							
Captain								
Rate	\$ 28.07							

AGREEMENT BETWEEN
GAINES CHARTER TOWNSHIP AND BYRON TOWNSHIP
AND
THE CUTLERVILLE PROFESSIONAL FIREFIGHTERS UNION
(LOCAL 4385)

(Effective July 1, 2021 through June 30, 2024)

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Agreement

THIS AGREEMENT, entered into this 1st day of July, 2021, by and between the Gaines Charter Township, Byron Township (hereinafter referred to as the “Boards”), and the Cutlerville Firefighters Union Local 4385, International Association of Fire Fighters (hereinafter referred to as the “Union”).

Preamble

It is the purpose of this Agreement to achieve and maintain harmonious relations between the Boards and the Union; to provide for equitable and peaceful adjustment of differences that may arise, and to establish proper standards of wages, hours, and other conditions of employment. The Union recognizes the essential public service here involved and the general health, welfare and safety of the community and agrees to work with the Boards to encourage increased efficiency on the part of its members.

To these ends, the Boards and the Union encourage, to the fullest degree, friendly and cooperative relations between the respective representatives of all levels and among all employees.

Article 1 – Recognition

1.1 The Boards recognize the Union as the sole and exclusive collective bargaining representative for its full-time Firefighter/EMS employees of the Cutlerville Fire Department, excluding the Fire Chief, part-time and volunteer firefighters/EMS and all others, and agrees that it will not enter into any agreements with this group, individually or collectively.

1.2 The Boards and the Union agree that for the duration of the Agreement neither shall discriminate against any employee or applicant for employment because of their race, color, creed, sex, age, national or political belief, nor shall the Boards or their agents, nor the Union, its agents or members, discriminate against any employee because of his/her membership or non-membership in the Union.

1.3 Whenever the male pronoun is used in this Agreement, it shall be deemed to include both male and female.

1.4 Whenever the word “Day” or “Days” is used in this Agreement, they shall be defined as calendar days.

Article 2 – Management Rights

2.1 The Boards hereby retain and reserves unto themselves and their designated representatives when so delegated by the Boards, all powers, rights, duties and responsibilities conferred upon and vested in it by the laws and Constitution of the State of Michigan and the United States. These rights of management include, but are not limited to, the following:

(a) To determine all matters pertaining to the services to be furnished and the methods, procedures, means, equipment and machines to provide such service; to determine the nature and number of facilities and departments and their location(s);

(b) To determine whether any public safety services or other related or unrelated work performed by the bargaining unit will be provided by the Township to its residents; whether any or all public safety services or other related or unrelated work performed by the bargaining unit will be provided through bargaining unit employees, other non-bargaining unit Fire Department employees of the Township or subcontracted to an alternative provider, and whether the Township will enter into any cooperative, mutual aid, joint management or operating, or other agreements with other municipalities;

(c) To maintain order and efficiency: to study and use improved methods and equipment and outside assistance either in or out of the Boards' facilities;

(d) To establish classifications of work; to combine or reorganize any part or all of its operations;

(e) To determine the size of the work force and to increase and decrease the number of employees retained; to hire new employees; to direct the work force; to assign work and determine the location of work assignments and related work to be performed; to determine the number of employees to be assigned to operations; to establish work standards; to select employees for promotion or transfer to supervisory or other positions and to select the procedure for such promotion or transfer; to determine the number of supervisors; to make judgments regarding skill and ability and the qualifications and competency of employees; to establish training requirements for purposes of maintaining or improving the professional skills of employees and for advancement.

The Boards shall also have the right to suspend, discipline, or discharge employees for just cause; to transfer, layoff and recall personnel; to establish reasonable work rules and to fix and determine penalties for violations of such rules; to establish and change work schedules and hours; to provide and assign relief personnel; to continue and maintain its operations as in the past, provided. However, that these rights shall not be exercised in violation of any specific provision of this Agreement and, as such, they shall be subject to the grievance procedure set forth in this Agreement.

Article 3 – Strike/Lockout

3.1 The Union acknowledges that the employees covered by the Agreement are sworn to uphold the law and because of prohibition of strikes in Act 336, State of Michigan Public Acts of 1946, as amended, and its commitments hereunder, the Union agrees that neither it nor its members will for any reason, directly or indirectly call, sanction, or engage in any strike. Walkout, slow-down, stay away, limitations of service, boycott of a primary or secondary nature, picketing or any other activities that may disturb, restrict or interfere with the services provided by the Boards and their peaceful operations. The Boards agree that during the term of this Agreement, they will not lock out any employee covered by this Agreement.

Individual employees or groups of employees who instigate, aid, or engage in a work stoppage, slowdown or strike may be disciplined or discharged in the sole discretion of the Boards. It is understood and agreed that the question as to whether the actions of employees constitute such proscribed activities may be subject to the grievance procedure.

Article 4 – Union Activities

4.1 The Union shall have the right to elect or assign one (1) steward and one (1) alternate.

Article 5 – Seniority

5.1 Seniority shall be defined as a full-time employee's length of continuous service within the Cutlerville Fire Department since his/her last appointment date. "Last appointment date" shall mean the date upon which an employee first reported to work as a full-time employee at the fire department at the direction of the Boards since which he/she has not quit, retired, been discharged or transferred outside the fire department. No time shall be deducted from an employee's seniority due to absences occasioned by authorized leaves of absence, vacations, sick or accident leaves, except as hereinafter provided. If more than one employee has the same beginning work date, seniority shall be at the discretion of the Fire Chief.

5.2 All new full-time employees shall be probationary employees during the first year of their employment. During the probationary period, the new employee shall have no seniority status, shall be employed at the will of the Boards, and shall have no right to utilize the grievance procedure set out in Article 3. The Boards reserve the right to extend the probationary period for new employees at the request of the Fire Chief for a period not to exceed an additional six (6) months. At the conclusion of the probationary period, and if the employee has met all of the job requirements and receives a favorable recommendation from the Fire Chief, then the employee's name shall be added to the seniority list as of his/her date of hire.

5.3 An employee's seniority within the Fire Department shall be terminated:

(a) If he/she quits, retires or is transferred outside the fire department. Any employee who is transferred from the bargaining unit to another position within the fire department shall retain seniority. If an employee fails to qualify, within a specified qualifying time (90 days), in a position with the department, but outside the bargaining unit, he/she shall return to his/her former position without loss of seniority.

(b) If the employee is discharged for cause.

(c) If, when recalled to work following a layoff, the employee fails to return to work on the date he/she is scheduled after a written notice is sent to the employee's last address on record with the Boards.

(d) If an employee is laid off or on unpaid leave for a period equal to his/her seniority at the time of layoff or six (6) months, whichever is less.

(e) If an employee is absent for three consecutive scheduled shifts without properly notifying the Fire Chief.

5.4 The Boards shall maintain an up-to-date seniority list. An up-to-date copy of the seniority list will be posted on the Union bulletin board annually. The names of all fulltime

employees who have completed their probationary period shall be listed on the seniority list in order of their last appointment dates starting with the senior employee at the top of the list.

5.5 Except as allowed in Article 2, or in the case of emergency, lack of work, to save funds or because of a lack of funds, no work customarily performed by any full time Fire Department employee covered under the Agreement shall be performed by another Boards' employee or by a person who is not an employee of the Cutlerville Fire Department, with the exception of the Fire Chief and paid on-call employees. If it becomes necessary to reduce the number of full time employees, the following procedures shall be used:

(a) Probationary employees shall be laid off first. If additional layoffs are necessary, the Boards agree to layoff the employee with the least seniority in the rank and classification affected provided, however, that the senior employee has the experience and training to perform the required work.

(b) Employees with the greater seniority in the rank and classification affected shall be recalled first and thereafter in the order of the employee's seniority provided, however, that the recalled employee has the experience and training to perform the required work.

Article 6 – Grievance Procedure

6.1 It is the intent of the parties of this agreement that the procedures hereby established shall serve as the means for the prompt disposition and amicable settlement of such disputes, controversies, and grievances as may arise between them. Both parties agree that all grievances should be dealt with promptly and every effort should be made to settle grievances as close to the source as possible.

6.2 Should the Boards fail to comply with the time limits herein, the grievance shall be automatically advanced to the next step. Should the Union fail to comply with the time limits herein, the grievance shall be considered to be withdrawn. Time limits may be extended by mutual written consent.

6.3 All such disputes, controversies and grievances which arise during the term of this Agreement between the Boards and the Union or between the Boards and the employee or group of employees, covered by this agreement concerning the effect, interpretation, application, claim, and breach or violation of any provision of this agreement as written shall be subject to the following procedure:

STEP 1: An employee or the Union claiming to have a grievance must submit such grievance in writing to the Fire Chief no later than seven (7) days after the matter concerned first arose. This written grievance shall include the name of the employee(s) involved, state facts giving rise to the grievance, identify all provisions of this Agreement by reference and state the contention of the employee or Union with respect to those provisions, indicate the relief sought and be signed by the aggrieved employee(s) and the Union. The Fire Chief shall reply within seven (7) days after receipt of this written grievance.

STEP 2: If the matter is not satisfactorily resolved in Step 1, the Union may appeal in writing to the Boards Chairpersons or Designee(s). This appeal must be delivered within seven (7) days following completion of Step 1. The answer of the Boards Chairperson(s) or Designee(s) shall be given within seven (7) days.

STEP 3: If the matter is not satisfactorily resolved in the proceeding steps, the Union may appeal in writing to the Boards. This appeal must be delivered within seven (7) days following the completion of Step 2. The Boards shall issue a recommendation for action within twenty-eight (28) days immediately following the date of the next scheduled meeting of each full Township Board. The grievance meeting before the Boards may be held in private session. Final decision shall be rendered by each full Township Board.

STEP 4: If the matter is not satisfactorily resolved in the preceding steps, the matter may be referred to arbitration by the Union. Such requests must be made in writing within seven (7) days following the completion of Step 3.

STEP 5: The parties shall select an arbitrator by mutual consent in a manner prescribed by the American Arbitration Association. All expenses, involved in the arbitration, shall be equally shared by both parties; however expenses relating to one party's representatives or the calling of witnesses or obtaining depositions shall be borne by the party at whose request such witness or depositions are required.

The arbitrator's powers shall be limited to the application and interpretation of this Agreement as written, and he/she shall be governed at all times by the terms of this Agreement. The arbitrator shall have no power or authority to alter or modify this Agreement in any respect, or any authority to hear or determine any dispute involving the exercise of any of the Boards' rights not specifically limited by the terms of this Agreement.

Further, the arbitrator shall not be empowered to consider any question or matter outside this Agreement or pass upon the propriety of written warnings administered to employees covered by this Agreement, set any wage rate or specify the terms of a new agreement. If the issue of arbitrability is raised, the arbitrator shall only decide the merits of the grievance if arbitrability is affirmatively decided. The arbitrator's decision shall be final and binding upon the Union, the Boards and the employees in the bargaining unit, provided, however, that either party may have its legal remedies.

Article 7 – Discipline and Discharge

7.1 No non-probationary employee covered by this Agreement shall be discharged or disciplined without just cause.

7.2 In the event an employee, during the term of this Agreement, receives a written disciplinary reprimand, is suspended from work for disciplinary reasons, or is discharged from his/her employment, and the employee believes he/she has been unjustly suspended or discharged, such suspension, discharge or written reprimand shall be subject to the grievance procedure.

7.3 After a period of five (5) years without any disciplinary action, the Boards will not consider any prior infractions greater than five (5) years old when imposing discipline, provided, however, that the prior discipline may be used to demonstrate notice to the employee of the applicable rule and/or policy.

Article 8 – Hours of Work

8.1 The scheduled work hours for full time employees of the Fire Department are assigned by, and can be changed at any time, at the sole discretion of the Fire Chief. Any change in the normal work shift, for example, changing the current nine (9) duty days of 24 hours each in 28 tour of duty, shall be made with thirty (30) days advance notice to the employee. This notice requirement shall not be required for changes of one (1) week or less. If the Union contacts the Fire Chief, in writing, within the thirty (30) day advance notice time period with a request to lengthen the time period for an additional ten (10) working days the Fire Chief will review the request, if the rationale provided by the Union relates to an emergency making it impossible to react within the current thirty (30) day time period the Fire Chief has the discretion to allow an additional ten (10) days.

8.2 The Boards may allow employees to work a vacant light duty assignment at their request when on a non-duty or duty related leave of absence, if there is a light duty assignment available. The Fire Chief, in his/her sole discretion, may approve any such light duty assignment.

Article 9 – Overtime

9.1 All employees are required to work overtime upon request of the Fire Chief or their supervisor. Employees shall be paid one and one-half times their regular rate of pay for all hours worked in excess of their assigned work shift. There will be no pyramiding of overtime. Unless specifically directed by the Fire Chief, full-time employees will not act as paid on-call volunteers by responding to calls beyond their normal work shift. otherwise, employees shall be paid overtime pay as required by federal and state law.

9.2 All overtime work shall be paid biweekly along with the regular wages.

Article 10 – Trade Time

10.1 The Union and the Boards agree that, with the prior approval and in the sole discretion of the Fire Chief or his designee, employees shall have the right to trade no less than one-half work days with other employees covered by this Agreement. No request will be unreasonably denied. Employees agree that there shall be no overtime incurred by this right and there shall be no change in wages.

Article 11 – Call Back Pay

11.1 A covered employee who is called back to work a shift shall be paid for a minimum of two (2) hours for such services provided that such call back is not contiguous with the employee's regular shift. The time such employee is to be paid will be calculated from the time the employee arrives at the fire station until the time when the employee is dismissed by the senior officer in charge.

11.2 Members will be allowed to respond back for emergencies and paid at time and a half at the Chief's discretion.

11.3 All overtime shifts will be offered to part-time and paid-on-call members of the department first. If the shift cannot be covered by part-time or paid-on-call employees, the time will be offered to fulltime employees. No shift shall exceed thirty-six (36) consecutive hours.

Article 12 – Wages

12.1 Appendix A is a schedule of salary rates for all classifications included within the bargaining unit. Annual rate is based on 2636 hours. Appendix A reflects the follow wage increases:

(a) Effective July 1, 2021 a five percent (5%) increase for Fire Fighters and a seven (7%) increase for EOs & officers

(b) Effective July 1, 2022 a three percent (4%) increase for Fire Fighters and a five (5%) increase for EOs & officers

(c) Effective July 1, 2023 a three percent (3%) increase for Fire Fighters and a four (4%) increase for EOs & officers

Article 13 – Payroll Deduction

13.1 During the life of this agreement, and conditioned upon the Township being able to make the deduction and deposit electronically, the Township agrees to deduct union membership dues, or initiation fees from the pay of each employee who executes and files with the employer a proper check off authorization form to be supplied by the union. The form for each employee for whom fees are to be deducted hereunder shall be delivered to the Clerk's office of the Township responsible for payroll before any payroll deductions are made for that employee. Any written authorization which lacks the employee's signature will be returned to the union by the Township.

13.2 Deduction for any calendar month shall be made from the first full pay period of that month, provided the employee has sufficient net earnings to cover the dues and/or fees. In the event an employee's net earnings for the first pay period are insufficient to cover dues and/or fees, a further deduction shall be made from the second period, and the employee shall be responsible for making any arrangements to pay the union for any deficiency. Deductions for any calendar month shall be remitted to the designated banking institution of the union not later than the 15th day of the following month.

13.3 The union shall notify the Township in writing of any proper amounts of deductions and subsequent changes in such amounts. Any changes will be a prospective effect only.

13.4 If a dispute arises whether or not an employee has properly executed or properly revoked a written check off authorization form, no further deduction shall be made until the matter is resolved.

13.5 The Township shall not be liable to the union for the remittance or payment or any sum other than actual deductions made from employee wages. The union agrees to indemnify and save the Township harmless from any and all claims, demands, lawsuits, and liability including costs and attorney's fees defending against same, arising from or relating to this section, or the section on union membership and agency shop or compliance therewith by Township.

Article 14 – Holidays

14.1 Employees will receive their regular rate of pay for each of the following holidays: New Year's Day, Easter, Memorial Day, Independence Day, Labor Day, Patriots Day, Veterans Day, Thanksgiving, and Christmas Day.

14.2 Employees on leaves of absence, suspension or layoff are not eligible to receive holiday pay. If the holiday falls on an employee's regularly scheduled workday, then the employee will be entitled to holiday pay plus wages for any hours actually worked on that holiday.

14.3 If the holiday falls on a day when the employee is not scheduled to work, then the employee will receive holiday pay only.

Article 15 – Vacation Leave

15.1 Employees shall be granted annual vacations with pay in accordance with the following guidelines:

- (a) The established vacation year is from January 1 through December 31.
- (b) Employees will accrue paid vacation according to the following schedule:

Length of Continuous Service as of January 1 Paid Vacation

- Less than one year and hire date January to March 31 – Employee receives 1 day of Vacation on April 1, July 1 and October 1.
- Less than one year and hire date April 1 to June 30 – Employee receives 1 day of vacation on July 1 and October 1.
- Less than one year and hire date July 1 to September 30 – Employee receives 1 day of vacation on October 1.
- At least one (1) year
but less than six (6) years - 5 days
- At least six (6) years
but less than ten (10) years - 8 days

- At least ten (10) years 10 days
- At least twenty (20) years 12 days

Vacation pay shall consist of the employee's regular rate of pay for the vacation period. Employees must submit vacation plans to the Chief at least fourteen (14) days prior to the requested vacation. Should circumstances compel a change of vacation plans, reasonable notice must be given. In the event of conflicting vacation plans, priority shall be based upon who gave written notice first.

15.2 Vacations must be taken in increments of a minimum of one-half day increments unless specially authorized by the Chief.

15.3 Employees may carry over up to two (2) shifts (48 hours) from one vacation year into the next. Employees will not be paid for unused vacation upon termination unless necessitated by work requirements and approved by the Chief.

Article 16 – Sick Leave

16.1 Employees who are unable to perform their duties because of personal illness or off-the-job injury will be paid their regular straight-time pay in accordance with the following schedule:

- (a) The sick pay schedule will begin each January 1 and end on December 31.
- (b) Employees with less than one (1) year of seniority by December 31 shall be entitled to one (1) paid sick day (shift) at the time of hire, if unused the (1) paid sick day can be used in the next calendar year.
- (c) Sick leave benefits will be paid at your regular rate of pay. Employees will accumulate three (3) days (shifts) per year and are allowed to carry up to ten (10) days (shifts) forward. No individual leaving the employment of the Townships will receive pay for unused accumulated sick time, unless approved by the Boards. In order to be eligible for sick leave benefits, employees must notify the Chief, or the Chief's designee, of their illness prior to the start of each workday that will be missed. Sick leave may not be used for vacation purposes. A doctor's slip will be required prior to the payment of sick leave benefits for any sick leave lasting two (2) or more consecutive work days.

Article 17 – Compensatory Time

17.1 Employees may opt to accumulate up to a maximum of seventy-two (72) hours per year of compensatory time for hours spent training. Compensatory time will be accrued at one-and one-half times the number of hours worked; i.e., work 4 compensatory hours = 6 hours accrued. Hours are annual and cannot be carried forward if not used.

Article 18 – Bereavement Leave

18.1 An employee may be granted time off with pay, not to exceed two (2) shifts in the event of a death in his or her immediate family. The Fire Chief (or in the Chief's absence, the Deputy Fire Chief) may grant one (1) additional twenty-four (24) hour shift off with pay at their sole discretion. Immediate family shall be defined as current spouse, mother, mother-in-law, father, father-in-law, step-mother, step-father, step children, children, brothers, sisters, brothers-in-law, sisters-in-law, and grandparents. An employee may be granted time off with pay, not to exceed one (1) shift in the event of a death in his or her extended family.

Article 19 – Jury Duty

19.1 Employees shall be excused for all judicial duties without any loss of pay only when job connected. If an employee is required to serve, and does in fact serve, on jury duty on a regularly scheduled working day, he/she shall receive his/her regular pay less the jury fees that he/she receives. Employees attending court on job related matters shall be paid as if at work. The maximum time to serve shall be limited to twenty (20) consecutive shifts (days). The employee shall return to duty upon completion of his/her daily jury duties.

Article 20 – ADA/ADEA/FMLA Language

20.1 **Eligibility.** Employees may be entitled to a leave of absence under the Family and Medical Leave Act (FMLA). FMLA leave is available to “eligible employees.” To be an “eligible employee,” an employee must: (1) have been employed by the Township for at least 12 months (which need not be consecutive); (2) have been employed by the Township for at least 1,250 hours of service during the 12-month period immediately preceding the commencement of the leave; and (3) be employed at a worksite where 50 or more employees are located within 75 miles of the worksite. As provided in FMLA regulations, the period of absence from work due to or necessitated by covered service under the Uniformed Services Employment and Reemployment Rights Act (USERRA) must be counted in determining whether the employee has been employed for at least 12 months by the employer.

20.2 **Entitlements.** The FMLA provides eligible employees with a right to leave, health insurance benefits and, with some limited exceptions, job restoration. The FMLA also entitles employees to certain written notices concerning their potential eligibility for and designation of FMLA leave.

(a) **Basic FMLA Leave.** The FMLA provides eligible employees up to 12 workweeks of unpaid leave for certain family and medical reasons during a 12-month period. The 12-month period is determined based on a rolling 12-month period measured backward from the date an employee uses his/her FMLA leave. Leave may be taken for any one, or for a combination, of the following reasons:

- To care for the employee's child after birth, or placement for adoption or foster care;
- To care for the employee's spouse, son, daughter or parent (but not in-law) who has a serious health condition;

- For the employee's own serious health condition (including any period of incapacity due to pregnancy, prenatal medical care or childbirth) that makes the employee unable to perform one or more of the essential functions of the employee's job; and/or
- Because of any qualifying exigency while an employee's spouse, son, daughter, or parent (the covered military member) is on covered active duty or call to cover active duty status, has been notified of an impending call or order to covered active duty. Covered active duty or call to active duty status means duty during deployment to a foreign country as defined in FMLA regulations.

A serious health condition is an illness, injury, impairment, or physical or mental condition that involves either an overnight stay in a medical care facility, or continuing treatment by a health care provider for a condition that either prevents the employee from performing the functions of the employee's job, or prevents the qualified family member from participating in school or other daily activities. Subject to certain conditions, the continuing treatment requirement may be met by a period of incapacity of more than three consecutive calendar days combined with at least two visits to a health care provider or one visit and a regimen of continuing treatment, or incapacity due to pregnancy, or incapacity due to a chronic condition. Other conditions may meet the definition of continuing treatment. Qualifying exigencies may include short-notice deployment, attending certain military events, arranging for alternative childcare, addressing certain financial and legal arrangements, attending certain counseling sessions, rest and recuperation, attending post-deployment reintegration briefings, and parental care, subject to and as provided in the FMLA regulations

(b) Additional Military Family Leave Entitlement (Injured Service Member Leave). In addition to the basic FMLA leave entitlement discussed above, an eligible employee who is the spouse, son, daughter, parent or next of kin of a covered service member is entitled to take up to 26 weeks of leave during a single 12-month period to care for the service member with a serious injury or illness. Leave to care for a service member shall only be available during a single 12-month period and, when combined with other FMLA-qualifying leave, may not exceed 26 weeks during the single 12-month period. The single 12-month period begins on the first day an eligible employee takes leave to care for the injured service member. A "covered service member" means a member of the Armed Forces, including a member of the National Guard or Reserves, who is undergoing medical treatment, recuperation, or therapy, is otherwise in outpatient status, or is on the temporary retired list, for a serious injury or illness and a covered veteran (as defined in FMLA regulations) who is undergoing medical treatment recuperation or therapy for a serious injury or illness.

A serious injury or illness means:

- In the case of a current member of the Armed Forces, including a member of the National Guard or Reserves, means an injury or illness that was incurred by the covered service member in the line of duty on active duty in the Armed Forces or that existed before the beginning of the member's active duty and was aggravated by service in line of duty on active duty in

the Armed Forces, and that may render the member medically unfit to perform the duties of the member's office, grade, rank or rating; and,

- In the case of a covered veteran, means an injury or illness that is incurred by the member in the line of duty on active duty and was aggravated by service in the line of duty on active duty in the Armed Forces) and manifested by itself before or after the member became a veteran, and is:

§ a continuation of a serious injury or illness that was incurred or aggravated when the covered veteran was a member of the Armed Forces and rendered the service member unable to perform the duties of the service member's office, grade, rank or rating; or

§ a physical or mental condition for which the covered veteran has received a U.S. Department of Veteran Affairs Service-Related Disability Rating (VASRD) of 50 percent or greater, and such VASRD rating is based, in whole or in part, on the condition precipitating the need for military caregiver leave; or

- a physical or mental condition that substantially impairs the covered veteran's ability to secure or follow a substantially gainful occupation by reason of a disability or disabilities related to military service, or would do so absent treatment; or
- an injury, including a psychological injury, on the basis of which the covered veteran's has been enrolled in the Department of Veterans Affairs Program of Comprehensive Assistance for Family Caregivers.

(c) **Intermittent Leave and Reduced Leave Schedules.** FMLA leave usually will be taken for a period of consecutive days, weeks or months. However, employees also are entitled to take FMLA leave intermittently or on a reduced leave schedule when medically necessary due to a serious health condition of the employee or covered family member or the serious injury or illness of a covered service member. The Township may not require an employee to take more leave than is necessary to address the circumstances that precipitated the need for the leave, provided that the leave is counted using the shortest increment of leave used to account for any other type of leave.

(d) **No Work While on Leave.** The taking of another job while on family/medical leave or any other authorized leave of absence is grounds for immediate termination.

(e) **Protection of Group Health insurance Benefits.** During FMLA leave, eligible employees are entitled to receive group health plan coverage on the same terms and conditions as if they had continued to work.

(f) **Restoration of Employment and Benefits.** At the end of FMLA leave, eligible employees are entitled to receive group health plan coverage on the same terms and

conditions as if they had continued to work. The Township will notify employees if they qualify as “key employees,” if it intends to deny reinstatement; and of their rights in such instances. Use of FMLA leave will not result in the loss of any employment benefit that accrued prior to the state of an eligible employee’s FMLA leave.

(g) **Notice of Eligibility for, and Designation of, FMLA Leave.** Employees requesting FMLA leave are entitled to receive written notice from the Township telling them whether they are eligible for FMLA leave and, if not eligible, the reasons why they are not eligible. When eligible for FMLA leave, employees are entitled to receive written notice of: a) their rights and responsibilities in connection with such leave; b) the Township’s designation of leave as FMLA-qualifying or non-qualifying, and if not FMLA-qualifying, the reasons why; and c) the amount of leave, if known, that will be counted against the employee’s leave entitlement. The Township may retroactively designate leave as FMLA leave with appropriate written notice to employees provided the Township’s failure to designate leave as FMLA-qualifying at an earlier date did not cause harm or injury to the employee. In all cases where leaves qualify for FMLA protection, the Township and employee can mutually agree that leave be retroactively designated as FMLA leave.

20.3 **Employee FMLA Leave Obligations.**

(a) **Provide Notice of the Need for Leave.** Employees who take FMLA leave must timely notify the Township of their need for FMLA leave. The following describes the content and timing of such employee notices.

Content of Employee Notice. To trigger FMLA leave protections, employees must inform the FMLA Coordinator of the need for FMLA-qualifying leave and the anticipated timing and duration of the leave, if known. Employees may do this by either requesting FMLA leave specifically, or explaining the reasons for leave so as to allow the Township to determine if the leave is FMLA-qualifying. Calling in “sick,” without providing the reasons for the needed leave, will not be considered sufficient notice for FMLA leave under this policy. Employees must respond to the Township’s questions to determine if absences are potentially FMLA-qualifying. If employees fail to explain the reasons for FMLA leave, the leave may be denied. When employees seek leave due to FMLA-qualifying reasons for which the Township has previously provided FMLA protected leave, they must specifically reference the qualifying reason for the leave or the need for FMLA leave.

Timing of Employee Notice. Employees must provide 30 days advance notice of the need to take FMLA leave when the need is foreseeable. When 30 days’ notice is not possible, or the approximate timing of the need for leave is not foreseeable, employees must provide the Township notice of the need for leave as soon as practicable. Employees who fail to give 30 days’ notice for foreseeable leave without a reasonable excuse for the delay, or otherwise fail to satisfy FMLA notice obligations, may have FMLA leave delayed or denied.

(b) **Cooperate in the Scheduling.** When planning medical treatment, employees must consult with the Township and make a reasonable effort to schedule treatment so as not to unduly disrupt the Townships operations. Employees must consult with the Township prior to the scheduling of treatment to work out a treatment schedule that best suits the needs of

both the Township and the employees. When employees take intermittent or reduced work schedule leave for foreseeable planned medical treatment or to care for a covered service member, the Township may temporarily transfer employees, during the period that the intermittent or reduced leave schedules are required, to alternative positions with equivalent pay and benefits for which the employees are qualified and which better accommodate recurring periods of leave.

(c) **Medical Certifications.** Depending on the nature of FMLA leave sought, employees may be required to submit medical certifications supporting their need for FMLA qualifying leave. As described below, there generally are three types of FMLA medical certifications: an initial certification, a recertification, and a return to work/fitness for duty certification. It is the employee's responsibility to provide the Township with timely, complete and sufficient medical certifications. Whenever the Township requests employees to provide FMLA medical certifications, employees must provide the requested certifications within 15 calendar days after the Township's request. The Township shall inform employees if submitted medical certifications are incomplete or insufficient and provide employees at least seven calendar days to cure deficiencies. The Township will deny FMLA leave to employees who fail to timely cure deficiencies or otherwise fail to timely submit requested medical certifications. With the employee's permission, the Township (through individuals other than an employee's direct supervisor) may contact the employee's health care provider to authenticate or clarify medical certifications. If employees choose not to provide the Township with authorization allowing it to clarify or authenticate certifications with health care providers, the Township may deny FMLA leave.

Initial Medical Certifications. Employees requesting leave because of their own, or a covered relation's, serious health condition, or to care for a covered service member, must supply medical certification supporting the need for such leave from their health care provider or, if applicable, the health care provider of their covered family or service member. If employees provide at least 30 days notice of medical leave, they should submit the medical certification before leave begins. A new initial medical certification will be required on an annual basis for serious medical conditions lasting beyond a single leave year. If the Township has reason to doubt initial medical certifications, it may require employees to obtain a second opinion at the Township's expense. If the opinions of the initial and second health care providers differ, the Township may, at its expense, require employees to obtain a third, final and binding certification from a health care provider designated or approved jointly by the Township and the employee.

Medical Recertifications. Depending on the circumstances and duration of FMLA leave, the Township may require employees to provide recertification of medical conditions giving rise to the need for leave. The Township will notify employees if recertification is required and will give employees at least 15 calendar days to provide medical recertification.

Return to Work/Fitness for Duty Medical Certifications. Unless notified that providing such certifications is not necessary, employees returning to work from FMLA leaves that were taken because of their own serious health conditions that made them unable to perform their jobs must provide the Township medical certification confirming they are able to return to work and the employees' ability to perform the essential functions of the employees' position, with or without reasonable accommodation. The Township may delay and/or deny job restoration until employees provide return to work/fitness for duty certifications.

(d) **Submit Certifications Supporting Need for Military Family Leave.**

Upon request, the first time employees seek leave due to qualifying exigencies arising out of the active duty or call to active duty status of a covered military member, the Township may require employees to provide: a) a copy of the covered military member's active duty orders or other documentation issued by the military indicating the covered military member is on active duty or call to active duty status and the dates of the covered military member's active duty service; and b) a certification from the employee setting forth information concerning the nature of the qualifying exigency for which leave is requested. Employees shall provide a copy of new active duty orders or other documentation issued by the military for leaves arising out of qualifying exigencies arising out of a different active duty or call to active duty status of the same or a different covered military member. When leave is taken to care for a covered service member with a serious injury or illness, the Township may require employees to obtain certifications completed by an authorized health care provider of the covered service member. In addition, and in accordance with the FMLA regulations, the Township may request that the certification submitted by employees set forth additional information provided by the employee and/or the covered service member confirming entitlement to such leave.

(e) **Substitute Paid Leave for Unpaid FMLA Leave.** Employees must use any accrued paid time off while taking FMLA leave and the paid time will run concurrently with an employee's FMLA entitlement. Leaves of absence taken in connection with a disability leave plan or workers' compensation shall run concurrently with any FMLA leave entitlement.

(f) **Pay Employee's Share of Health Insurance Premiums.** During FMLA leave, employees are entitled to continued group health plan coverage under the same conditions as if they had continued to work. Unless the Township notifies employees of other arrangements, whenever employees are receiving pay from the Township during FMLA leave, the Township will deduct the employee portion of the group health plan premium from the employee's paycheck in the same manner as if the employee was actively working. If FMLA leave is unpaid, employees must pay their portion of the group health premium through a method determined by the Township upon leave. The Township's obligation to maintain health care coverage ceases if an employee's premium payment is more than 30 days late. If employees do not return to work within 30 calendar days at the end of the leave period (unless employees cannot return to work because of a serious health condition or other circumstances beyond their control), they will be required to reimburse the Township for the cost of the premiums the Township paid for maintaining coverage during their unpaid FMLA leave.

20.4 Questions about FMLA Leave. If you have questions regarding this FMLA policy, please contact the FMLA Coordinator. The Township is committed to complying with the FMLA and, whenever necessary, shall interpret and apply this policy in a manner consistent with the FMLA.

Article 21 -- Workers' Compensation

21.1 When an employee's absence from work is due to an illness or injury arising out of and in the course of his/her employment by the Boards, employee shall be compensated by and under the terms of Michigan Workers' Disability Compensation Act.

21.2 Except as provided in 21.4 below, an employee is responsible for continued payment of employee's voluntary or mandatory contributions while on workers' compensation leave. Except as provided in 21.4 below, Employer shall not otherwise be responsible for making any of employee's voluntary or mandatory contributions while employee is receiving worker's compensation or otherwise on worker's compensation leave.

21.3 All workers' compensation leave shall run concurrently with a leave of absence under the Family and Medical Leave Act, as amended ("FMLA").

21.4 Benefits

(a) Insurance Payments. During the first six (6) months of workers' compensation leave, the Employer will continue payment of its share of group health, dental, life, and long-term disability insurance premiums for employees on workers' compensation leaves on the same terms that would exist if they were not on the leave. Employer may extend such insurance premiums for up to an additional six (6) months in its discretion.

(b) Seniority. During the period of workers' compensation leave, the employee will be considered to be on active duty for purposes of seniority.

Article 22 – Insurance

22.1 **Health.** The Boards will make available a group health insurance program covering certain medical expenses for participating employees and their eligible dependents. This insurance program shall be on a voluntary basis for all full-time employees who elect to participate in the insurance program. Except as provided in this Section, the insurance program provided shall be the same as a program provided by Gaines Charter Township to its employees. The specific terms and conditions governing this medical insurance program, including eligibility requirements, are set forth in detail in the policy governing the program as issued by the carrier.

(a) Employees electing to participate in the group medical insurance plan shall advise the Boards in writing of their intent by filling out the applicable insurance forms and making arrangements with the Boards for the payment of the required monthly premium. In the event that two employees are married to each other, only one insurance policy will be purchased.

(b) The Boards reserve the right to review, and renew or replace all insurance contracts (carriers/terms/benefits) on an annual basis.

(c) Any insurance plan offered to other Gaines Charter Township employees will be offered to Fire Department employees. During the term of this Agreement, Fire Department employees who are enrolled in the basic group medical health insurance plan will pay the same premiums (if any) as Gaines Charter Township employees. If the township is required have employees contribute to their premiums for basic group medical health insurance, Fire Department Employees will pay the same as other employees up to a maximum of 12% of the costs of their participation in the plan through payroll deduction.

(d) Fire Department employees electing premium health insurance (if offered) will be required to pay the difference in health care costs in the same fashion as Gaines Charter Township employees.

(e) In the event an employee opts out of the health care coverage plan (as referenced in item 21.1(c)) and can demonstrate that he/she has health care coverage through another employer, the Boards will pay two hundred dollars (\$200) per pay period to that employee subject to normal payroll deductions.

22.2 **Dental.** If dental insurance is provided to other Gaines Charter Township employees, then the plan will be offered to employees during the term of this Agreement under the same terms and conditions (other than premium sharing) as provided to those Township employees.

22.3 **Long Term Disability.** If long term disability insurance is provided to other Gaines Charter Township employees, then the plan will be offered to employees during the term of this Agreement under the same terms and conditions as provided to those Township employees.

22.4 **Life.** The Boards shall offer thirty thousand dollars (\$30,000.00) of life insurance to employees during the term of this Agreement. This life insurance shall be provided in conjunction with the health insurance policy offered to employees pursuant to Section 21.1 and shall be subject to the same premium co-payment and eligibility requirements of the health insurance policy.

22.5 **Section 125 Plan.** The Boards have implemented a Section 125 benefit plan which encourages employees to divert tax-free dollars to cover health insurance premiums, medical/dental and childcare expenses through payroll deduction. The terms of this plan will be governed by federal and state law and continue throughout the term of this Agreement and only as long as these plans exist under federal law.

Article 23 – Pension

23.1 The Boards have implemented a defined contribution plan under which the Boards will contribute to each participant's account an amount equal to ten percent (10%) of the participant's compensation. The terms and conditions of this defined contribution plan are set forth in greater detail in the plan documents and these plan documents control the governance of this plan. The plan administrator and pension provider will be selected by the Boards.

23.2 **Section 457 Plan.** The Boards have implemented a Section 457 plan which allows employees to defer compensation on a pre-tax basis through payroll deductions that will allow these employees to defer federal taxes until the assets are withdrawn. This plan shall be governed by federal law and exist throughout the term of this agreement as long as the plan exists under federal law.

Article 24 – Uniform and Clothing

24.1 The Boards shall furnish duty uniforms consisting of dress shirt, t-shirts, pants, winter coat, belt, two (2) name plates, two (2) badges and sweatshirts with appropriate Fire Department logos and arm patches.

24.2 The Boards shall provide a washer and dryer at the Fire Station for the cleaning of duty uniforms.

24.3 The Boards shall provide each employee one (1) pair of boots upon employment and, as determined by the Fire Chief, on an as-needed basis thereafter.

Article 25 – Food Allowance

25.1 Employer will budget a total of \$1,500.00 annually for the purpose of purchasing food staples for the fire department.

Article 26 – Physical Fitness

26.1 If time permits, all full-time employees shall be permitted to engage in physical fitness activities a minimum of one half (1/2) hour during each twelve (12) hour shift when conducted onsite. No overtime shall be incurred for the purpose of engaging in physical fitness activities.

26.2 Employees are required to maintain the level of physical fitness/wellness expressed in the Fire Department's physical fitness program, if any. Any physical fitness program, including physical agility tests, shall be discussed with the Union for their input prior to implementation. An employee who is unable to meet the medical evaluation requirements of NFPA 1582, or any other fitness requirement established by the Boards, will not be permitted to engage in fire suppression activities and shall be subject to discharge.

Article 27 – Personnel Records

27.1 Employees shall be able to view their personnel, department, training or medical file during normal office hours as allowed by state law.

Article 28 – Harassment

28.1 All employees have the right to work in an environment that is free of offensive kinds of behavior. Any employee conduct, whether intentional or unintentional, that results in the harassment of another employee because of, or on the basis of, religion, race, color, national origin, age, sex, height, weight, marital status or handicap is prohibited. Such harassment robs the employee/victim of self-esteem, violates state and federal civil rights laws and is against any Boards policy.

28.2 Specifically, sexual harassment refers to behavior which is not welcome, is personally offensive. Undermines morale and interferes with the work performance and

effectiveness of its victims. Sexual harassment has been defined generally as unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature when:

- (a) Giving in to such conduct is made to be, or implied to be, a condition of employment;
- (b) Giving in to or refusing such conduct is used in decisions about employment; or
- (c) The purpose or effect of such conduct unreasonably interferes with an employee's job performance or creates a fearful, hostile, or offensive working climate.

28.3 Sexual harassment may take many forms, including lewd or sexually suggestive comments, jokes of a sexual nature, sexual advances or propositions, sexual flirtations, frequent and repeated inquiries about an employee's personal activities, displaying sexually suggestive photographs or objects, obscene gestures, and unwanted physical contact such as touching or pinching.

28.4 All employees are responsible for assuring that our workplace is free from prohibited harassment. This policy applies to all aspects of employment, including recruiting, testing, hiring, transfers, work assignments; wage increases, on-site behavior and offsite behavior associated with Board business or which otherwise may impact the Boards. Employees, who become aware of an incident or possible incident of unlawful harassment, whether by witnessing the incident or being told of it, must report it to the Chief or the Boards Chair(s).

28.5 If an employee feels they have been subjected to harassment, including sexual harassment, the employee is urged to immediately advise the Chief or the Boards Chair(s). If the Boards become aware that harassment might exist, it is obligated by law to take prompt and appropriate action, whether or not the victim wants the Boards to do so. However, in determining an appropriate course of action the Boards will take the victim's wishes into account. In that regard, all complaints will be investigated immediately and, to the greatest extent possible, kept confidential. If the harassment is substantiated, the offending employee will be subject to disciplinary action up to and including discharge.

Article 29 – Substance Abuse

29.1 The manufacture, distribution, dispensation, possession, use or sale of illegal drugs, marijuana or alcohol on Board's premises or while conducting any Board business is prohibited. Also, being under the influence of illegal drugs, marijuana or alcohol on Board's premises or while conducting any Board business is also prohibited since this unnecessarily endangers the health and safety of not only yourself, but your fellow employees. Violation of this policy will result in discharge.

29.2 All active employees may be required to undergo drug and alcohol testing upon reasonable suspicion of the Chief or the Boards. This testing will be performed by a reputable hospital, clinic or independent laboratory using qualified and trained medical technicians or professionals. This facility will be chosen by the Chief or the Boards and the employee will be transported to and from the testing center. Should the test prove negative, the employee will be

returned to work without discipline or loss of pay. Should the test prove positive, then a second test shall be done by the same testing facility using the same sample to confirm or overturn the results of the first test. The results of the second test shall control. Positive testing of drug or alcohol use or abuse in the second test or refusal to submit to this testing will result in discharge.

29.3 All employees are required to notify the Chief, bring in any necessary doctors authorization, and receive authorization to work while using any legal or prescription drugs that could impact the employee's safety or job performance. The Boards reserve the right to require additional documentation at any time.

29.4 Employees must notify the Boards of any criminal drug statute conviction for a violation occurring in the workplace. This notification must be given within five (5) days after such conviction. The Boards have established an Employee Assistance Program (EAP) to inform employees about the dangers of drug abuse in the workplace and to help employees understand the Boards' policy of maintaining a drug-free workplace. Contact the office for more information.

Article 30 – Savings Clause

30.1 Should any part hereof or provision herein contained be rendered or declared invalid by reason of any existing or subsequently enacted legislation or by any decree of a court of competent jurisdiction, such invalidation of such part or portion of this Agreement shall not invalidate the remaining portions therefore any remaining parts or portions remain in full force and effect.

Article 31 – Successor Agreements

31.1 This agreement shall be binding upon the successors and assigns of the parties thereto, and no provisions, terms, or obligations herein contained shall be affected, modified, altered or changed in any respect whatsoever by the consolidation, merger, annexation, transfer, or assignment of either party hereto or change by geographically or otherwise in the location or place of business of either party hereto.

Article 32 – Waiver

32.1 This Agreement constitutes the entire understanding and agreement of the parties, and supersedes any and all prior agreements, understandings, and representations in their entirety. No amendment, change or modification of this Agreement shall be valid unless in writing signed by the parties hereto.

Article 33 – Printing and Supplying Agreement

33.1 This agreement and any future Agreement shall be printed and supplied to each employee by the Boards within thirty (30) working days of signing with the cost to be divided equally between the Boards and the employee.

Article 34 – Evergreen

34.1 This Agreement shall remain in effect during any negotiations and shall continue to remain in full force and effect until such time as a new Agreement is reached.

Article 35 – Duration

35.1 This agreement is subject to ratification by the Byron Township Board and Gaines Charter Township Board, and shall become effective as on the 1st of July, 2021 and shall remain in full force and effect until 12:01 a.m. on the 30th day of June, 2024. This agreement and the wage and benefit modifications are not retroactive before July 1, 2021, but are effective on July 1, 2021.

IN WITNESS WHEREOF, the parties have caused this agreement to be executed by their duly authorized representatives this _____, 2021.

**CUTLERVILLE PROFESSIONAL
FIREFIGHTERS UNION, LOCAL 4385**

**GAINES CHARTER TOWNSHIP AND
BYRON TOWNSHIP**

Kurt Wierenga, President

**Robert DeWard
Gaines Charter Township Supervisor**

Mark Groosters, Vice President

**Donald Tillema
Byron Township Supervisor**

APPENDIX A

Wage Detail					
Effective July 1, 2021					
July 1, 2021 - Fire Fighters see a 5% increase over 2020 pay scales and officers & EO see a 7% increase over 2020 pay scales.					
Fire Fighter					
Rate	Start	6 Months	1 Year	2 Years	3 Years
Hourly	\$ 20.35	\$ 20.88	\$ 21.42	\$ 22.24	\$ 23.31
Engine Operator					
Rate	\$ 23.75				
(Engine Operator will be considered a change in rank and paygrade and requires the approval of the Cutlerville Fire Board following the recommendation of the Fire Chief.)					
OFFICERS					
Lieutenant					
Rate	\$ 24.58				
Captain					
Rate	\$ 25.70				

Wage Detail					
Effective July 1, 2022					
July 1, 2022 - Fire Fighters see a 4% increase over 2021 pay scales and officers & EO see a 5% increase over 2021 pay scales.					
Fire Fighter					
Rate	Start	6 Months	1 Year	2 Years	3 Years
Hourly	\$ 21.16	\$ 21.72	\$ 22.28	\$ 23.13	\$ 24.24
Engine Operator					
Rate	\$ 24.94				
(Engine Operator will be considered a change in rank and paygrade and requires the approval of the Cutlerville Fire Board following the recommendation of the Fire Chief.)					
OFFICERS					
Lieutenant					
Rate	\$ 25.81				
Captain					
Rate	\$ 26.99				

Wage Detail					
Effective July 1, 2023					
July 1, 2023 - Fire Fighters see a 3% increase over 2022 pay scales and officers & EO see a 4% increase over 2022 pay scales.					
Fire Fighter					
Rate	Start	6 Months	1 Year	2 Years	3 Years
Hourly	\$ 21.80	\$ 22.37	\$ 22.95	\$ 23.82	\$ 24.97
Engine Operator					
Rate	\$ 25.94				
(Engine Operator will be considered a change in rank and paygrade and requires the approval of the Cutlerville Fire Board following the recommendation of the Fire Chief.)					
OFFICERS					
Lieutenant					
Rate	\$ 26.84				
Captain					
Rate	\$ 28.07				

The Boards reserve the right to amend the starting wage based on prior experience of the applicant

Cutlerville Fire Committee
Meeting minutes
August 23, 2021

Tillema opened with prayer

Meeting called to order by DeWard at 4:01

Members present: DeWard, Tillema, Hooker, Haagsma, Holbrook

Other present: Jonathan Seyferth, Chief Sheely, Ken Van Hall, Michael Brew

Minutes from May 19, 2021

- Motion by Holbrook support by Tillema to approve the minutes from May 19, 2021.
 - o Yes - All

Conflict of interest – none

Chief Sheely gave an update on personnel matters

- There are five firefighters (POC & Part-time) in the hiring process.
- Chief Sheely reported on other personnel matters

Safer Grant

- Chief Sheely reported that the grant announcement should be made soon

Fire Inspector Training

- The consensus of the board was that sending a fire fighter to fire inspector training was an item for the Gaines board since the inspector would work in Gaines Township. Byron Township currently has an inspector.

Apparatus Update

- Chief Sheely reported that P37 is still out of service
- Engine 36 is being sold privately since there is no vehicle title

Purchase requests

- Knox Box - Motion by Haagsma support by Hooker to approve the purchase of new lock tumblers so the right locks are in the right township. Total cost \$3000.
 - o Vote: Yes – all
- Bollard for gas meter – Motion by Haagsma support by Holbrook to install bollards to protect the gas meter on the back of the station. Total cost \$1000.
 - o Vote: Yes – all
- Bed frames and mattresses - Motion by Haagsma support by Tillema to approve the purchase of 4 new bed frames and mattresses. Total cost \$6400.
 - o Vote: Yes – all
- Uniform sleeve patch and flag patch - Motion by Hooker support by Holbrook to approve the purchase of 200 each of sleeve patched and flag patched for uniforms. Total cost \$998
 - o Vote: Yes – all

- Water Heater and other plumbing repairs - Motion by Hooker support by Holbrook to approve water heater replacement and other plumbing repairs done for a cost of \$1830.
 - o Vote: Yes – all
- Turn out gear - Motion by Haagsma support by Tillema to approve the purchase the needed turn out gear for new hires. If old gear fits and is still in date that would be used. Total cost in budget \$10,250
 - o Vote: Yes – all
- Computers - Motion by DeWard support by Holbrook to approve the purchase of 3 new desktop computers up to \$1000 each – total \$3000
 - o Vote: Yes – all
- Uniforms for new hires – Motion by Haagsma support by Holbrook to approve the purchase of up to 5 uniforms for the new hires. Total cost \$1000.
 - o Vote: Yes – all

Update was given on the Union Negotiations. Contract is expected to go the boards in September for approval

Adjournment

Motion by DeWard support by Holbrook to adjourn at 5:00

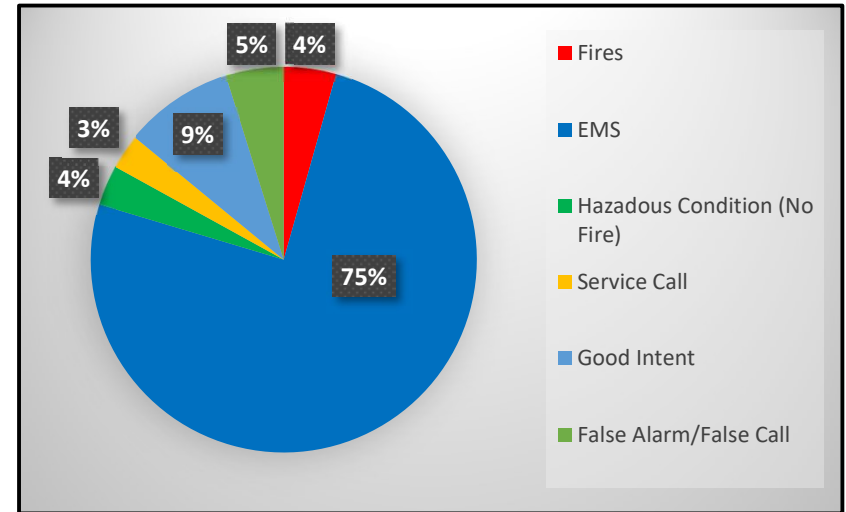
Vote: Yes – all

CUTLERVILLE FIRE DEPARTMENT

AUGUST 2021 REPORT

AUGUST 2021 RESPONSE SUMMARY

NFIRS INCIDENT TYPE SERIES	AUG 2021	2021 YTD	2020 YTD	YTD CHANGE
Fires	9	65	65	0.0%
Explosion/Excessive Heat	1	3	2	50.0%
EMS	155	1054	1004	5.0%
Hazadous Condition (No Fire)	7	45	47	-4.3%
Service Call	6	36	50	-28.0%
Good Intent	19	120	119	0.8%
False Alarm/False Call	10	96	72	33.3%
Severe Weather/Natural Disaster	4	6	3	100.0%
Special Incident Type	0	0	0	0.0%
TOTAL	211	1425	1362	4.6%



RESPONSE BY SHIFT SUMMARY

SHIFT	AUG 2021	2021 YTD	2020 YTD	YTD CHANGE
Full-Time	146	956	913	4.7%
Full-Time/POC	65	469	449	4.5%
TOTAL	211	1425	1362	

AID TYPE	AUG 2021	2021 YTD	2020 YTD	YTD CHANGE
Mutual aid received	8	36	24	50.0%
Automatic aid rec	5	17	26	-34.6%
Mutual aid given	2	9	15	-40.0%
Automatic aid given	4	28	33	-15.2%
Other aid given	2	5	3	66.7%
None	190	1330	1261	5.5%
TOTAL	211	1425	1362	

RESPONSES BY ZONE SUMMARY

ZONE	AUG 2021	2021 YTD	2020 YTD	YTD CHANGE
CFD-Byron - Cutlerville Fire District Byron Township	92	607	557	9.0%
CFD-Gaines - Cutlerville Fire District Gaines Township	110	756	735	2.9%
Byron - Byron Twp Fire District	2	13	25	-48.0%
Dutton - Dutton Fire District	0	16	12	33.3%
Kentwood - Kentwood Fire District	4	23	20	15.0%
Leighton - Leighton Twp Fire District	0	0	2	-100.0%
Wyoming - Wyoming Fire District	3	10	11	-9.1%
TOTAL	211	1425	1362	

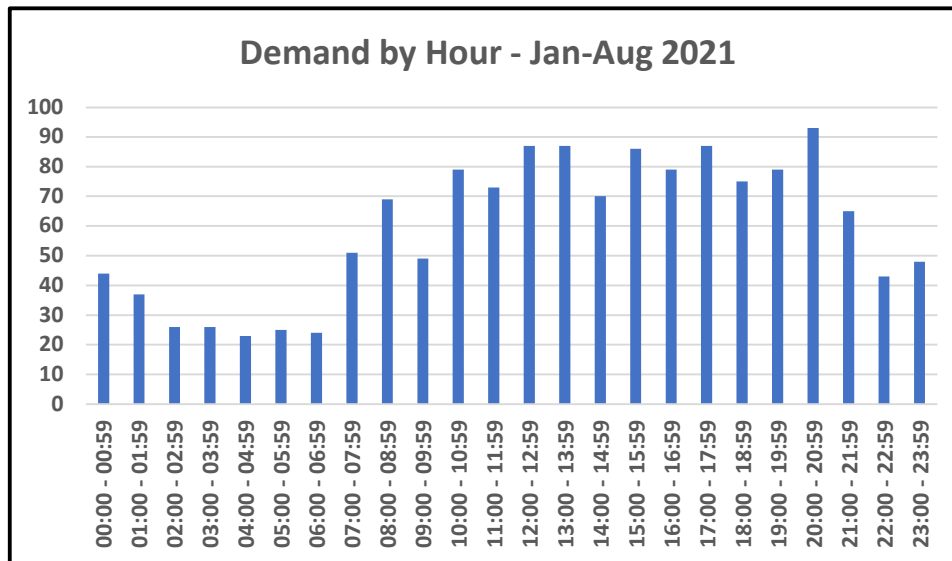
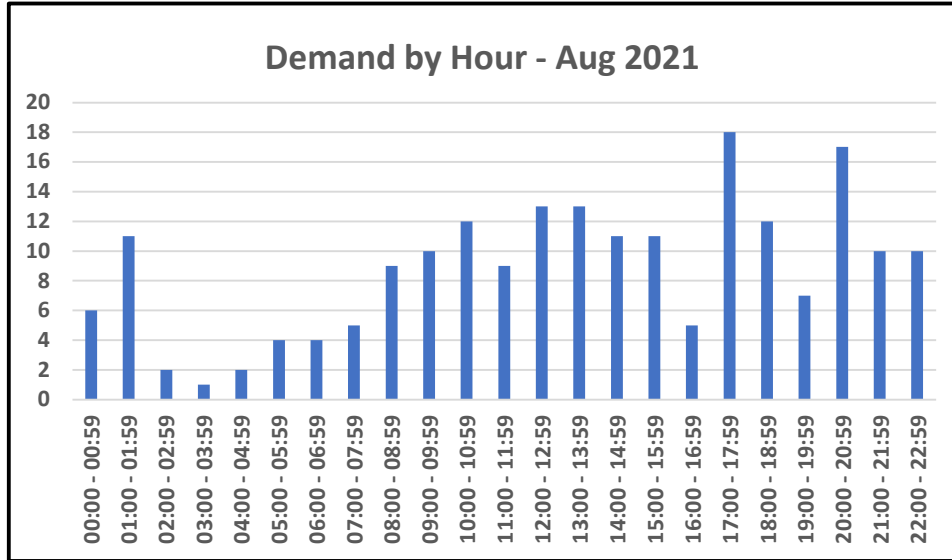
TRAINING HOURS SUMMARY

AUG 2021	2021 YTD	2020 YTD	YTD CHANGE
251	2336	1921	21.60%

CUTLERVILLE FIRE DEPARTMENT

AUGUST 2021 REPORT

No. of Incidents by Hour - Aug 2021	
00:00 - 00:59	6
01:00 - 01:59	11
02:00 - 02:59	2
03:00 - 03:59	1
04:00 - 04:59	2
05:00 - 05:59	4
06:00 - 06:59	4
07:00 - 07:59	5
08:00 - 08:59	9
09:00 - 09:59	10
10:00 - 10:59	12
11:00 - 11:59	9
12:00 - 12:59	13
13:00 - 13:59	13
14:00 - 14:59	11
15:00 - 15:59	11
16:00 - 16:59	5
17:00 - 17:59	18
18:00 - 18:59	12
19:00 - 19:59	7
20:00 - 20:59	17
21:00 - 21:59	10
22:00 - 22:59	10
23:00 - 23:59	9



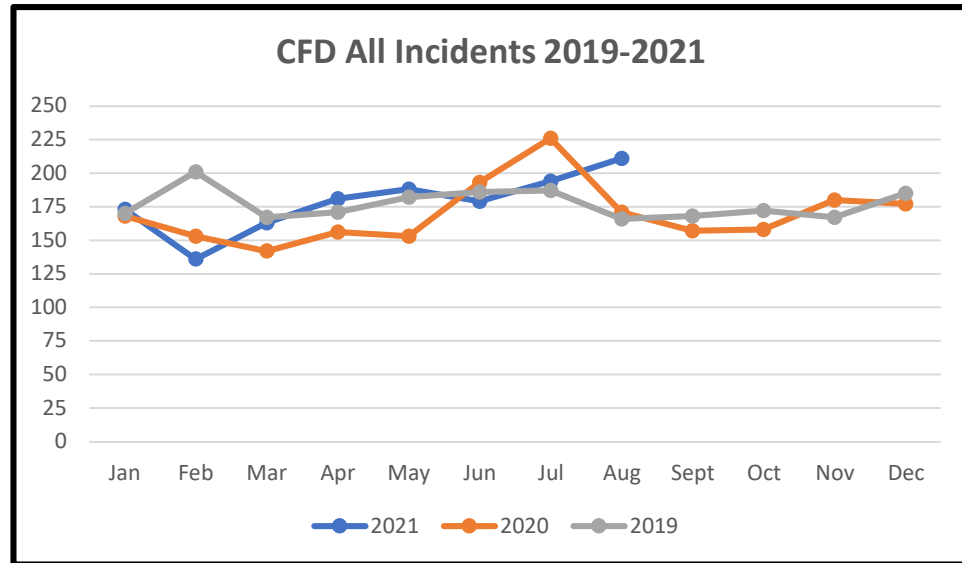
No. of Incidents by Hour 2021 YTD	
00:00 - 00:59	44
01:00 - 01:59	37
02:00 - 02:59	26
03:00 - 03:59	26
04:00 - 04:59	23
05:00 - 05:59	25
06:00 - 06:59	24
07:00 - 07:59	51
08:00 - 08:59	69
09:00 - 09:59	49
10:00 - 10:59	79
11:00 - 11:59	73
12:00 - 12:59	87
13:00 - 13:59	87
14:00 - 14:59	70
15:00 - 15:59	86
16:00 - 16:59	79
17:00 - 17:59	87
18:00 - 18:59	75
19:00 - 19:59	79
20:00 - 20:59	93
21:00 - 21:59	65
22:00 - 22:59	43
23:00 - 23:59	48

Count of Overlapping Incidents/Percentage of Incidents					
2021	%	2020	%	2019	%
211	14.8%	194	9.5%	181	9.0%

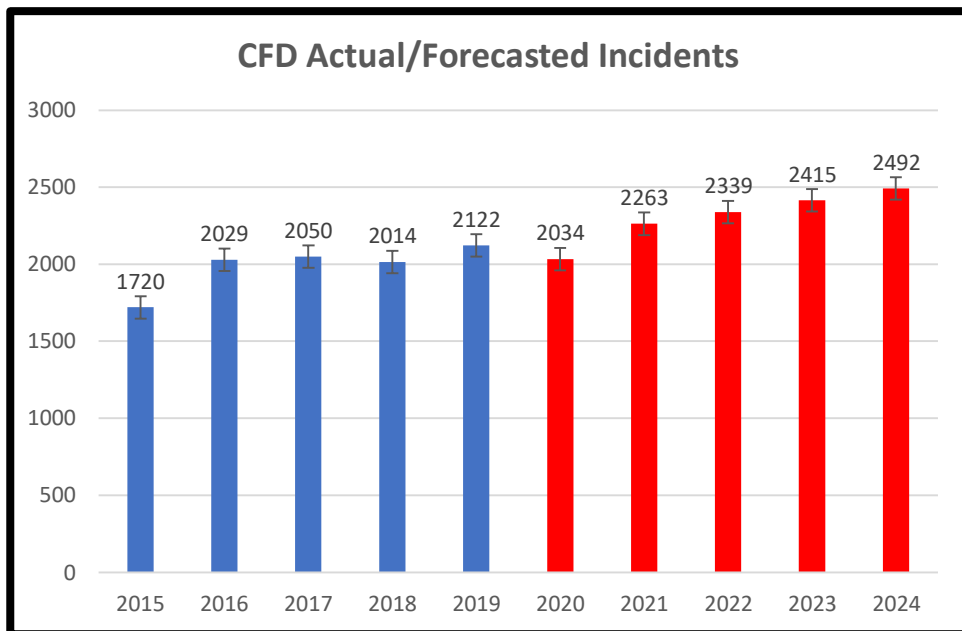
CUTLERVILLE FIRE DEPARTMENT

AUGUST 2021 REPORT

Month	2021	2020	2019
Jan	173	168	170
Feb	136	153	201
Mar	163	142	167
Apr	181	156	171
May	188	153	182
Jun	179	193	186
Jul	194	226	187
Aug	211	171	166
Sept		157	168
Oct		158	172
Nov		180	167
Dec		177	185



Year	Incidents
2015	1720
2016	2029
2017	2050
2018	2014
2019	2122
2020	2034
2021	2263
2022	2339
2023	2415
2024	2492

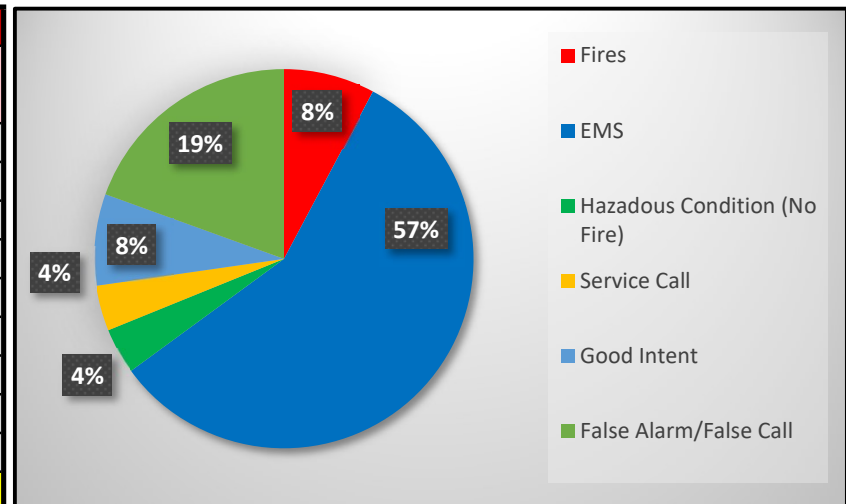


DUTTON FIRE DEPARTMENT

AUGUST 2021 REPORT

AUGUST RESPONSE SUMMARY

NFIRS INCIDENT TYPE SERIES	AUG 2021	2021 YTD	2020 YTD	YTD CHANGE
Fires	6	35	26	34.6%
Explosion/Excessive Heat	0	0	0	0.0%
EMS	44	325	286	13.6%
Hazadous Condition (No Fire)	3	12	12	0.0%
Service Call	3	17	14	21.4%
Good Intent	6	72	43	67.4%
False Alarm/False Call	15	47	26	80.8%
Severe Weather/Natural Disaster	2	3	1	200.0%
Special Incident Type	0	0	0	0.0%
TOTAL	79	511	408	25.2%



RESPONSE BY SHIFT SUMMARY

SHIFT	AUG 2021	2021 YTD	2020 YTD	YTD CHANGE
FT/PT Day Shift	10	111	82	35.4%
FT/PT Day/POC & POC	69	400	326	22.7%
TOTAL	79	511	408	

RESPONSES BY ZONE SUMMARY

ZONE	AUG 2021	2021 YTD	2020 YTD	YTD (+/-)
Dutton - Dutton Fire District (All Zones)	61	432	338	27.8%
CFD-Byron - Cutlerville Fire District Byron Township	3	8	8	0.0%
CFD-Gaines - Cutlerville Fire District Gaines Township	11	40	34	17.6%
Byron - Byron Twp Fire District	1	1	1	0.0%
Caledonia- Caledonia Fire Rescue	1	16	10	60.0%
Kentwood - Kentwood Fire District	2	11	15	-26.7%
Leighton - Leighton Twp Fire District	0	1	1	0.0%
Thornapple - Thornapple FD	0	2	0	200.0%
Wyoming - Wyoming FD	0	0	1	-100.0%
TOTAL	79	511	408	

AID TYPE	AUG 2021	2021 YTD	2020 YTD	YTD CHANGE
Mutual aid received	2	10	6	66.7%
Automatic aid rec	0	4	5	-20.0%
Mutual aid given	6	25	19	31.6%
Automatic aid given	3	24	18	33.3%
Other aid given	3	13	8	62.5%
None	65	435	352	23.6%
TOTAL	79	511	408	

TRAINING HOURS SUMMARY

AUG 2021	2021 YTD	2020 YTD	YTD CHANGE
335	2016	912	121.05%



GRETCHEN WHITMER
GOVERNOR

STATE OF MICHIGAN
DEPARTMENT OF TREASURY
LANSING

RACHAEL EUBANKS
STATE TREASURER

August 18, 2021

Robert DeWard, Supervisor
Gaines Township, Kent County
8555 Kalamazoo Avenue, SE
Caledonia, MI 49316

Dear Robert DeWard:

The State Tax Commission at their August 17, 2021 meeting approved the enclosed Certificate of Achievement. This certificate acknowledges Gaines Township, Kent County for receiving a perfect score on their 2021 AMAR Review. The Commission wishes to congratulate the Township and thank you for your continued efforts to provide fair and equitable assessing in the State of Michigan.

Sincerely,

A handwritten signature in blue ink, appearing to read "David Buick".

David A. Buick, Executive Director
State Tax Commission

Enc: Certificate of Achievement

Certificate of Achievement



This acknowledges that

Gaines Township, Kent County

On the 17th of August 2021 has been recognized for the outstanding achievement of receiving a perfect score on the 2021 Audit of Minimum Assessing Requirements (AMAR) Review. We wish to congratulate you and thank you for your continued efforts to provide fair and equitable assessing in the State of Michigan.


Peggy L. Nolde, Chairperson


W. Howard Morris, Member


Leonard D. Kutschman, Member



REGIONAL GEOGRAPHIC INFORMATION SYSTEM AGENCY

AN AGENCY OF THE GRAND VALLEY METROPOLITAN COUNCIL

ADA TOWNSHIP • ALPINE TOWNSHIP • BYRON TOWNSHIP • CANNON TOWNSHIP • CASCADE CHARTER TOWNSHIP • CITY OF CEDAR SPRINGS • CITY OF EAST GRAND RAPIDS •
GAINES CHARTER TOWNSHIP • GRAND RAPIDS CHARTER TOWNSHIP • CITY OF GRANDVILLE • CITY OF HUDSONVILLE • INTERURBAN TRANSIT PARTNERSHIP • CITY OF LOWELL
• KENT COUNTY ROAD COMMISSION • CITY OF KENTWOOD • PLAINFIELD CHARTER TOWNSHIP • CITY OF ROCKFORD • VILLAGE OF SPARTA • CITY OF WALKER • CITY OF WYOMING

Date: 9/7/2021

Gaines Charter Township Board
Attn: Jonathan Seyferth
8555 Kalamazoo Ave SE
Caledonia, MI 49316

Dear Gaines Charter Township Board,

For the fifth year in a row Grand Valley Metro Council's (GVMC) Regional Geographic Information System Agency (REGIS) has produced a surplus in the REGIS budget. Because of this surplus, I am pleased to enclose a REGIS rebate check for \$6319.21. GVMC staff continue to work collaboratively with the REGIS Board of Directors, Advisory and Technical Committees to achieve system efficiency and sustainability in a fiscally responsible manner.

Over a five-year period GVMC's REGIS has rebated back a total of \$650,000 to all member communities while at the same time providing excellent GIS services to the REGIS membership.

The rebate was approved by the GVMC Board on September 2, 2021

We thank you for your continued support for all GVMC programs.

Sincerely,

John Weiss
Executive Director
Grand Valley Metro Council



DISCUSSION MEMO

Staff Communication

DATE: September 8, 2021
TO: Gaines Charter Township Board
FROM: Jonathan Seyferth, Township Manager
RE: Fund Balance Policy

SUMMARY OF TOPIC:

One of the items you likely noticed from staff's budget memo was the need to discuss establishing a fund balance policy. In short, a fund balance policy directs staff what amount of unrestricted funds the Township should have in a fund balance and what to do with those funds if savings go above or below that threshold. Fund balance dollars should also be readily accessible in the event that the dollars are needed.

In general, fund balances are articulated as a percent of general fund revenues. Most municipalities use a rolling multiyear average of revenues in combination with the fund balance percent to come up with a specific dollar amount.

GFOA recommends best practice of having a minimum fund balance of 17% (about two months work of operating revenues) in unrestricted fund balances. (As an FYI, the State of Michigan identifies communities with a fund balance of 13% or less as being under "fiscal stress.") A healthy fund balance does more than just ensure funds are available for a rainy day, but also ensures proper cash flow.

The actual amount set will be at the Board's discretion. A survey of some Michigan communities has the following fund balance levels (this list was compiled from communities that recently responded to fund balance questions on the Michigan Public Managers listserv):

Municipality	Fund Balance Target
Delta Township	50%
Saginaw Township	40%
City of Grand Blanc	40%
City of Coopersville	40%
City of Owosso	25%
City of Port Huron	25%
City of Grandville	15%

Staff is also providing an article from *Michigan Township Focus* in February 2020 which provides some factors Townships should consider when thinking about implementing a Fund Balance policy.

This is simply an item for discussion so staff does not have a formal recommendation at this time. However, these following factors should be considered as part of any future fund balance discussion.

- Majority of our general fund dollars come from State Revenue Sharing
- Diverse property tax base (commercial, industrial and residential – we're not overly dependent in one area over another)
- Steady growth
- Fiscal Year
- Lean operations
- Appetite for risk (what is ours?)

When it comes time to adopt a fund balance policy, staff will also provide some policy recommendations on what to do with funds that exceed whatever level is set as well as steps to take if the fund balance drops below its desired level.

As an FYI, based on projected FY 2022 revenue, the Township's general fund is projected to have an 85% fund balance on December 31, 2021.

FINANCIAL IMPACT:

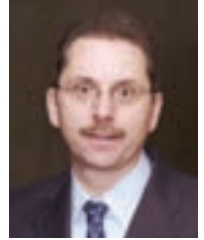
Adopting a Fund Balance Policy will allow staff to better prepare future budget recommendations based on a consistent policy. Particularly related to what to do with funds which exceed the policy minimum or what steps to take to bring the fund balance back into alignment if the fund balance falls below the target. A fund balance policy has also been a recommendation of Township's auditors as a compliance measure under GASB No. 54.

BUDGET ACTION REQUIRED:

No budget action will be required.

STAFF RECOMMENDATION:

This is an item for discussion at this time. It's anticipated that the fund balance policy will be enacted prior to the adoption of the budget.



Our auditor recommends that our township adopt a fund balance policy. What does this entail?

Your auditor is likely referring to the township's general fund, which typically consists of unrestricted revenues, while the other governmental fund types, special revenue funds, debt service funds and capital project funds are generally considered restricted. The source of most township special revenue funds are restricted revenues, such as extra-voted millage. Debt service and capital project funds are typically created by bonded indebtedness and are restricted to the purpose of the bond issue (many times, these bond issues are also voter approved).

The Government Finance Officers Association (GFOA) has an excellent white paper covering best practices in establishing such a fund balance policy (search for "fund balance guidelines" at www.gfoa.org). Each township should consider the following factors in considering a governance policy over accumulated "rainy day" amounts:

- 1) Appropriate level
- 2) Use and replenishment

Appropriate level

Each township should review its internal and external challenges in deciding the appropriate level for fund balance. Factors to consider include:

- 1) **Volatility in revenue base; non-diversified tax bases** (for example, concentration of taxable value in a single industrial facility).
- 2) **Fiscal year.** Townships with March year-ends must wait eight months to receive property tax revenues (April 1 to Dec. 1). These townships will need reserves to supplement other revenues to fund their operations in those months (likely would apply to special voted millage funds as well).
- 3) **Complex operations.** Township that provide more extensive levels of service, including police, fire and utility services, may need higher levels of fund balance due to the potential volatility of these operations. Even if some of these activities are funded by extra-voted millage, shortfalls due to unexpected costs may have to be funded through the general fund.
- 4) **Environmental factors,** such as susceptibility to natural disasters like flooding, may require higher levels of fund balance.
- 5) **Potential one-time, non-reoccurring expenditures,** like capital projects/infrastructure needs.

- 6) **Potential negative impact of fund balance deficits** on bond ratings, which would make borrowing more expensive and be a violation of Uniform Budgeting and Accounting Act.
- 7) **Commitments and assignments.** Townships may deem it appropriate to exclude from consideration resources that have been committed or assigned to some other purpose and focus on unassigned fund balance, rather than on unrestricted fund balance.

Communicating these factors to taxpayers and residents may make it easier for them to gain an understanding as to the need for seemingly higher than normal levels of fund balance. A minimum amount recommended by the GFOA, regardless of potential issues identified above, is two months of revenues or expenditures, whichever is easier to predict.

Use and replenishment

The fund balance policy should define conditions when accumulated resources would be used to balance the current-year expected expenditures. It should also include a plan to replenish it to the township board's policy level. The policy should:

- 1) Define the time period within and contingencies for which fund balances will be used
- 2) Describe how the township's expenditure and/or revenue levels will be adjusted to match any new economic realities that are behind the use of fund balance as a financing bridge
- 3) Describe the time period over which the components of fund balance will be replenished, and the means by which they will be replenished

Townships may wish to consider multiple-year budget/forecasting tools to assist in developing and maintaining fund balance levels.

Information provided in *Financial Forum* should not be considered legal advice, and readers are encouraged to contact their township auditor and/or attorney for advice specific to their situation.



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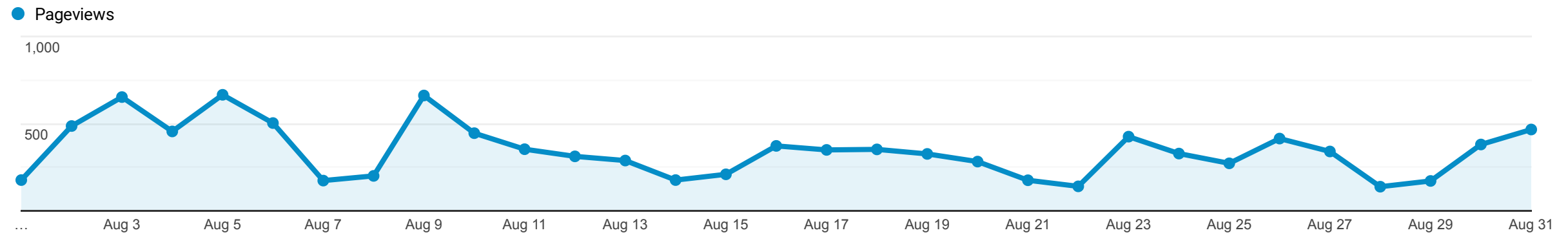


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		10,653 % of Total: 100.00% (10,653)	8,413 % of Total: 100.00% (8,413)	00:01:26 Avg for View: 00:01:26 (0.00%)	4,680 % of Total: 100.00% (4,680)	51.07% Avg for View: 51.07% (0.00%)	43.93% Avg for View: 43.93% (0.00%)	\$0.00 % of Total: 0.00% (\$0.00)
1. /		2,527 (23.72%)	1,926 (22.89%)	00:00:57	1,750 (37.39%)	30.00%	36.21%	\$0.00 (0.00%)
2. /document_center/index.php		738 (6.93%)	587 (6.98%)	00:04:32	220 (4.70%)	84.09%	66.12%	\$0.00 (0.00%)
3. /residents/index.php		631 (5.92%)	409 (4.86%)	00:01:40	49 (1.05%)	71.43%	34.55%	\$0.00 (0.00%)
4. /how_do_i_(faq)/contact/office.php		518 (4.86%)	424 (5.04%)	00:00:54	148 (3.16%)	54.05%	43.05%	\$0.00 (0.00%)
5. /revize/gaines/		365 (3.43%)	268 (3.19%)	00:00:31	260 (5.56%)	38.08%	36.16%	\$0.00 (0.00%)
6. /online_services/index.php		355 (3.33%)	319 (3.79%)	00:03:55	108 (2.31%)	56.48%	54.93%	\$0.00 (0.00%)
7. /departments/water_sewer.php		310 (2.91%)	224 (2.66%)	00:02:09	178 (3.80%)	43.26%	41.29%	\$0.00 (0.00%)
8. /parks_and_recreation/prairie_wolf_park.php		263 (2.47%)	162 (1.93%)	00:01:05	154 (3.29%)	51.30%	49.43%	\$0.00 (0.00%)
9. /gaines_charter_township/bid_ops.php		217 (2.04%)	197 (2.34%)	00:00:08	190 (4.06%)	90.00%	88.02%	\$0.00 (0.00%)
10. /departments/treasurer_php		196 (1.84%)	152 (1.81%)	00:02:02	114 (2.44%)	56.14%	53.06%	\$0.00 (0.00%)
11. /how_do_i_(faq)/contact/build_dept.php		156 (1.46%)	109 (1.30%)	00:02:13	63 (1.35%)	58.73%	44.87%	\$0.00 (0.00%)
12. /trustee_log-in/index.php		149 (1.40%)	123 (1.46%)	00:01:27	36 (0.77%)	55.56%	48.32%	\$0.00 (0.00%)
13. /departments/clerk_php		142 (1.33%)	118 (1.40%)	00:02:15	73 (1.56%)	72.60%	61.27%	\$0.00 (0.00%)
14. /how_do_i_(faq)/contact/policedept.php		141 (1.32%)	102 (1.21%)	00:02:04	92 (1.97%)	68.48%	60.28%	\$0.00 (0.00%)
15. /gaines_charter_township/index.php		139 (1.30%)	109 (1.30%)	00:00:33	4 (0.09%)	75.00%	11.51%	\$0.00 (0.00%)
16. /departments/planning_zoning.php		135 (1.27%)	103 (1.22%)	00:01:36	62 (1.32%)	33.87%	28.89%	\$0.00 (0.00%)
17. /how_do_i_(faq)/index.php		133 (1.25%)	75 (0.89%)	00:00:25	11 (0.24%)	90.91%	17.29%	\$0.00 (0.00%)
18. /departments/acessing.php		115 (1.08%)	83 (0.99%)	00:01:45	41 (0.88%)	41.46%	39.13%	\$0.00 (0.00%)
19. /news_detail_T26_R190.php		102 (0.96%)	86 (1.02%)	00:04:26	32 (0.68%)	90.62%	63.73%	\$0.00 (0.00%)
20. /departments/index.php		93 (0.87%)	77 (0.92%)	00:00:21	11 (0.24%)	0.00%	3.23%	\$0.00 (0.00%)
21. /departments/bldg_inspections.php		82 (0.77%)	63 (0.75%)	00:02:58	31 (0.66%)	70.97%	52.44%	\$0.00 (0.00%)
22. /how_do_i_(faq)/pay/index.php		68 (0.64%)	64 (0.76%)	00:03:51	45 (0.96%)	35.56%	32.35%	\$0.00 (0.00%)
23. /revize/gaines/news_detail_T26_R190.php		65 (0.61%)	56 (0.67%)	00:02:31	30 (0.64%)	90.00%	69.23%	\$0.00 (0.00%)
24. /departments/dutton_fd.php		62 (0.58%)	50 (0.59%)	00:00:43	47 (1.00%)	61.70%	56.45%	\$0.00 (0.00%)
25. /visitors/index1.php		58 (0.54%)	45 (0.53%)	00:00:11	15 (0.32%)	100.00%	34.48%	\$0.00 (0.00%)

Rows 1 - 25 of 632

